



CHAPTER 65.

An Act to amend the law relating to parliamentary and local government elections and to corrupt and illegal practices, and for purposes connected therewith.
[30th July 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

PARLIAMENTARY FRANCHISE AND ITS EXERCISE.

Parliamentary franchise and distribution of seats.

1.—(1) Subject to any Order in Council hereafter made under the House of Commons (Redistribution of Seats) Act, 1944, there shall for the purpose of parliamentary elections be the county and borough constituencies, each returning a single member, which are described in the First Schedule to this Act, and no other constituencies.

Constituencies
and electors.
7 & 8 Geo. 6.
c. 41.

(2) The persons entitled to vote as electors at a parliamentary election in any constituency shall be those resident there on the qualifying date who, on that date and on the date of the poll, are British subjects of full age and not subject to any legal incapacity to vote :

Provided that a person shall not be entitled to vote as an elector in any constituency unless registered there in the register of parliamentary electors to be used at the election nor, at a general election, to vote as an elector in more than one constituency.

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(3) The qualifying date for parliamentary elections shall be determined by reference to the date fixed for the poll as follows:—

(a) in Great Britain—

(i) where the date fixed for the poll is between the fifteenth day of March and the second day of October in any year, the qualifying date shall be, in England and Wales, the twentieth day of the preceding November and, in Scotland, the first day of the preceding December;

(ii) where the date fixed for the poll is between the first day of October in any year and the sixteenth day of the following March, the qualifying date shall in all parts of Great Britain be the fifteenth day of the preceding June;

(b) in Northern Ireland (subject to the following provisions of this Act)—

(i) where the date fixed for the poll is between the first day of April and the second day of October in any year, the qualifying date shall be the thirty-first day of October in the preceding year;

(ii) where the date fixed for the poll is between the first day of October in any year and the second day of the following April, the qualifying date shall be the thirtieth day of the preceding April.

Residence.

2.—(1) For the purposes of the foregoing section, any question as to a person's residence on the qualifying date for an election shall be determined in accordance with the general principles formerly applied in determining questions arising under the Representation of the People Act, 1918, as to a person's residence on a particular day of the qualifying period, and in particular regard shall be had to the purpose and other circumstances, as well as to the fact, of his presence at or absence from the address in question.

(2) Without prejudice to the said general principles, a person's residence in a dwelling house shall not be deemed for the purposes of the foregoing section to have been interrupted—

(a) by reason of that person's absence in the performance of any duty arising from or incidental to any office, service or employment held or undertaken by him, if he intends to resume actual residence within six months of giving it up and will not be prevented by the performance of the duty aforesaid; or

(b) by reason of permission being given by, letting or otherwise for its occupation furnished by some other person—

(i) if the permission is given in the expectation that throughout the period for which it is given the person giving it or his wife or her husband will be absent in the performance of any such duty as aforesaid; or

(ii) if the first mentioned person intends to resume actual residence within nine weeks of giving it up and will not be prevented by the permission given as aforesaid.

(3) A person who is a patient in any establishment maintained wholly or mainly for the reception and treatment of persons suffering from mental illness or mental defectiveness, or who is detained in legal custody at any place, shall not by reason thereof be treated for the purposes aforesaid as resident there.

3.—(1) The provisions contained in sections four to seven of, and the Third Schedule to, the House of Commons (Redistribution of Seats) Act, 1944, as amended by section thirty-three of the Representation of the People Act, 1945, and by the House of Commons (Redistribution of Seats) Act, 1947, shall, as from the passing of this Act, be further amended as hereafter mentioned in this section, and shall accordingly have effect as set out in the Second Schedule to this Act. Adaptation of 7 & 8 Geo. 6. c. 41. 8 & 9 Geo. 6. c. 5. 10 & 11 Geo. 6. c. 10.

(2) In section four the words “ After the submission of their report under the last foregoing section ” at the beginning of subsection (1), and the words “ and the number of members which they recommend should be returned by each of them ” in subsections (1) and (3) shall be omitted, and in subsection (2) for the words “ an Act giving effect (whether with or without modifications) to the recommendations contained in the reports submitted by the Commissions under the last foregoing section ” there shall be substituted the words “ the Representation of the People Act, 1948 ”.

(3) In subsection (1) of section five, for the words “ a parliamentary county or division of a parliamentary county or a parliamentary borough or division of a parliamentary borough ” there shall be substituted the words “ a county constituency or a borough constituency ”.

(4) Section six (which excepts university constituencies from the scope of the Act) shall be omitted, and for section seven there shall be substituted the following section:—

“ 7. In this Act the expression ‘ constituency ’ means an area having separate representation in the House of Commons.”

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(5) In the Third Schedule—

(a) in rule 1, in the table showing the number of constituencies, for the words “ 591 ” there shall be substituted the words “ 613 ”;

(b) there shall be omitted—

(i) paragraph (1) of rule 2, paragraph (2) of rule 5A, and the whole of rule 3 (which relate to two-member constituencies) and in paragraph (2) of the said rule 2 the words “ other ”;

(ii) in rule 5, sub-paragraph (b) (i) of paragraph (1) (which relates to the constitution of parliamentary counties and boroughs in Scotland) and in the definition in paragraph (2) of the expression “ county ” the words “ in sub-paragraph (a) ” and the words from “ and in sub-paragraph (b) ” onwards;

(iii) rule 7 (which provides for the continuance as a separate constituency of the City of London);

(iv) in rule 8, the words “ or, in applying these rules for the purpose of section three of this Act, ” and the following words in sub-paragraph (a) (i) of paragraph (1), the words “ or any part thereof ” and the words “ or that part thereof ” and the following words in sub-paragraph (b) (i) of that paragraph and the whole of paragraph (2); and

(c) in lieu of the said rule 7 there shall be inserted immediately before rule 5 the following rule:—

“ 4A. There shall continue to be a constituency which shall include the whole of the City of London and the name of which shall refer to the City of London ”.

Registration of parliamentary electors.

Registration
officers and
areas.

4.—(1) For the registration of electors there shall be electoral registration officers (in this Act referred to as “ registration officers ”).

(2) In England and Wales, there shall be a registration officer for each constituency, and that officer shall be—

(a) in the case of a county constituency which is coterminous with or wholly contained in one county, or of a borough constituency which is coterminous with or wholly contained in a borough or urban district, the clerk of the authority for that county or that borough or district;

- (b) in any other case, the clerk of the authority for such county or such borough or urban district as the Secretary of State may by order direct;

and any two or more constituencies having the same registration officer shall together form a registration area, which shall be known by the name of the area of the authority whose clerk is registration officer.

(3) In Scotland, the assessor of any county or large burgh shall be the registration officer for any constituency or part of a constituency which is situated within that county or large burgh, and where there is more than one assessor of a county or large burgh such one of them as may be appointed by the county or town council for the purposes of this Act shall be the registration officer and all other assessors thereof shall for the said purposes be subject to and shall act on his instructions.

(4) In Northern Ireland, the county borough of Belfast and each county shall be a registration area, and the town clerk of Belfast or the secretary to the county council, as the case may be, shall be the registration officer for any constituency or part of a constituency in that area; and for the purposes of this subsection the county borough of Londonderry shall be deemed to be included in the county of Londonderry.

5.—(1) It shall be the duty of every registration officer to prepare and publish in each year, for each constituency or part of a constituency in the area for which he acts, the following registers of parliamentary electors:—

Registers of
electors.

- (a) a spring register which, except in Northern Ireland, shall be published not later than the fifteenth day of March and used for elections at which the date fixed for the poll is between that day and the second day of the following October; and
 - (b) an autumn register which, except in Northern Ireland, shall be published not later than the first day of October and used for elections at which the date fixed for the poll is between that day and the sixteenth day of the following March.
- (2) In Northern Ireland—
- (a) the spring register shall be published not later than the first day of April and used for elections at which the date fixed for the poll is between that day and the second day of the following October; and
 - (b) the autumn register shall be published not later than the first day of October and shall be used for elections at which the date fixed for the poll is between that day and the second day of the following April:

Provided that the interval in Northern Ireland between the qualifying date and the date of publication of the register

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may be altered by regulations by changing either date, and any such regulations may make such consequential provisions (including the modification of any enactment contained in this or any other Act) as may appear to the Secretary of State to be necessary.

(3) If any part of a register is not published within the time required by this section, then until the day following that on which it is published the corresponding part of the previous register (whether prepared under this Act or not) shall continue in use, and where any part of the register used at an election is a part continued in force by this subsection, this Act shall have effect in relation to the election and the area to which that part relates as if the qualifying date by reference to which that part was prepared were the qualifying date for the election.

(4) Subject to any enactment imposing any disqualification for registration as a parliamentary elector, all persons who may be entitled to vote as electors at elections for which any register is to be used shall be entitled to be registered therein:

Provided that a person who on the qualifying date has a service qualification shall not be entitled to be registered except in pursuance of a service declaration made in accordance with the next following section and in force on that date.

(5) With a view to the preparation of the register, the registration officer shall—

- (a) have a house to house or other sufficient inquiry made as to the persons entitled to be registered (excluding persons entitled to be registered in pursuance of a service declaration);
- (b) have prepared and published electors lists showing the persons appearing to him to be entitled to be registered together with their qualifying addresses;
- (c) except in Northern Ireland, determine all claims for registration duly made by any person, and all objections to any person's registration duly made by another person appearing from the electors lists to be himself entitled to be registered.

(6) In Northern Ireland all such claims and objections as aforesaid shall be determined by a revising officer, who shall be, for any area, the person having the like duty for the purpose of elections of members to serve in the House of Commons of Northern Ireland, and in relation to the determination of claims and objections in Northern Ireland references in this Act to the registration officer shall be construed as references to the revising officer.

6.—(1) The following persons shall have a service qualification for the purpose of this Act, namely,—

- (a) any person who is a member of the forces;
- (b) any person who is employed in the service of the Crown in a post outside the United Kingdom of any prescribed class or description;
- (c) any woman who is the wife of a person having a service qualification and is residing outside the United Kingdom to be with her husband;

so, however, that where a person leaves the United Kingdom to take up employment or residence as aforesaid or returns to the United Kingdom at the end of such employment or residence, the employment or residence shall be deemed to begin from the time of leaving or to continue until the time of returning, as the case may be.

(2) A service declaration shall be made only by a person who has a service qualification or, subject to any prescribed conditions, by a person about to leave the United Kingdom in such circumstances as to acquire a service qualification.

(3) A service declaration may be made by such a person notwithstanding the fact that by reason of his age he is not yet entitled to be registered or to vote.

(4) A service declaration shall state—

- (a) the date of the declaration, and that on that date the declarant was a British subject; and
- (b) whether the declarant had on the date of the declaration attained the age of twenty-one years, and, if he had not, the date of his birth; and
- (c) that on the date of the declaration the declarant was, or but for the circumstances entitling him to make the declaration would have been, residing at an address specified in the declaration; and
- (d) such particulars (if any) as may be prescribed of the declarant's identity and service qualification;

and shall be attested in the prescribed manner.

(5) A person whose service declaration is in force on the qualifying date—

- (a) shall be treated for the purposes of registration as resident at the address specified in the declaration; and
- (b) shall, until the contrary is proved, be treated also for those purposes as being a British subject of the age appearing from the declaration and as not being subject to any legal incapacity except as appears therefrom.

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(6) Where a service declaration appearing to be properly made out and attested is transmitted to the registration officer in the proper manner, the declarant shall, until the contrary is proved, be treated for the purposes of registration as having had from the date of the declaration or such later date if any as appears therefrom, and as continuing to have, a service qualification.

(7) If a person makes a service declaration declaring to more than one address, or makes more than one service declaration bearing the same date and declaring to different addresses, the declaration or declarations shall be void.

(8) A service declaration may at any time be cancelled by the declarant and, subject to the last foregoing subsection, a service declaration bearing a later date shall, without any express cancellation, cancel a declaration bearing an earlier date.

(9) A service declaration, if not cancelled, shall continue in force so long as the declarant has a service qualification, except in so far as regulations provide that it shall cease to be in force on a change in the circumstances giving the service qualification.

(10) Any person who—

(a) makes a service declaration—

(i) when he is not authorised so to do by subsection (2) of this section; or

(ii) except as permitted by this Act, when he knows that he is subject to a legal incapacity to vote; or

(iii) when he knows that it contains a statement which is false; or

(b) attests a service declaration when he knows that he is not authorised to do so or that it contains a false statement as to any particulars required by regulations under this section;

shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both, or on conviction on indictment to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding six months or to both.

Place and manner of voting at parliamentary elections.

Polling districts and polling places. 7.—(1) Every constituency shall be divided into polling districts and, subject to the provisions of this section, there shall be a polling place designated for each polling district.

(2) It shall be the duty, in England and Wales, of the local authority whose clerk is registration officer and, in Scotland,

of the returning officer to make the division into polling districts and to designate the polling places, and to keep the polling districts and polling places under review, in accordance with the following rules, that is to say:—

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- (a) the local authority or returning officer shall exercise the powers conferred by this section with a view to giving all electors in the constituency such reasonable facilities for voting as are practicable in the circumstances;
- (b) in the case of a county constituency, each parish or, in Scotland, each electoral division shall in the absence of special circumstances be a separate polling district or districts;
- (c) the polling place for any polling district shall be an area in that district, except where special circumstances make it desirable to designate an area wholly or partly outside the polling district, and shall be small enough to indicate to electors in different parts of the polling district how they will be able to reach the polling station;
- (d) a polling place need not be designated for any polling district, if the size and other circumstances of the district are such that the situation of the polling stations does not materially affect the convenience of the electors or any body of them;
- (e) before deciding on any scheme relating to the division into polling districts of a constituency wholly or partly in the county of London, the local authority shall send a draft of the scheme to the London County Council and take into consideration any representations made to them by that council.

(3) In the case of a polling district for which no polling place is designated, the polling district shall be taken to be the polling place for the purpose of the enactments relating to parliamentary elections.

(4) If any interested authority or not less than thirty electors in a constituency make a representation to the Secretary of State that the powers conferred by this section have not been exercised so as to meet the reasonable requirements of the electors in the constituency or any body of those electors, the Secretary of State shall consider the representation and may, if he thinks fit,—

- (a) direct the local authority or, in Scotland, returning officer by whom the powers are exercisable to make any alterations which the Secretary of State thinks necessary in the circumstances; and

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- (b) if the local authority or returning officer fails to make those alterations within a month after the direction is given, himself make the alterations;

and any alterations made by the Secretary of State under this subsection shall have effect as if they had been made by the local authority or returning officer.

In this subsection the expression "interested authority" means a local authority within whose area the constituency is wholly or partly situated, and for the purposes of this definition the expression "local authority" means as respects England and Wales any county, borough, district or parish council (or, where there is no parish council, parish meeting), and as respects Scotland any county, town or district council.

(5) On the exercise of any power given by this section the local authority or returning officer shall publish in the constituency a notice showing the boundaries of any polling districts or polling places constituted as a result of the exercise of the power and, unless the power was exercised by the Secretary of State, shall also send him a report giving the same information.

(6) Subsections (2) to (5) of this section shall not apply to Northern Ireland, and in Northern Ireland the polling districts and polling places shall be those for the time being established under the law relating to the election of members to serve in the House of Commons of Northern Ireland.

(7) Regulations may provide for adapting the register in force for the time being to any alteration of polling districts, and may make special provision for cases where any alteration of polling districts is made between the publication of any electors lists and the coming into force of the register prepared from those lists, but except in cases for which provision is so made by regulations an alteration of polling districts shall not be effective until the coming into force of the first register prepared from electors lists published after the alteration is made.

(8) An election shall not be questioned by reason of any non-compliance with the provisions of this section or any informality relative to polling districts or polling places.

8.—(1) All persons voting as electors at a parliamentary election shall do so in person at the polling station allotted to them under the Ballot Act, 1872, except in so far as this section makes exceptions for—

- (a) those registered as service voters;

(b) those unable or likely to be unable to go in person to the polling station for one of the following reasons:—

(i) the general nature of the occupation, service or employment of the person in question;

(ii) that person's service as a member of any of His Majesty's reserve or auxiliary forces;

(iii) the particular circumstances of that person's employment on the date of the poll either as a constable or, for a purpose connected with the election, by the returning officer;

(iv) at a general election, the candidature in some other constituency of that person or that person's wife or husband;

(v) at a general election, the fact that that person is acting as returning officer for some other constituency;

(vi) at a general election, the particular circumstances of that person's employment on the date of the poll by the returning officer for some other constituency for a purpose connected with the election in that constituency;

(c) those unable or likely to be unable, by reason either of blindness or any other physical incapacity, to go in person to the polling station or, if able to go, to vote unaided;

(d) those unable or likely to be unable to go in person from their qualifying address to the polling station without making a journey by air or sea;

(e) those no longer residing at their qualifying address.

(2) A person registered as a service voter may vote by proxy unless either—

(a) he is entitled in pursuance of an application made under subsection (4) of this section to vote by post; or

(b) he applies for a ballot paper to vote in person before a ballot paper has been issued for him to vote by proxy;

but (where there is in force an appointment of a proxy to vote for him) shall not be entitled to vote in person unless he does so apply.

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(3) A person not registered as a service voter if unable or likely to be unable to go in person to the polling station by reason either—

- (a) of the general nature of his occupation, service or employment; or
- (b) of his service as a member of any of His Majesty's reserve or auxiliary forces;

may vote by proxy if he applies to be treated as an absent voter and is likely to be at sea or out of the United Kingdom on the date of the poll.

(4) Any of the persons mentioned in paragraphs (a) to (e) of subsection (1) of this section may vote by post if he applies to be treated as an absent voter and furnishes an address in the United Kingdom to which a ballot paper is to be sent for the purpose:

Provided that—

- (a) a person shall not be entitled to vote by post if he is not registered as a service voter and there is in force an appointment of a proxy to vote for him; and
- (b) a person shall not be entitled to vote by post on the ground that he no longer resides at his qualifying address if at the time of his application he resides at an address in the same area; and
- (c) a person registered as a service voter shall not be entitled to vote by post on any ground other than his being so registered.

(5) At an election for which a person's application to be treated as an absent voter is allowed, he shall not be entitled to vote in person.

(6) A person not registered as a service voter, if he is entitled to vote in person, but unable or likely to be unable to go in person to the polling station allotted to him by reason of the particular circumstances of his employment on the date of the poll either as a constable or, for a purpose connected with the election, by the returning officer, may vote at any polling station of the constituency.

(7) For the purposes of subsection (4) of this section, two addresses shall be deemed to be in the same area if they satisfy one of the following conditions, but not otherwise, that is to say—

- (a) both are within the area of the same borough or urban district;
- (b) both are within the area of the same parish in England or Wales, or of the same electoral division in Scotland, or of the same rural district in Northern Ireland.

(8) Nothing in this section shall be taken as conferring a right to vote on a person not having the right apart from this section.

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9.—(1) An application to be treated as an absent voter at parliamentary elections shall be made to the registration officer and shall be allowed by him if he is satisfied that the applicant is, or will if registered be, entitled under the last foregoing section to vote as an absent voter.

Determination
of right to be
treated as
absent voter

(2) The application shall be for a particular election only, unless it is based on—

- (a) the general nature of the applicant's occupation, service or employment; or
- (b) the applicant's physical incapacity; or
- (c) the necessity of a journey by sea or air to go from the applicant's qualifying address to his polling station; or
- (d) the ground that the applicant no longer resides at his qualifying address.

(3) An application based on one of the grounds mentioned in the last foregoing subsection shall be for an indefinite period but, where such an application is allowed, the applicant shall cease to be entitled to be treated as an absent voter in pursuance thereof if—

- (a) he applies to the registration officer to be no longer so treated; or
- (b) he ceases to be registered at the same qualifying address or becomes so registered as a service voter; or
- (c) the registration officer gives notice that he has reason to believe there has been a material change of circumstances, and the prescribed period elapses after the giving of the notice.

(4) The registration officer shall keep a record of absent voters and of the addresses furnished by them as the addresses to which their ballot papers are to be sent.

10.—(1) A person shall not be entitled to have more than one person at a time appointed as proxy to vote for him at parliamentary elections.

Proxies.

(2) A person shall not be capable of being appointed to vote, or voting, as proxy at a parliamentary election unless he is a British subject of full age and not subject to any legal incapacity to vote thereat as an elector, and a person shall not be entitled to vote as proxy at the same election in any constituency on behalf of more than two electors of whom

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—cont.

that person is not the husband, wife, parent, grandparent, brother, sister, child or grandchild.

(3) Subject to the foregoing provisions of this section, any person shall be capable of being appointed proxy to vote at a parliamentary election and may vote in pursuance of the appointment.

(4) The appointment shall be made by the registration officer by means of a proxy paper issued by him on the application of the elector, and it shall be the duty of the registration officer to issue a proxy paper in pursuance of any application duly made to him, if he is satisfied—

(a) that the applicant is or will be registered for elections to which the application relates and entitled in respect of that registration to have a proxy appointed; and

(b) that the proxy is capable of being and willing to be appointed.

(5) The appointment may be cancelled by the elector by giving notice to the registration officer and shall cease to be in force on the issue of a proxy paper appointing a different person to vote for him, whether in respect of the same registration or elsewhere, but, subject to that, shall remain in force—

(a) in the case of an appointment for a person registered as a service voter, for all elections for which he is registered in pursuance of the same service declaration; and

(b) in the case of an appointment for a person not registered as a service voter, for all elections at which he is entitled to vote by proxy in pursuance of the same application to be treated as an absent voter.

(6) Stamp duty shall not be chargeable on any instrument appointing a proxy under this section.

(7) The registration officer shall keep a record of electors for whom proxies have been appointed and of the names and addresses of the persons appointed.

Place and
manner of
voting as
proxy.

11.—(1) A person voting as proxy for an elector at a parliamentary election shall do so in person at the elector's polling station, except in so far as this section entitles the proxy of a person registered as a service voter (in this section referred to as "a service voter's proxy") to vote by post.

(2) A service voter's proxy may exercise the right to vote as such at a parliamentary election by post if—

(a) he applies so to do and furnishes an address in the United Kingdom to which a ballot paper is to be sent for the purpose; and

(b) either—

(i) he is entitled to vote by post as an absent voter at the election; or

(ii) the said address is not in the same area as the service voter's qualifying address.

(3) For the purposes of this section, two addresses shall be deemed to be in the same area if they satisfy one of the following conditions, but not otherwise, that is to say—

(a) both are within the area of the same borough or urban district;

(b) both are within the area of the same parish in England or Wales, or of the same electoral division in Scotland, or of the same rural district in Northern Ireland.

(4) A service voter's proxy shall not be entitled to exercise the right to vote as such in person at any election for which his application to exercise that right by post is allowed.

(5) Any such application shall be made to the registration officer and shall be allowed by him in any case where he is satisfied that the service voter is or will be registered as such for elections to which the application relates, and that there is in force an appointment of the applicant as his proxy to vote in respect of that registration, and that the conditions entitling the applicant to vote by post are fulfilled.

(6) Where any such application is based on the applicant's right to vote by post as an elector, then—

(a) if that right extends only to a particular election, the application shall also extend only to that election;

(b) in any other case, the application shall be for an indefinite period but, where it is allowed, the applicant shall cease to be entitled to vote by post in pursuance thereof if—

(i) he ceases to have the right to vote by post as an elector, or has that right only by virtue of a new application; or

(ii) he ceases to be proxy for the service voter, or is so only by virtue of a new appointment.

(7) Where any such application is based on the situation of the address to which the ballot paper is to be sent, it shall be for an indefinite period but, if it is allowed, the applicant shall cease to be entitled to vote by post in pursuance thereof if—

(a) he applies for a ballot paper not to be sent to that address; or

(b) he ceases to be proxy for the service voter, or is so only by virtue of a new appointment.

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(8) The registration officer shall keep a record of the persons whose applications to vote by post as proxy are for the time being allowed and of the addresses furnished by them as the addresses to which their ballot papers are to be sent.

Conduct of parliamentary elections.

Timetable
and
procedure.

12.—(1) The proceedings at a parliamentary election shall be conducted in accordance with the timetable laid down for general elections and bye-elections respectively by the first and second, and by the first and third, columns of Part I of the Third Schedule to this Act, and Parts II to V of that Schedule (which replace section one of, and rules 1 to 13 of the First Schedule to, the Ballot Act, 1872, as to nomination, and replace or amend the enactments as to matters after nomination) shall have effect with respect to those proceedings.

(2) No parliamentary election shall be declared invalid by reason of any act or omission of the returning officer or any other person in breach of his official duty in connection with the election or otherwise of the rules contained in either of the said Schedules if it appears to the tribunal having cognizance of the question that the election was so conducted as to be substantially in accordance with the law as to elections and that the act or omission did not affect its result.

Effect of
register, etc.

13.—(1) The register of parliamentary electors shall for the purposes of this Part of this Act be conclusive on the following questions:—

- (a) whether or not a person registered therein was on the qualifying date resident at the address shown;
- (b) whether or not that address is in any constituency or any particular part of a constituency;
- (c) whether or not a person registered therein is registered as a service voter.

(2) The relevant special lists prepared under this Act for a parliamentary election shall, for the purposes aforesaid, be conclusive on the following questions:—

- (a) whether or not a person's right to vote is exercisable by post;
- (b) whether or not there is in force an appointment of a proxy to vote for any person, and (if so) who is appointed.

(3) A person registered as a parliamentary elector, or entered in the list of proxies, shall not be excluded from voting on the ground that he is not a British subject or is not of full age or is otherwise subject to any legal incapacity to vote, or that on the qualifying date or the date of his appointment, as the case may be, he was not a British subject or was not of full age or was otherwise subject to any legal

incapacity to vote; but this provision shall not prevent the rejection of the vote on a scrutiny or affect his liability to any penalty for voting.

(4) No misnomer or inaccurate description of any person or place named in the register of parliamentary electors or in any list, record, proxy paper, nomination paper, ballot paper, notice or other document required for the purposes of the Ballot Act, 1872, or this Part of this Act shall affect the full operation of the document with respect to that person or place, in any case where the description of the person or place is such as to be commonly understood.

14.—(1) Where, after the counting of the votes by the returning officer (including any re-count) is completed, an equality of votes is found to exist between any candidates at a parliamentary election in any constituency, and the addition of a vote would entitle any of those candidates to be declared elected, the returning officer shall not be entitled to a casting vote but shall forthwith decide between those candidates by lot, and proceed as if the candidate on whom the lot falls had received an additional vote.

Decision by
lot in event
of tie.

(2) Where, on an election petition, it appears that there is an equality of votes between any candidates at a parliamentary election, and that the addition of a vote would entitle any of those candidates to be declared elected, then—

- (a) any decision under the foregoing subsection shall, in so far as it determines the question between those candidates, be effective also for the purposes of the petition; and
- (b) in so far as that question is not determined by such a decision, the court shall decide between them by lot and proceed as if the one on whom the lot then falls had received an additional vote.

15.—(1) The deposit made under the Third Schedule to this Act by or on behalf of a candidate in connection with his nomination shall either be returned to the person making it or his personal representatives or be forfeited to His Majesty.

Return or
forfeiture of
candidate's
deposit.

(2) Except in the cases hereafter mentioned in this section, the deposit shall be returned as soon as practicable after the result of the election is declared.

(3) If the candidate is not shown as standing nominated in the statement of persons nominated, or if the poll is countermanded by reason of his death, the deposit shall be returned as soon as practicable after publication of the statement or after his death, as the case may be.

11 O

PART I.
—cont.

(4) Subject to the last foregoing subsection, the deposit shall be forfeited if a poll is taken and, after the counting of the votes by the returning officer (including any re-count) is completed, the candidate is found not to have polled more than one-eighth of the total number of votes polled by all the candidates.

(5) Notwithstanding anything in the three last foregoing subsections, if at a general election a candidate is shown as standing nominated in more than one constituency in the statements of persons nominated, not more than one of the deposits shall be returned and, if necessary, the Treasury shall direct which it is to be.

Returning
officers.

16.—(1) In England and Wales, the returning officer for a parliamentary election shall be—

- (a) in the case of a county constituency which is coterminous with or wholly contained in one county, or of a borough constituency which is coterminous with or wholly contained in a county of a city or town having a sheriff, the sheriff of the county or of the city or town;
- (b) in the case of any other borough constituency which is coterminous with or wholly contained in a borough or urban district, the mayor or chairman of the urban district council;
- (c) in any other case, such sheriff, mayor or chairman of an urban district council as may be designated by the Secretary of State.

(2) In Scotland, the returning officer for a parliamentary election shall be—

- (a) in the case of a constituency wholly situated in one sheriffdom, the sheriff of that sheriffdom; and
- (b) in the case of a constituency situated in more than one sheriffdom, the sheriff of such one of those sheriffdoms as the Secretary of State may by order direct.

(3) In Northern Ireland, the returning officer for a parliamentary election shall be—

- (a) in the case of a constituency wholly contained in the county borough of Belfast or any county, the under-sheriff of that county borough or county; and
- (b) in any other case, such under-sheriff as the Secretary of State may by order direct;

and for the purposes of this subsection the county borough of Londonderry shall be deemed to be included in the county of Londonderry.

(4) The execution of the writ for a parliamentary election shall belong to the returning officer as such and the writ shall be directed to him by the title of his office as returning officer, and that office shall be a distinct office from that by virtue of which he becomes returning officer.

(5) Where a person enters on any office by virtue of which he becomes returning officer, it shall belong to him and not to the outgoing holder of that office to complete the execution of any writ for a parliamentary election previously issued and not yet returned.

17.—(1) In England and Wales, the duties of the returning officer for parliamentary elections except—

Discharge of
functions of
returning
officer.

- (a) any duty imposed on a returning officer under Part II of the Parliament (Elections and Meeting) Act, 1943, (which deals with the delivery of parliamentary writs and matters connected therewith); and
- (b) any other duties which the person (if any) who for the time being holds the office of returning officer reserves to himself and undertakes to perform in person;

6 & 7 Geo. 6.
c. 48.

shall be discharged by the registration officer (or the person authorised to act as registration officer if the registration officer himself is incapable of acting or there is a vacancy) as acting returning officer; and so shall any such duties as are mentioned in paragraph (b) of this subsection, if for the time being the returning officer is for any reason incapable of discharging his duties as such, or is under any enactment discharged from personally performing the office by virtue of which he is returning officer.

(2) The returning officer shall give to the acting returning officer written notice of any duties which he reserves to himself under paragraph (b) of the foregoing subsection, and that paragraph shall, in the case of any election, apply to the duties (if any) of which notice is so given not later than the day following that on which the writ is received, and to no others.

(3) An acting returning officer, in the discharge of the duties imposed on him by subsection (1) of this section shall have all the powers, obligations, rights and liabilities of the returning officer under any enactment relating to parliamentary elections, and those enactments (including this Act) shall have effect accordingly.

(4) An acting returning officer shall have power to appoint deputies to discharge all or any of the said duties, but the

PART I.
—cont.

appointment shall require the approval of the Secretary of State, where the powers of the deputy extend—

(a) to matters other than the receipt of nomination papers and matters connected therewith; or

(b) to the taking or deciding of objections to nomination papers.

(5) A returning officer at a parliamentary election in England or Wales shall not be disqualified by reason of being returning officer for being a candidate at the election, unless he has reserved to himself any duties at the election which would otherwise be imposed by subsection (1) of this section on the acting returning officer.

(6) In Scotland, the power of appointing deputies conferred by section eight of the Ballot Act, 1872, on certain sheriffs shall be exercisable by any sheriff who—

(a) is returning officer for more than one constituency; or

(b) by reason of sickness or unavoidable absence is incapacitated from performing any of the duties devolving upon him as returning officer;

and in the event of no such appointment being made by a sheriff so incapacitated, or in the event of any vacancy in the office of sheriff at the time when any of such duties require to be performed, the senior sheriff substitute of the sheriffdom the sheriff of which is returning officer for the constituency shall act as returning officer, and shall perform all the duties and have all the powers (including the power of appointing deputies) of such returning officer.

(7) In Northern Ireland, the power of appointing deputies conferred by the said section eight shall be exercisable by any under-sheriff who—

(a) is returning officer for more than one constituency; or

(b) by reason of sickness or unavoidable absence is incapacitated from performing any of the duties devolving upon him as returning officer;

and in the event of no such appointment being made by an under-sheriff so incapacitated, or in the event of any vacancy in the office of any under-sheriff at the time when any of such duties require to be performed, such person as the Secretary of State may appoint shall act as returning officer and shall perform all the duties and have all the powers (including the power of appointing deputies) of such returning officer.

(8) No person shall be subject to any incapacity to vote at a parliamentary election by reason of his being or acting as returning officer thereat, and section twenty-one of the

Sheriff Courts (Scotland) Act, 1907, in so far as it enacts that no sheriff or salaried sheriff substitute shall be entitled to vote at a parliamentary election held within his sheriffdom shall cease to have effect. PART I.
—cont.
7 Edw. 7. c. 51.

(9) Section thirty-six of the Representation of the People (Scotland) Act, 1832, in so far as it prohibits a sheriff clerk or deputy sheriff clerk from voting at parliamentary elections shall cease to have effect. 2 & 3 Will. 4.
c. 65.

18.—(1) No consideration shall be given by or to a returning officer for the making out, receipt, delivery or return of the writ for a parliamentary election or, subject to the following provisions of this section, otherwise in connection with the execution thereof: Payments by
and to
returning
officer.

Provided that nothing in this subsection shall be taken as applying to any inclusive salary payable to a returning officer in respect of the office by virtue of which he becomes returning officer.

(2) The Treasury shall by statutory instrument prescribe a scale of maximum charges in respect of services rendered and expenses incurred by a returning officer for the purposes of or in connection with parliamentary elections, and may revise the scale as and when they think fit.

(3) A returning officer shall be entitled to his reasonable charges, not exceeding the sums specified in the said scale, in respect of services and expenses of the several kinds so specified which have been properly rendered or incurred by him for the purposes of or in connection with a parliamentary election.

(4) The amount of any such charges shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof on an account being submitted to the Treasury:

Provided that the Treasury may if they think fit, before payment, apply for the account to be taxed under the following provisions of this section.

(5) On the request of the returning officer for an advance on account of his charges, the Treasury may, if they think fit, and on such terms as they think fit, make such an advance.

(6) The Treasury may make regulations as to the time when and manner and form in which accounts are to be rendered to them for the purpose of the payment of a returning officer's charges.

(7) An application for a returning officer's account to be taxed shall be made—

- (a) where the account relates to an election in a constituency in England, in Wales or in Northern Ireland, to the county court;

PART I.
—cont.

- (b) where the account relates to an election in a constituency in Scotland, to the Auditor of the Court of Session;

and in the following provisions of this section the expression "the court" means the said court or Auditor.

(8) On any such application the court shall have jurisdiction to tax the account in such manner and at such time and place as the court thinks fit, and finally to determine the amount payable to the returning officer.

(9) On any such application the returning officer may apply to the court to examine any claim made by any person against him in respect of matters charged in the account; and the court, after notice given to the claimant and after giving him an opportunity to be heard and to tender any evidence, may allow or disallow or reduce the claim objected to with or without costs; and the determination of the court shall be final for all purposes and as against all persons.

(10) Any reference in this section to the county court shall be taken, in relation to Northern Ireland, as a reference to the county court having jurisdiction at the place for the delivery of nomination papers at the election in question.

Supplementary.

Infringements
of secrecy
and tampering
with postal
votes.

19.—(1) Section four of the Ballot Act, 1872 (which penalises infringements of the secrecy of voting) shall apply to a candidate or a candidate's election agent attending at a polling station in the exercise of the rights conferred on them respectively by that Act and this Act, and to all persons attending at the counting of the votes, as it applies to an officer or clerk so attending; and, when that section is read to a person to whom it applies by virtue of this subsection on his making a declaration of secrecy under the said Act, it shall be read with such modifications as are necessary to show how it applies to him.

(2) Every person attending the proceedings in connection with the issue or the receipt of ballot papers for persons voting by post at parliamentary elections shall maintain and aid in maintaining the secrecy of the voting and shall not—

(a) except for some purpose authorised by law, communicate, before the poll is closed, to any person any information obtained at those proceedings as to the official mark; nor

(b) except for some purpose authorised by law, communicate to any person at any time any information obtained at those proceedings as to the number on the back of the ballot paper sent to any person; nor

- (c) except for some purpose authorised by law, attempt to ascertain at the proceedings in connection with the receipt of the ballot papers the number on the back of any ballot paper; nor
- (d) attempt to ascertain at the proceedings in connection with the receipt of the ballot papers the candidate for whom any vote is given in any particular ballot paper or communicate any information with respect thereto obtained at those proceedings;

and any person who acts in contravention of this subsection shall be liable, on summary conviction, to imprisonment for any term not exceeding six months.

(3) Where any person fraudulently defaces, or fraudulently destroys, or attempts so to deface or destroy, any declaration of identity or official envelope used in connection with voting by post at a parliamentary election, section three of the Ballot Act, 1872, (which penalises the like offences in relation to ballot papers) shall apply as if the declaration or envelope were a ballot paper.

(4) The reference in the said section three to a clerk in attendance at a polling station shall include a reference to a clerk in attendance at the proceedings in connection with the issue or receipt of ballot papers for persons voting by post at a parliamentary election.

20.—(1) If any person to whom this section applies, or who is for the time being under a duty to discharge as deputy or otherwise any of the functions of such a person, is, without reasonable cause, guilty of any act or omission in breach of his official duty, then, subject to subsection (4) of this section, he shall be liable, on summary conviction, to a fine not exceeding one hundred pounds.

(2) No person to whom this section applies shall be liable for breach of his official duty to any penalty at common law or under any enactment except as provided by this section, nor shall any action for damages lie in respect of the breach by any such person of his official duty.

(3) The persons to whom this section applies are the Clerk of the Crown in Chancery, any sheriff clerk, any registration officer, returning officer, presiding officer or clerk or assistant employed by such an officer in connection with his official duties and any postmaster; and the expression "official duty" shall for the purposes of this section be construed accordingly, but shall not include duties imposed otherwise than by the law relating to parliamentary elections or the registration of parliamentary electors.

(4) Nothing in this section shall affect any person's criminal liability under the last foregoing section or the enactments

PART I.

—cont.

30 & 31 Vict.

c. 102.

31 & 32 Vict.

c. 49.

therein mentioned, or under section fifty of the Representation of the People Act, 1867, or section thirteen of the Representation of the People (Ireland) Act, 1868 (which as extended by the Ballot Act, 1872, prohibit the returning officer and officers appointed by him from acting as agent for a candidate), or shall, in Scotland, impose liability to summary prosecution on a returning officer or any person under a duty to discharge the functions of a returning officer.

PART II.

GENERAL PROVISIONS AS TO LOCAL GOVERNMENT FRANCHISE
AND ITS EXERCISE*Local government franchise*

Electors.

21.—(1) The persons entitled to vote as electors at a local government election in any electoral area shall be those who—

(a) on the qualifying date either—

(i) are resident in the area; or

(ii) under the following provisions of this section have a non-resident qualification therein; and

(b) are in either case on that date and on the date of the poll, British subjects of full age and not subject to any legal incapacity to vote:

Provided that a person shall not be entitled to vote as an elector in any electoral area, unless registered there in the register of local government electors to be used at the election nor, at an ordinary election for any local government area which is not a single electoral area, to vote as an elector in more than one electoral area.

(2) In England and Wales, a person shall be deemed for the purposes of this section to have a non-resident qualification in an area if he is occupying as owner or tenant any rateable land or premises therein of the yearly value of not less than ten pounds.

(3) In Scotland, a person shall be deemed to have a non-resident qualification in an area if he is the owner, or occupier as tenant, of any lands and heritages within the area which are of the yearly value of not less than ten pounds and in respect of which rates are payable.

(4) The qualifying date for a local government election shall be determined by reference to the date fixed for the poll in the same way as if it were a parliamentary election.

22.—(1) For the purposes of the last foregoing section—

(a) section two of this Act shall apply as it applies for the purposes of the parliamentary franchise; and

(b) the following provisions of this section shall have effect in relation to the non-resident qualification.

Residence,
occupation,
etc.

(2) A person's occupation of a dwelling house shall not be deemed to be interrupted by reason only of permission being given by letting or otherwise for its occupation furnished by some other person, if the first mentioned person intends to resume actual occupation within nine weeks of giving it up and will not be prevented by the permission given as aforesaid.

(3) In England and Wales,—

(a) the expression "tenant"—

(i) shall not include a tenant of a dwelling house let to him furnished for a term of less than nine weeks, or of any room or rooms let to him furnished and occupied by him as a lodger; but

(ii) shall include a tenant of a dwelling house holding over after notice to quit has been given and possession has been demanded by the landlord;

(b) the expression "rateable" means liable for the time being to be rated to the general rate or to any rate expressed by the Act creating it to be in the nature of a general rate, except that in relation to the City of London it means liable for the time being to be rated to the poor rate; and

(c) the yearly value of any land or premises shall be determined in accordance with section eighty of the Local Government Act, 1929 (which provides for determining it for the purposes of the Representation of the People Act, 1918). 19 & 20 Geo. 6. c. 17.

(4) In the case of a joint occupation of any land or premises in an electoral area in England or Wales, each of the joint occupiers shall be treated as occupying land or premises therein of the yearly value of not less than ten pounds, if the aggregate yearly value of the land or premises is not less than the amount produced by multiplying ten pounds by the number of joint occupiers.

(5) Where, in Scotland, any lands and heritages are owned or occupied by two or more persons jointly and the aggregate yearly value of such lands and heritages is not less than the amount produced by multiplying ten pounds by the number of owners or occupiers as the case may be, each of them shall be treated as owning or occupying, as the case may be, lands and heritages of the yearly value of ten pounds.

(6) In the application of this and the last foregoing section to Scotland,—

(a) the expression "owner"—

(i) shall include heir of entail in possession, life-renter and beneficiary entitled under any trust to the rents and profits of lands and heritages; and

PART II.
—cont.

(ii) shall not include the *fiar* of lands and heritages subject to a liferent, or tutor, curator, judicial factor, or commissioners;
and the expression "own" shall be construed accordingly;

- (b) the expression "tenant" shall not include a tenant—
 - (i) of a dwelling house let to him furnished for a term of less than nine weeks; or
 - (ii) of any room or rooms let to him furnished and occupied by him as a lodger;
- (c) the expression "lands and heritages" shall have the like meaning as in the Lands Valuation (Scotland) Act, 1854; and
- (d) the expression "yearly value" in relation to any lands and heritages shall mean in the case where the lands and heritages are separately entered in the valuation roll the gross annual value appearing therein, and in any other case the gross annual value which would in the opinion of the registration officer be entered in the valuation roll, if the lands and heritages were separately entered therein.

17 & 18 Vict.
c. 91.

Registration.

23.—(1) It shall be the duty of a registration officer to prepare for the local government areas or parts of local government areas included in the area for which he acts a register of local government electors whenever he prepares a register of parliamentary electors.

(2) The two registers shall so far as practicable be combined, the names of persons registered only as local government electors being marked to indicate that fact.

(3) The elections for which any register of local government electors is to be used shall be determined by reference to the date fixed for the poll in the same way as in the case of the register of parliamentary electors.

(4) Subject to any enactment imposing any disqualification for registration as a local government elector, all persons who may be entitled to vote as electors at elections for which any register is to be used shall be entitled to be registered therein:

Provided that—

- (a) a person shall not be entitled to be registered more than once in any local government area; and
- (b) a person who on the qualifying date has a service qualification shall not be entitled to be registered as resident in any local government area, except in pursuance of a service declaration such as is mentioned in the next following subsection and in force on that date.

(5) The service declaration in pursuance of which a person having a service qualification may be registered as a local government elector shall—

- (a) except in the case of a person who is as a peer subject to a legal incapacity to vote at parliamentary elections, be the service declaration (if any) made by him for the purpose of parliamentary elections; and
- (b) in the case of such a person as aforesaid, be a declaration marked to show that it is available for local government elections only, but in all other respects the same as other service declarations.

(6) A person entitled as a resident to be registered as a local government elector in any local government area shall not be entitled to be so registered as a non-resident.

(7) Subsections (3) and (5) of section five and section six of this Act shall apply for the purposes of this Part thereof as they apply for the purposes of Part I thereof.

Place and manner of voting at local government elections.

24. At any local government election the polling station allotted to electors from any parliamentary polling district wholly or partly within the electoral area shall, in the absence of special circumstances, be in the parliamentary polling place for that district, unless the polling place is outside the electoral area; and any power to constitute polling districts for the purpose of local government elections shall be exercised with that in view.

25.—(1) All persons voting as electors at a local government election shall do so in person at the polling station allotted to them under the local elections rules, except in so far as this section makes exceptions for—

- (a) those registered as service voters;
- (b) those unable or likely to be unable to go in person to the polling station for one of the following reasons:—
 - (i) the general nature of the occupation, service or employment of the person in question;
 - (ii) that person's service as a member of His Majesty's reserve or auxiliary forces;
 - (iii) the particular circumstances of that person's employment on the date of the poll either as a constable or, for a purpose connected with the election, by the returning officer;
 - (iv) at an ordinary election, the fact that that person is acting as returning officer at an ordinary

PART II.
—*cont.*

election of councillors for some other electoral area;

(v) at an ordinary election, the particular circumstances of that person's employment on the date of the poll by the returning officer at an ordinary election of councillors for some other electoral area for a purpose connected with the election in that area;

(c) those unable or likely to be unable, by reason either of blindness or any other physical incapacity, to go in person to the polling station or, if able to go, to vote unaided;

(d) those unable or likely to be unable to go in person from their qualifying address to the polling station without making a journey by air or sea.

(2) A person registered as a service voter may at any local government election vote by proxy unless he applies for a ballot paper to vote in person before a ballot paper has been issued for him to vote by proxy, but (where there is in force an appointment of a proxy to vote for him) shall not be entitled to vote in person unless he does so apply.

(3) Where—

(a) a person is registered at the same qualifying address both as a parliamentary and as a local government elector, and is not so registered as a service voter; and

(b) there is in force an appointment of a proxy to vote for him at parliamentary elections in respect of that registration, being an appointment based on the general nature of his occupation, service or employment;

then, in respect of that registration, at local government elections at which postal voting is allowed, he shall be treated as an absent voter and may vote by proxy and not otherwise.

(4) Subject to the last foregoing subsection, any of the persons mentioned in paragraphs (b) to (d) of subsection (1) of this section who is not registered as a service voter, may vote by post at any local government election at which postal voting is allowed, if he applies to be treated as an absent voter and furnishes an address in the United Kingdom to which a ballot paper is to be sent for the purpose.

(5) At an election for which a person's application to be treated as an absent voter is allowed, he shall not be entitled to vote in person.

(6) A person not registered as a service voter, if he is entitled to vote in person, but unable or likely to be unable

to go in person to the polling station allotted to him by reason of the particular circumstances of his employment on the date of the poll either as a constable or, for a purpose connected with the election, by the returning officer, may vote at any polling station of the electoral area.

(7) Postal voting shall be allowed at all local government elections except, in England and Wales, elections of rural district or parish councillors.

(8) Nothing in this section shall be taken as conferring a right to vote on a person not having the right apart from this section.

(9) In this and the next following section, references to employment by a returning officer shall be taken as including, in relation to elections in a borough in England or Wales other than a metropolitan borough, references to employment by the mayor or any person acting in place of the mayor by virtue of paragraph 10 of Part I of the local elections rules.

26.—(1) An application to be treated as an absent voter at local government elections shall be made to the registration officer and shall be allowed by him if he is satisfied that the applicant is, or will if registered be, entitled under the last foregoing section to vote as an absent voter. Voting by post by absent voters.

(2) The application shall be for a particular election only, if it is based on—

- (a) the applicant's service as a member of any of His Majesty's reserve or auxiliary forces; or
- (b) the fact that the applicant is acting as returning officer in some other electoral area; or
- (c) the particular circumstances of the applicant's employment on the date of the poll either as a constable or by a returning officer.

(3) An application not based on one of the grounds mentioned in the last foregoing subsection shall be for an indefinite period but, where such an application is allowed, the applicant shall cease to be entitled to be treated as an absent voter in pursuance thereof if—

- (a) he applies to the registration officer to be no longer so treated; or
- (b) he ceases to be registered at the same qualifying address, or becomes so registered as a resident instead of a non-resident or vice versa, or as a service voter; or
- (c) the registration officer gives notice that he has reason to believe there has been a material change of circumstances, and the prescribed period elapses after the giving of the notice.

PART II.
—cont.

(4) The registration officer shall keep a record of absent voters and of the addresses furnished by them as the addresses to which their ballot papers are to be sent.

Proxies.

27.—(1) Except in the case of a service voter who is as a peer subject to a legal incapacity to vote at parliamentary elections, no person shall be specially appointed proxy to vote at local government elections, but any appointment of a person to vote as proxy at parliamentary elections shall have effect also for the purpose of local government elections.

(2) Subject to the next following subsection, in the case of a service voter who is as a peer subject to a legal incapacity to vote at parliamentary elections, any person shall be capable of being appointed proxy to vote at local government elections for him and may vote in pursuance of the appointment:

Provided that not more than one person at a time shall be appointed on behalf of any service voter.

(3) A person shall not be capable of being appointed under the last foregoing subsection to vote, or of voting, as proxy at a local government election unless he is a British subject of full age and not subject to any legal incapacity to vote thereat as an elector.

(4) A person voting as proxy for a service voter at a local government election may do so by post if—

- (a) he applies to vote as proxy by post and furnishes an address in the United Kingdom to which a ballot paper is to be sent for the purpose; and
- (b) he is entitled to vote by post as an absent voter at the election;

but a person voting as proxy for an elector at a local government election, unless entitled to do so by post, shall do so in person at the elector's polling station.

(5) The registration officer shall keep a record of electors for whom proxies have been appointed and of the names and addresses of the persons appointed.

(6) In relation to service voters and their proxies, subsections (4) to (6) of section ten and subsections (4) to (6) and subsection (8) of section eleven of this Act shall apply for the purposes of this Part thereof as they apply for the purposes of Part I thereof.

*Conduct of local government elections.*Amendments
of local
elections rules.

28.—(1) The local elections rules shall have effect subject to the provisions of the Fourth Schedule to this Act (being provisions adapting those rules in relation to voting by post or

by proxy or amending them so as to bring them into conformity with the rules governing parliamentary elections as amended by this Act).

PART II.
—cont.

(2) The candidate's consent to nomination required in England and Wales by paragraph 3 of Part I of the local elections rules shall contain a statement that he is qualified as required by law to be elected to and hold the office in question, and the statement shall give particulars of his qualification.

(3) In the event of an equality of votes at a local government election, section fourteen of this Act shall apply, in place of paragraph 37 of Part III of the local elections rules, as it applies in the case of a parliamentary election.

(4) No election under the local elections Act shall be declared invalid by reason of any act or omission of the returning officer or any other person in breach of his official duty in connection with the election or otherwise of the local elections rules if it appears to the tribunal having cognizance of the question that the election was so conducted as to be substantially in accordance with the law as to elections and that the act or omission did not affect its result.

29.—(1) The register of local government electors shall for the purposes of this Part of this Act be conclusive on the following questions:—

Effect of
register, etc.

- (a) whether a person registered therein is so registered as a resident or as a non-resident, and whether or not on the qualifying date he was resident at the address shown or had a non-resident qualification in respect of that address, as the case may be;
- (b) whether or not that address is in any local government area or any particular part of a local government area;
- (c) whether or not a person registered therein as a resident is registered as a service voter;
- (d) in the case of a person registered at more than one address in the same local government area, at which of those addresses he is registered as a local government elector for that area.

(2) The relevant special lists prepared under this Act for a local government election shall, for the purposes aforesaid, be conclusive on the following questions:—

- (a) whether or not a person's right to vote is exercisable by post;
- (b) whether or not there is in force an appointment of a proxy to vote for any person, and (if so) who is appointed.

PART II.
—*cont.*

(3) A person registered as a local government elector, or entered in the list of proxies, shall not be excluded from voting on the ground that he is not a British subject or is not of full age or is otherwise subject to any legal incapacity to vote, or that on the qualifying date or the date of his appointment, as the case may be, he was not a British subject or was not of full age or was otherwise subject to any legal incapacity to vote; but this provision shall not prevent the rejection of the vote on a scrutiny or affect his liability to any penalty for voting.

(4) Subsection (2) of section seventy of the local elections Act (which provides for disregarding misnomers and inaccurate descriptions in the register and other documents), shall apply to any special list, record, proxy paper, notice or other document required for the purposes of this Part of this Act.

Supplementary.

Tampering
with postal
votes.

30.—(1) Where any person fraudulently defaces or fraudulently destroys, or attempts so to deface or destroy, any declaration of identity or official envelope used in connection with voting by post at a local government election, section eighty-one of the local elections Act (which penalises the like offences in relation to ballot papers) shall apply as if the declaration or envelope were a ballot paper.

(2) The reference in the said section of the local elections Act to an officer appointed to assist in taking the poll or counting the votes shall include a reference to an officer appointed to assist at the proceedings in connection with the issue or receipt of ballot papers for persons voting by post at a local government election.

Breaches of
official duty.

31.—(1) If any person to whom this section applies, or who is for the time being under a duty to discharge as deputy or otherwise any of the functions of such a person, is, without reasonable cause, guilty of any act or omission in breach of his official duty, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

(2) No person to whom this section applies shall be liable for breach of his official duty to any penalty at common law, nor shall any action for damages lie in respect of the breach by any such person of his official duty.

(3) The persons to whom this section applies are—

- (a) any registration officer or person whose duty it is to prepare a corrupt and illegal practices list under the local corrupt practices Act or clerk or assistant employed by him in connection with his official duties;
- (b) any person whose duty it is to act as returning officer at or to take part in the conduct of an election under

the local elections Act or to be responsible after a local government election for the used ballot papers and other documents (including returns and declarations as to expenses);

PART II.
—cont.

and the expression "official duty" shall for the purposes of this section be construed accordingly but shall not include duties imposed otherwise than by the law relating to elections under the local elections Act or the registration of local government electors.

(4) Section seventy-nine of the local elections Act (which penalises some of the breaches of duty dealt with by this section) shall cease to have effect.

PART III.

CORRUPT AND ILLEGAL PRACTICES AND OTHER PROVISIONS AS TO ELECTION CAMPAIGN.

Parliamentary elections.

32.—(1) Parts III and IV of the First Schedule to the parliamentary corrupt practices Act (which limit the amount of election expenses) shall cease to have effect, and for any reference in that Act to the maximum amount specified in the said Part IV (which deals with the aggregate amount of the permitted expenses) there shall be substituted a reference to the following maximum amount, namely—

Limit of, and
return and
declarations as
to, expenses.

- (a) in relation to an election in a county constituency, four hundred and fifty pounds together with an additional twopence for each entry in the register of parliamentary electors to be used at the election;
- (b) in relation to an election in a borough constituency, four hundred and fifty pounds together with an additional penny halfpenny for each such entry as aforesaid:

Provided that, if the said register is not published before the day of publication of the notice of election, then for any reference in this subsection to an entry in the register there shall be substituted a reference to an entry in the electors lists therefor as first published which gives the name of a person appearing from those lists to be entitled to be registered.

(2) The said maximum amount shall not be required to cover the candidate's personal expenses as defined in the said Act, but shall cover the whole of any fee paid to the candidate's election agent.

(3) For the forms of declaration as to election expenses set out in Part I of the Second Schedule to the said Act there shall be substituted the form set out in Part II of the Ninth Schedule to this Act.

PART III.
—cont.

(4) Notwithstanding anything in the said Act, no declaration or return as to election expenses shall be required under that Act in the case of a person—

(a) who—

(i) is a candidate at an election as defined by section sixty-three thereof; but

(ii) is so, only because he has been declared by others to be a candidate; and

(b) who has not consented to the declaration or taken any part as a candidate in the election.

(5) No penalty shall be recoverable except by the Crown under subsection (5) of section thirty-three of the said Act (which penalises a Member of Parliament sitting or voting when the return and declarations as to his election expenses have not been sent in in time).

(6) In Northern Ireland paragraphs (a) and (b) of subsection (1) and subsection (2) of this section shall not apply and—

(a) the maximum amount referred to in the said subsection (1) shall (subject to the proviso to that subsection) be the same as at the passing of this Act, namely, twopence for each entry in the register of parliamentary electors to be used at the election; and

(b) the said maximum amount shall not be required to cover either the candidate's personal expenses as defined in the said Act or (to an amount not exceeding in the case of an election in a county constituency seventy-five pounds and in the case of an election in a borough constituency fifty pounds) the fee, if any, paid to his election agent.

(7) This section shall apply for the purposes of the first general election after the passing of this Act and any subsequent election.

Use of motor
vehicles for
conveying
electors to
poll.

33.—(1) Subject to the provisions of this section, a person shall not, with a view to supporting or opposing the candidature of any individual as against any other or others at a parliamentary election, either let, lend or employ, or hire, borrow or use, any motor vehicle for the purpose of the conveyance of electors or their proxies to or from the poll, and a person knowingly acting in contravention of this subsection, shall be guilty of an illegal practice within the meaning of the parliamentary corrupt practices Act:

Provided that—

(a) the court before whom a person is convicted under this subsection may, if they think it just in the special

circumstances of the case, mitigate or entirely remit any incapacity imposed by section ten of the said Act; and

- (b) a candidate shall not be liable, nor shall his election be avoided, for an illegal practice under this subsection committed without his consent or connivance by an agent other than his election agent.

(2) Where it is shown—

- (a) that a motor vehicle was employed for the purpose aforesaid; and
- (b) that at the time when it was so employed there was to the knowledge of any person employing or using it for that purpose displayed on it or on a trailer drawn by it any placard, colours or other thing indicating a preference for or against any candidate at the election;

it shall be presumed until the contrary is shown that that person was so employing or using it with a view to supporting or opposing the candidature of some individual as against some other or others.

(3) Nothing in this section shall—

- (a) render unlawful anything made lawful by subsection (3) of section fourteen of the parliamentary corrupt practices Act (which relates to the use of vehicles by electors at their joint cost); or
- (b) prevent any person employing a motor vehicle for the purpose of conveying to or from the poll himself or any member of the same household, or borrowing a motor vehicle from a member of the same household to be employed for that purpose; or
- (c) prevent a candidate at an election or some person on his behalf employing a motor vehicle for the purpose of conveying any person to or from the poll, if the conditions hereafter mentioned in this section are complied with, or borrowing a motor vehicle to be employed for that purpose from any person; or
- (d) prevent a person lending or using a motor vehicle in a case in which it is lawfully borrowed or employed by virtue of either of the last two foregoing paragraphs.

(4) The conditions under which a motor vehicle may be employed under the said paragraph (c) by or on behalf of a candidate are the following:—

- (a) the motor vehicle shall be registered in the prescribed manner with the returning officer, and there shall
- b be prominently displayed thereon a placard indicating that it is so registered;

PART III.
—*cont.*

- (b) the number of motor vehicles so employed shall not exceed in a county constituency one for every fifteen hundred electors or in a borough constituency one for every twenty-five hundred electors.

(5) Regulations made with respect to the registration of motor vehicles with the returning officer under this section may make provision as to the retention, destruction and inspection of the register and the right to take or receive copies thereof, and as to the fees (if any) payable for the exercise of any right under the regulations.

- (6) For the purposes of this section—

- (a) the expression “motor vehicle” means any mechanically propelled vehicle constructed or adapted for use on roads;
- (b) the expression “member of the same household” includes a visitor spending the night before or after the day of the poll in the same dwelling house and a person employed by a member of the household at the dwelling house unless so employed exclusively for the purpose of that member’s trade, profession or business; and
- (c) the number of electors shall be taken to be the same as the number of entries in the register or electors lists by reference to which the maximum amount of the candidate’s election expenses is determined, any residual fraction of fifteen hundred or, in a borough constituency, twenty-five hundred being treated as a complete fifteen or twenty-five hundred, as the case may be.

Candidate’s
right to send
election
address post
free.

34.—(1) A candidate at a parliamentary election shall, subject to regulations of the Postmaster General, be entitled to send free of any charge for postage to each elector one postal communication containing matter relating to the election only and not exceeding two ounces in weight.

(2) He shall also, subject as aforesaid, be entitled to send free of any charge for postage to each person entered in the list of proxies for the election one such communication as aforesaid for each appointment in respect of which that person is so entered.

(3) A person shall not be deemed to be a candidate for the purposes of this section unless he is shown as standing nominated in the statement of persons nominated, but until the publication of that statement any person who declares himself to be a candidate shall be entitled to exercise the right of free postage conferred by this section if he gives such security as may be required by the Postmaster General for the payment of postage should he not be shown as standing nominated as aforesaid.

(4) For the purposes of this section, the expression "elector" means a person who is registered as a parliamentary elector in the constituency in the register to be used at the election or who, pending the publication of that register, appears from the electors lists therefor as corrected by the registration officer to be entitled to be so registered.

PART III.
—*cont.*

35.—(1) Subject to the provisions of this section, a candidate at a parliamentary election shall be entitled for the purpose of holding public meetings in furtherance of his candidature to the use at reasonable times between the receipt of the writ and the date of the poll of—

Candidate's
right to use
certain schools
and halls for
election
meetings

(a) a suitable room in the premises of any school to which this section applies;

(b) any meeting room to which this section applies.

(2) This section applies—

(a) in England and Wales, to county schools and voluntary schools of which the premises are situated in the constituency or an adjoining constituency; and

(b) in Scotland, to any school of which the premises are so situated, not being an independent school within the meaning of the Education (Scotland) Act, 1946;

9 & 10 Geo. 6
c. 72.

but a candidate shall not be entitled under this section to the use of a room in school premises outside the constituency if there is a suitable room in other premises in the constituency which are reasonably accessible from the same parts of the constituency as those outside and are premises of a school to which this section applies.

(3) This section applies to meeting rooms situated in the constituency, the expense of maintaining which is payable wholly or mainly out of public funds or out of any rate, or by a body whose expenses are so payable.

(4) Where a room is used for a meeting in pursuance of the rights conferred by this section, the person by whom or on whose behalf the meeting is convened—

(a) may be required to pay for the use of the room a charge not exceeding the amount of any actual and necessary expenses incurred in preparing, warming, lighting and cleaning the room and providing attendance for the meeting and restoring the room to its usual condition after the meeting; and

(b) shall defray any damage done to the room or the premises in which it is situated, or to the furniture, fittings or apparatus in the room or premises.

(5) A candidate shall not be entitled to exercise the rights conferred by this section except on reasonable notice and this section shall not authorise any interference with the hours during which a room in school premises is used for educational

PART III.
—*cont.*

purposes, or any interference with the use of a meeting room either for the purposes of the person maintaining it or under a prior agreement for its letting for any purpose.

(6) The provisions of the Fifth Schedule to this Act shall have effect with respect to the rights conferred by this section and the arrangements to be made for their exercise.

(7) For the purposes of this section (except those of paragraph (b) of subsection (4) thereof), the premises of a school shall not be taken to include any private dwelling house, and in this section—

- (a) the expression " meeting room " means any room which it is the practice to let for public meetings; and
- (b) the expression " room " includes a hall, gallery or gymnasium.

(8) This section shall not apply to Northern Ireland.

Use of
committee
rooms in
schools.

36.—(1) Paragraph (d) of section twenty of the parliamentary corrupt practices Act (which prohibits the use for a committee room of the premises of a public elementary school in receipt of an annual parliamentary grant), shall—

- (a) in England and Wales, apply to the premises of all schools maintained or assisted by a local education authority and all other schools in respect of which grants are made out of moneys provided by Parliament to the person or body of persons responsible for the management of the school; and
- (b) in Scotland, apply to the premises of all schools other than independent schools within the meaning of the Education (Scotland) Act, 1946; and
- (c) in Northern Ireland, apply to the premises of all schools other than independent schools within the meaning of the Education Act (Northern Ireland), 1947.

(2) For the purposes of the said section twenty and of this section, the premises of a school shall be taken to include any dwelling house which forms part thereof and is occupied by a person employed for the purposes of the school.

Election
propaganda.

37.—(1) No person shall, with intent to influence persons to give or refrain from giving their votes at a parliamentary election, use, or aid, abet, counsel, or procure the use of, any wireless transmitting station outside the United Kingdom for the transmission of any matter having reference to the election otherwise than in pursuance of arrangements made with the British Broadcasting Corporation for it to be received and re-transmitted by that Corporation.

(2) No person shall for the purpose of promoting or procuring the election of any candidate at a parliamentary election issue any poll card or document so closely resembling an official poll card as to be calculated to deceive.

(3) Any offence under this section shall be an illegal practice within the meaning of the parliamentary corrupt practices Act:

PART III.
—cont.

Provided that the court before whom a person is convicted of an offence under this section may, if they think it just in the special circumstances of the case, mitigate or entirely remit any incapacity imposed by section ten of that Act.

(4) Where any act or omission of an association or body of persons, corporate or unincorporated, is an illegal practice under this section, any person who at the time of the act or omission was a director, general manager, secretary or other similar officer of the association or body, or was purporting to act in any such capacity, shall be deemed to be guilty of the illegal practice, unless he proves that the act or omission took place without his consent or connivance and that he exercised all such diligence to prevent the commission of the illegal practice as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances.

Local government elections.

38.—(1) In relation to local government elections, sections twenty-four and twenty-six to thirty-five of the parliamentary corrupt practices Act (which deal with the appointment and functions of an election agent, and the payment of and making of returns as to expenses, at parliamentary elections), shall apply as if those sections had been enacted in the local corrupt practices Act as they apply to a parliamentary election in the part of Great Britain in question, but with the modifications mentioned in the next following subsection.

Appointment
of election
agent.

(2) The said modifications are as follows:—

- (a) there shall be omitted any reference to a sub-agent, any limit on the amount of the candidate's personal expenses which may be paid by him and subsection (1) of section thirty-five (which requires a summary of the return of election expenses to be published in two newspapers);
- (b) for references to the constituency, to the returning officer and to sitting or voting in the House of Commons as a member for the constituency there shall respectively be substituted references to the local government area, to the town clerk or, in Scotland, the prescribed officer, and to sitting or voting in the council, and, in relation to Scotland, for any reference to the High Court there shall be substituted a reference to the sheriff;

- (c) the penalty recoverable by the Crown in civil proceedings for a contravention of subsection (5) of section

PART III.
—*cont.*

thirty-three (which penalises a person sitting or voting when the return and declaration as to his election expenses have not been sent in in time) shall be fifty, and not a hundred, pounds and, instead of civil proceedings for a penalty, proceedings may be instituted in a court of summary jurisdiction and the person charged shall be liable, on conviction, to a fine of an amount not exceeding the amount of the penalty which would be recoverable in civil proceedings.

1 & 2 Geo. 5.
c. 7.

(3) The following amendments (being amendments consequential on the foregoing provisions of this section) shall be made in the local corrupt practices Act and in the Municipal Elections (Corrupt and Illegal Practices) Act, 1911, as they apply in relation to elections at which a candidate is required to appoint an election agent:—

58 & 59 Vict.
c. 4c.

(a) the words of the corresponding provisions of the parliamentary corrupt practices Act and of the Corrupt and Illegal Practices Prevention Act, 1895, shall be respectively substituted for those of subsection (3) of section six, section fourteen, subsection (2) of section seventeen, paragraphs (a) and (b) of section nineteen, and subsection (1) of section twenty-six of the local corrupt practices Act and for those of subsection (4) of section one of the said Act of 1911, except that in relation to Scotland for any reference to the High Court there shall be substituted a reference to the sheriff;

(b) in section twenty-five of the local corrupt practices Act—

(i) in subsection (1) after the words “ candidate to whose election the petition relates ” there shall be inserted the words “ and his election agent ”, and for the words following the word “ relates ” there shall be substituted the words of subsection (4) of section forty of the parliamentary corrupt practices Act with the appropriate modification of the reference to the returning officer; and

(ii) in subsection (2) after the words “ with the privity of the candidate ” there shall be inserted the words “ or his election agent ”;

(c) where two or more candidates at an election appoint the same election agent, subsection (4) of section five of the local corrupt practices Act (which deals with the cases in which candidates are to be treated as joint candidates for the purpose of determining the permitted amount of election expenses) shall apply as it applies where two or more candidates employ the same polling agent, except that proviso (a) (which

deals with the case where the employment is accidental or casual) shall not apply;

PART III.
—cont.

- (d) the said section five shall not apply to sums paid or expenses incurred otherwise than by the candidate or his election agent.

(4) This section shall apply in relation to the first ordinary election of councillors held after the passing of this Act and to any subsequent election.

(5) In the application of this section to Scotland, for the reference in subsection (2) to proceedings in a court of summary jurisdiction there shall be substituted a reference to summary proceedings in the sheriff court.

39.—(1) In the provisions of the local elections Act which apply the local corrupt practices Act to elections of metropolitan borough, district and parish councillors in England and Wales, there shall cease to have effect the words excepting from that application the provisions of the last mentioned Act referred to in section thirty-seven thereof (being the provisions of that Act which relate to election expenses):

Extensions of
local corrupt
practices Act
in England
and Wales.

Provided that in relation to elections of parish councillors section twenty-one of the local corrupt practices Act, and not the provisions substituted therefore by the last foregoing section, shall apply but with the modifications mentioned in the next following subsection of this section.

(2) In relation to elections of parish councillors, the said section twenty-one shall be modified as follows:—

- (a) no penalty shall be recoverable in civil proceedings under subsection (4) (which penalises a person sitting or voting when the return and declaration as to his election expenses have not been sent in in time), except by the Crown; and

- (b) instead of civil proceedings for a penalty, proceedings may be instituted in a court of summary jurisdiction and the person charged shall be liable, on conviction, to a fine of an amount not exceeding the amount of the penalty which would be recoverable in civil proceedings; and

- (c) any declaration as to election expenses shall be in such form as may be prescribed by parish election rules made under section fifty-four of the Local Government Act, 1933, instead of in the form set out in the Fourth Schedule to the local corrupt practices Act.

23 & 24 Geo. 5.
c. 51.

(3) In relation to elections of a chairman of a district council or parish council or meeting in England or Wales, Part IV of the Municipal Corporations Act, 1882, and the local corrupt practices Act shall, subject to such adaptations, alterations and exceptions as may be made by district or parish election

45 & 46 Vict.
c. 50.

PART III.
—*cont.*

rules under the Local Government Act, 1933, apply in like manner as in the case of elections under that Act of the mayor of a borough.

(4) This section shall apply in relation to the first ordinary election of councillors held after the passing of this Act and to any subsequent election of councillors, and in relation to any election so held of the chairman of a council.

Other
amendments
for securing
conformity
with rules
as to
parliamentary
elections.

40.—(1) Section sixteen of the local corrupt practices Act (which prohibits the use of certain premises for committee rooms or election meetings), shall be amended as follows:—

- (a) any reference to holding a meeting shall cease to have effect;
- (b) the prohibition on the use of any premises, or part of any premises, where intoxicating liquor is supplied to members of a club, society or association shall not apply where the club, society or association is a permanent political club; and
- (c) the premises to which the section applies shall include any premises which are within the prohibition imposed by section twenty of the parliamentary corrupt practices Act on the use of school premises at parliamentary elections.

(2) For the purpose of determining the amount of the election expenses permitted by section five of the local corrupt practices Act, the number of the electors shall be taken to be the number of entries in the register of local government electors to be used at the election or, if that register is not published before the day of publication of the notice of election, the number of entries in the electors lists therefor as first published which give the name of a person appearing from those lists to be entitled to be registered.

8 Edw. 7. c. 66.

(3) In subsection (1) of section one of the Public Meeting Act, 1908 (which penalises attempts to break up a public meeting and makes them an illegal practice if made in the course of a parliamentary election), after the words "the Corrupt and Illegal Practices Prevention Act, 1883" there shall be inserted the words "and, if the offence is committed on, or within three weeks before, the day of election at a local government election at a meeting held in the electoral area with reference to that election, he shall be guilty of an illegal practice within the meaning of the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, or, if the offence is committed in Scotland, within the meaning of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890."

47 & 48 Vict.
c. 70.
53 & 54 Vict.
c. 55.

(4) Section eighty-five of the Municipal Corporations Act, 1882, and section six of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890 (which provide for striking off on a scrutiny the vote of any person in respect of whom a corrupt

practice was committed at the election), shall cease to have effect, and section one hundred of the said Act of 1882 and subsection (2) of section forty-seven of the said Act of 1890 (which apply the rules governing parliamentary election petitions) shall be construed as if the said section eighty-five or the said section six, as the case may be, had never been passed.

PART III.
—cont.

Provisions applying to parliamentary and local government elections.

41. The use of any premises for the holding of public meetings in furtherance of any person's candidature at a parliamentary or local government election shall not render any person liable to be rated or to pay any rate for the premises.

Effect on rateability of premises of holding election meeting.

42.—(1) No expenses shall, with a view to promoting or procuring the election of a candidate at a parliamentary or local government election, be incurred by any person other than the candidate, his election agent and persons authorised in writing by the election agent on account—

Prohibition of expenses not authorised by election agent.

- (a) of holding public meetings or organising any public display; or
- (b) of issuing advertisements, circulars or publications; or
- (c) of otherwise presenting to the electors the candidate or his views or the extent or nature of his backing or disparaging another candidate:

Provided that paragraph (c) of this subsection shall not—

- (i) restrict the publication of any matter relating to the election in a newspaper or other periodical; or
- (ii) apply to any expenses not exceeding in the aggregate the sum of ten shillings which may be incurred by an individual and are not incurred in pursuance of a plan suggested by or concerted with others, or to expenses incurred by any person in travelling or in living away from home or similar personal expenses.

(2) Where a person incurs any expenses required by this section to be authorised by the election agent, that person shall within fourteen days after the date of publication of the result of the election send to the appropriate officer a return of the amount of those expenses, stating the election at which and the candidate in whose support they were incurred, and the return shall be accompanied by a declaration made by the said person (or in the case of an association or body of persons, by a director, general manager, secretary or other similar officer thereof) verifying the return and giving particulars of the matters for which the expenses were incurred:

Provided that this subsection shall not apply to any person engaged or employed for payment or promise of payment by the candidate or his election agent.

PART III.
—cont.

(3) The return and declaration under the foregoing provisions of this section shall be in the prescribed form, and the authority received from the election agent shall be annexed to and deemed to form part of the return, and subsection (2) of section thirty-five of the corrupt practices Act (which deals with the retention, inspection and destruction or return of the returns and declarations as to election expenses under that Act), shall apply also to any returns and declarations under the foregoing provisions of this section, except that they shall be returned after two years not to the candidate if he or his election agent so require, but to the person sending them if he so require.

(4) The election agent's return respecting election expenses shall deal under a separate heading or sub-heading with any expenses included therein as respects which a return is required to be made by subsection (2) of this section.

(5) Subsection (1) of this section shall not affect the right of any creditor, who, when the expense was incurred, was ignorant of its being in contravention of this section.

(6) A copy of every return and declaration made under subsection (2) of this section in relation to a parliamentary election in England, Wales or Northern Ireland shall be sent to the Clerk of the Crown in Chancery within fourteen days after the date of publication of the result of the election by the person making the return or declaration, and rules 39 and 42 of the First Schedule to the Ballot Act, 1872 (which deal with the retention, inspection and destruction of certain documents under that Act), shall apply to any documents sent to the Clerk of the Crown under this subsection.

(7) In this section the expression "the appropriate officer" means the officer to whom the election agent's return respecting election expenses is required to be sent.

(8) This section shall not apply to elections of parish councillors in England or Wales.

(9) If any person incurs, or aids, abets, counsels or procures any other person to incur, any expenses in contravention of this section, or knowingly makes the declaration required by subsection (2) thereof falsely, he shall be guilty of a corrupt practice within the meaning of the corrupt practices Act, and if a person fails to send any declaration or return or a copy thereof as required by this section he shall be guilty of an illegal practice within the meaning of the said Act:

Provided that—

(a) the court before whom a person is convicted under this subsection may, if they think it just in the special circumstances of the case, mitigate or entirely remit any incapacity imposed by section six or ten of the corrupt practices Act; and

- (b) a candidate shall not be liable, nor shall his election be avoided, for a corrupt or illegal practice under this subsection committed by an agent without his consent or connivance.

(10) Where any act or omission of an association or body of persons, corporate or unincorporated, is an offence declared to be a corrupt or illegal practice by this section, any person who at the time of the act or omission was a director, general manager, secretary or other similar officer of the association or body, or was purporting to act in any such capacity, shall be deemed to be guilty of that offence, unless he proves that the act or omission took place without his consent or connivance and that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances.

(11) Section forty of the corrupt practices Act (which provides a longer time for presenting an election petition, where an illegal practice is alleged) shall apply to any corrupt practice under this section as if it were an illegal practice.

43.—(1) The following provisions of the corrupt practices Act shall cease to have effect, namely—

Miscellaneous
amendments
as to election
expenses and
propaganda.

- (a) section seven in so far as it prohibits payments or contracts for payment in respect of committee rooms in excess of a specified number;
- (b) section sixteen except in so far as it relates to bands of music, torches, flags and banners; and
- (c) subject to the next following subsection, section seventeen (which relates to paid employment).

(2) The said section seventeen shall continue to prohibit the engagement or employment for payment or promise of payment of any person as a canvasser, and accordingly in subsection (1) thereof for the words from “for any purpose or in any capacity” onwards there shall be substituted the words “as a canvasser”.

(3) Where the expenses required by the corrupt practices Act to be shown in the election agent's return include expenditure on account of the remuneration or expenses of speakers at public meetings, the amount of that expenditure (with the name of the speaker and the date and place of the meeting in each case) shall be shown under a separate heading or sub-heading.

(4) Section seven of the Corrupt Practices Prevention Act, 17 & 18 Vict. 1854 (which prohibits candidates at a parliamentary election from giving or providing cockades, ribbons and other marks of distinction), shall cease to have effect.

c. 102.

PART III.
—cont.

(5) Section eighteen of the corrupt practices Act (which requires election placards to bear the name and address of printer and publisher), shall apply to every printed document distributed for the purpose of promoting or procuring the election of a candidate as it applies to bills, placards and posters, but with the substitution of references to distributing for references to posting.

(6) For the purposes of the said section eighteen, any process for multiplying copies of a document, other than copying it by hand, shall be deemed to be printing and the expression "printer" shall be construed accordingly.

Failure to
appoint
election
agent.

44.—(1) Notwithstanding anything in section twenty-four of the corrupt practices Act,—

(a) the election agent of a candidate who remains validly nominated at the latest time for delivery of notices of withdrawals shall be named, and his name and address given to the appropriate officer, as required by that section, not later than that time; and

(b) if no person's name and address is so given within that time as those of the candidate's election agent, the candidate shall be deemed at that time to have named himself as election agent and to have revoked any appointment of another person as his election agent.

(2) If the person whose name and address have been so given as those of the candidate's election agent (not being the candidate himself) dies, and a new appointment is not made on the day of the death or on the following day, the candidate shall be deemed to have appointed himself as from the time of the death.

(3) If the appointment of a candidate's election agent is revoked without a new appointment being made, the candidate himself shall be deemed to have been appointed (or re-appointed) election agent.

(4) Where a candidate is by virtue of this section to be treated as his own election agent, he shall be deemed to have his office at his address as given in the statement as to persons nominated or, if that address is not in the constituency or local government area or in a county of a city or town adjoining thereto, at the qualifying address of the person (or first person) named in that statement as his proposer.

(5) The appropriate officer, on being satisfied that a candidate is by virtue of this section to be treated as his own election agent, shall forthwith proceed to publish the like notice as if the name and address of the candidate and the address of his office had been duly given to him under

sections twenty-four and twenty-six of the corrupt practices Act.

PART III.
—cont.

(6) In paragraph 48 of Part III of the local elections rules (which prohibits a returning officer or officer appointed under those rules or his partner or clerk from acting as polling or counting agent) for the words "polling or counting agent" wherever they occur there shall be substituted the words "candidate's agent in the management or conduct of the election"; but nothing in the foregoing provisions of this subsection or in section fifty of the Representation of the People Act, 1867, or section thirteen of the Representation of the People (Ireland) Act, 1868 (which make similar provision in relation to parliamentary elections), shall be taken as preventing a candidate from acting as his own election agent.

(7) This section shall have effect in its application to a local government election in Scotland as if—

(a) for subsection (4) there were substituted the following subsection—

"(4) Where a candidate is by virtue of this section to be treated as his own election agent, he shall be deemed to have his office at his address as given in his nomination paper or papers or if that address is not in the local government area or in a county of a city or town adjoining thereto, at the address of the person named as the proposer of the candidate in the nomination paper first delivered in which the address of the proposer is in the local government area."; and

(b) the reference in subsection (6) to the provision of the local elections rules therein mentioned included a reference to subsection (2) of section sixty-seven of the Local Government (Scotland) Act, 1947.

10 & 11 Geo. 6.
c. 43.

45.—(1) If at a parliamentary or local government election a candidate or his election agent personally engages as a canvasser or agent for the management of the election any person whom he knows or has reasonable grounds for supposing to be subject to an incapacity to vote at the election by reason—

Avoidance of
election for
employing
corrupt agent.

- (a) of his having been convicted or reported of any corrupt or illegal practice within the meaning of the corrupt practices Act or of the law relating to elections for the Parliament of Northern Ireland; or
- (b) of his having been convicted more than once of an offence under the Public Bodies Corrupt Practices Act, 1889;

52 & 53 Vict.
c. 69.

the candidate shall be incapable of being elected to fill the vacancy or any of the vacancies for which the election is held.

PART III.
—cont.

(2) For the purposes of section eighty-seven of the Municipal Corporations Act, 1882, and section thirty of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890 (which provide that an election may, on the grounds there mentioned, be questioned by petition, and not otherwise) a person declared by this section incapable of being elected shall be deemed to have been disqualified at the time of the election; but a vote given for such a person shall not, by reason of his incapacity under this section, be deemed to be thrown away so as to entitle another candidate to be declared elected, unless given at a poll consequent on the decision of an election court that he was so incapable.

31 & 32 Vict.
c. 125.

(3) Section forty-four of the Parliamentary Elections Act, 1868 (which makes as respects parliamentary elections provision similar to subsection (1) of this section), shall cease to have effect.

Avoidance of
election for
general
corruption,
etc.

46.—(1) Where on an election petition it is shown that offences under the corrupt practices Act committed in reference to the election for the purpose of promoting or procuring the election of any person thereat have so extensively prevailed that they may be reasonably supposed to have affected the result, his election, if he has been elected, shall be void and he shall be incapable of being elected to fill the vacancy or any of the vacancies for which the election was held.

(2) In section eighty-seven of the Municipal Corporations Act, 1882, and section thirty of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890 (which provide that an election may, on the grounds there mentioned, be questioned by petition, and not otherwise), for the references to an election being avoided by general bribery, treating, undue influence or personation there shall be substituted a reference to its being avoided under this section.

(3) For the purpose of the enactments relating to the time within which an election petition may be presented or amended, an allegation that an election is avoided under this section shall be deemed to be an allegation of corrupt practices, notwithstanding that the offences alleged are or include offences other than corrupt practices.

(4) The reference in subsection (1) of this section to offences under the corrupt practices Act shall include offences under any other enactment which are punishable as corrupt or illegal practices under that Act.

(5) An election to which the corrupt practices Act applies shall not be liable to be avoided otherwise than under this section by reason of general corruption, bribery, treating or intimidation.

47.—(1) No member of a police force shall by word, message, writing or in any other manner, endeavour to persuade any person to give, or dissuade any person from giving, his vote, whether as an elector or as proxy, at any parliamentary election for a constituency wholly or partly within the police area, or at any local government election for any electoral area wholly or partly within the police area, and a person acting in contravention of this subsection shall be liable on summary conviction to a fine not exceeding one hundred pounds:

PART III.
—cont.
Penalty for
illegal
canvassing by
police officers.

Provided that nothing in this subsection shall subject a member of a police force to any penalty for anything done in the discharge of his duty as a member of the force.

(2) In the foregoing subsection references to a member of a police force and to a police area are to be taken—

(a) in relation to England, Wales and Scotland, as references to a member of a police force and to a police area within the meaning of the Police Pensions Act, 1921; and 11 & 12 Geo. 5.
c. 31.

(b) in relation to Northern Ireland, as references to a member of the Royal Ulster Constabulary and to Northern Ireland.

(3) The enactments mentioned in the following subsection (the main effect of which is to impose penalties, varying in amount and recoverable in civil proceedings, on persons connected with the police who canvass at elections) shall cease to have effect, except so far as they render any person incapable of being elected to or sitting in the House of Commons.

(4) The said enactments are section eighteen of the Metropolitan Police Act, 1829, section eighteen of the Constabulary (Ireland) Act, 1836, section nine of the County Police Act, 1839, section eight of the local Act of the second and third years of Queen Victoria, chapter ninety-four, section nine of the Metropolitan Police Act, 1856, section nine of the County and Borough Police Act, 1856, section seventeen of the Police (Scotland) Act, 1857, and section five of the Metropolitan Police Act, 1860. 10 Geo. 4. c. 44.
6 & 7 Will. 4.
c. 13.
2 & 3 Vict. c. 93.
19 & 20 Vict.
c. 2.
19 & 20 Vict.
c. 69.
20 & 21 Vict.
c. 72.
23 & 24 Vict.
c. 135.

48.—(1) A person shall be deemed to be guilty of personation at a parliamentary or local government election if he— Personation.

(a) votes in person or by post as some other person, whether as an elector or as proxy, and whether that other person is living or dead or is a fictitious person; or

(b) votes in person or by post as proxy—

(i) for a person whom he knows or has reasonable grounds for supposing to be dead or to be a fictitious person; or

PART III.
—*cont.*

(ii) when he knows or has reasonable grounds for supposing that his appointment as proxy is no longer in force.

(2) For the purposes of this section, a person who has applied for a ballot paper for the purpose of voting in person or who has marked, whether validly or not, and returned a ballot paper issued for the purpose of voting by post, shall be deemed to have voted.

13 & 14 Vict.
c. 69.

(3) Sections twenty-four and twenty-six of the Ballot Act, 1872, sections ninety and ninety-one of the Representation of the People (Ireland) Act, 1850, and section eighty-two of the local elections Act (which provide for the punishment of personation) shall cease to have effect, and any reference in any Act to personation, so far as it relates to personation at parliamentary or local government elections, shall be taken as a reference to personation as defined by this section.

Other voting
offences.

49.—(1) A person shall be guilty of an offence if—

- (a) he votes in person or by post, whether as an elector or as proxy, or applies to be treated as an absent voter or to vote by post as proxy, at a parliamentary or local government election, knowing that he is subject to a legal incapacity to vote; or
- (b) he applies for the appointment of a proxy to vote for him at parliamentary or local government elections, knowing that he or the person to be appointed is subject to a legal incapacity to vote; or
- (c) he votes, whether in person or by post, or applies to vote by post, as proxy for some other person at a parliamentary or local government election, knowing that that person is subject to a legal incapacity to vote:

Provided that a person shall not be guilty of an offence under paragraph (b) of this subsection by reason only of his applying as a service voter, while not of full age, for the appointment of a proxy.

(2) A person shall be guilty of an offence if—

- (a) he votes as elector otherwise than by proxy, either—
 - (i) more than once in the same constituency at any parliamentary election, or more than once in the same electoral area at any local government election; or
 - (ii) in more than one constituency at a general election, or in more than one electoral area at an ordinary election of councillors for a local government area which is not a single electoral area; or

- (iii) in any constituency at a general election, or in any electoral area at such an ordinary election as aforesaid, when there is in force an appointment of a person to vote as his proxy at the election in some other constituency or electoral area; or
- (b) he votes as elector in person at a parliamentary or local government election at which he is entitled to vote as an absent voter; or
- (c) he votes as elector in person at a parliamentary or local government election for which he is registered as a service voter, knowing that a person appointed to vote as his proxy at the election either has already voted in person thereat or is entitled to vote by post thereat; or
- (d) not being a service voter, he applies for a person to be appointed as his proxy to vote for him at parliamentary elections without applying for the cancellation of a previous appointment of a third person then in force or without withdrawing a pending application for such an appointment.
- (3) A person shall be guilty of an offence if—
- (a) he votes as proxy for the same elector either—
- (i) more than once in the same constituency at any parliamentary election, or more than once in the same electoral area at any local government election; or
- (ii) in more than one constituency at a general election, or in more than one electoral area at an ordinary election of councillors for a local government area which is not a single electoral area; or
- (b) he votes in person as proxy for an elector at a parliamentary or local government election at which he is entitled to vote by post as proxy for that elector; or
- (c) he votes in person as proxy for an elector registered as a service voter at a parliamentary or local government election knowing that the elector has already voted in person thereat or is entitled to vote by post thereat.
- (4) A person shall also be guilty of an offence if he votes at a parliamentary election in any constituency as proxy for more than two persons of whom he is not the husband, wife, parent, grandparent, brother, sister, child or grandchild.
- (5) A person shall also be guilty of an offence if he knowingly induces or procures some other person to do an

PART III.
—*cont.*

act which is, or but for that other person's want of knowledge would be, an offence in that other person under the foregoing subsections of this section.

(6) For the purposes of this section, a person who has applied for a ballot paper for the purpose of voting in person, or who has marked, whether validly or not, and returned a ballot paper issued for the purpose of voting by post, shall be deemed to have voted:

Provided that for the purpose of determining whether an application for a ballot paper constitutes an offence under subsection (4) of this section, a previous application made in circumstances which entitle the applicant only to mark a tendered ballot paper shall, if he does not exercise that right, be disregarded.

(7) An offence under this section shall be an illegal practice within the meaning of the corrupt practices Act:

Provided that—

(a) the court before whom a person is convicted of any such offence may, if they think it just in the special circumstances of the case, mitigate or entirely remit any incapacity imposed by section ten of the said Act; and

(b) a candidate shall not be liable, nor shall his election be avoided, for an illegal practice under this section of any agent of his other than an offence under subsection (5).

Prosecutions
for corrupt
and illegal
practices.

50.—(1) In section forty-five of the corrupt practices Act (which imposes on the appropriate authority a duty to inquire and prosecute, where informed that corrupt or illegal practices have prevailed in reference to an election) for the words "corrupt or illegal practices have prevailed" there shall be substituted the words "any corrupt or illegal practice has occurred".

(2) Subject to the provisions of this Act, a corrupt practice within the meaning of the corrupt practices Act shall be punishable thereunder on summary conviction.

(3) A person summarily convicted of a corrupt practice by virtue of this section shall be liable to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds, or to both, but not to the incapacities imposed by section six of the corrupt practices Act on a person convicted on indictment.

(4) A person charged with personation at a parliamentary or local government election shall not be summarily convicted by virtue of this section or committed for trial, except on the evidence of not less than two credible witnesses.

(5) For the purposes of subsection (6) of section forty-three of the corrupt practices Act (which deals with the steps to be taken by an election court where they think an offence should be prosecuted before some other court) a corrupt practice shall be deemed not to be an indictable offence, if the election court think it should be prosecuted summarily, and subsection (4) of this section shall not apply to a committal under the said subsection (6); and in paragraph (a) of section thirty of the local corrupt practices Act (which extends the local jurisdiction of courts of summary jurisdiction to deal with offences other than corrupt practices) the words " other than a corrupt practice " shall cease to have effect.

(6) In the application of this section to Scotland, in subsection (4) the words " summarily " and " or committed for trial " and subsection (5) shall be omitted.

- 51.—(1) The county court shall have, concurrently with the High Court, all the powers of the High Court in relation—
- (a) to any application under section twenty-three of the corrupt practices Act for relief in respect of a payment made in contravention of subsection (2) or subsection (4) of section twenty-nine of that Act (which relate to payments of election expenses made out of time or on a claim made out of time);
 - (b) to any application under subsection (9) of the said section twenty-nine for leave to pay a claim in respect of election expenses which is sent in out of time or is sent to the candidate instead of the election agent;
 - (c) to any application for relief under section thirty-four of the corrupt practices Act (which relates to relief for any failure to make the statutory return or declaration as to election expenses within due time and for any defect in the return or declaration);
 - (d) to any application under section three of the Corrupt and Illegal Practices Prevention Act, 1895 (which relates to injunctions restraining false statements as to the character or conduct of a candidate at a parliamentary election), or under the corresponding provision of the Municipal Elections (Corrupt and Illegal Practices) Act, 1911;

Powers of courts with respect to granting of relief, restraining false statements and inspection of ballot papers.

and references in the corrupt practices Act to the High Court shall be construed accordingly.

(2) The county court shall also have, concurrently with the High Court, all the powers of the High Court in relation to any application under rule 40 of the First Schedule to the Ballot Act, 1872 (which relates to the inspection or production of rejected ballot papers); and the High Court or the county court, on being satisfied by evidence on oath that the opening

PART III.
—*cont.*

of the sealed packet of counterfoils or the inspection of any counted ballot papers in the custody of the Clerk of the Crown in Chancery is required for the purpose of instituting or maintaining a prosecution for an offence in relation to ballot papers, or for the purpose of a petition questioning an election or return, shall have the same power under rule 41 of the said First Schedule to make an order for that purpose as a tribunal having cognisance of petitions complaining of undue returns or undue elections, but subject to the same provision for preserving the secrecy of an elector's vote.

(3) Any power given to a court by this section may be exercised by any judge of the court otherwise than in open court.

(4) An appeal shall lie to the High Court from any order of a county court made by virtue of this section.

(5) In the application of this section in relation to parliamentary elections in Scotland—

(a) for any reference to the High Court there shall be substituted a reference to the Court of Session;

(b) for any reference to the county court or to a judge thereof there shall be substituted a reference to the sheriff;

(c) for any reference to the Clerk of the Crown in Chancery, there shall be substituted a reference to a sheriff clerk;

and, except in relation to those elections, this section shall not apply to Scotland.

(6) In the application of this section to Northern Ireland—

(a) any reference to the High Court shall be construed as a reference to the High Court of Justice in Northern Ireland; and

(b) subsection (3) shall not apply to a county court, but any power given to a county court by this section may be exercised in such manner as may be provided by county court rules.

Period of
incapacity for
corrupt or
illegal
practice.

52.—(1) In subsections (3) and (4) of section six of the corrupt practices Act (which render persons convicted of a corrupt practice subject for a period of seven years to certain incapacities in relation to elections and holding office), for the words "seven years" in each place there shall, in relation to persons convicted after the coming into force of this section, be substituted the words "five years".

(2) Section four of the corrupt practices Act (which, in the case of a candidate reported on an election petition to have been personally concerned in any corrupt practice, imposes

the same incapacities as the said section six and a further incapacity for election in the locality in question) shall impose the said further incapacity for a period of ten years only after the date of the report, instead of for life.

PART III.
—cont.

(3) Where any person is subject to any incapacity by virtue of the report of an election court or of election commissioners, and he or some other person in respect of whose acts the incapacity was imposed is on a prosecution acquitted of any of the matters in respect of which the incapacity was imposed, the court may order that the incapacity shall thenceforth cease so far as it is imposed in respect of those matters.

(4) Where any person who is subject to any incapacity as aforesaid is on a prosecution convicted of any such matters as aforesaid, no further incapacity shall be taken to be imposed by reason of the conviction, and the court shall have the like power (if any) to mitigate or remit for the future the incapacity so far as it is imposed by reference to section six or section ten of the corrupt practices Act in respect of the matters of which he is convicted, as if the incapacity had been imposed by reason of the conviction.

(5) The period of incapacity under subsection (5) of section thirty-eight of the corrupt practices Act (which relates to reports of election courts and of election commissioners with respect to persons other than candidates) shall run from the date of the report, instead of the date of the election; but where a person convicted of a corrupt or illegal practice is subsequently reported to have been guilty thereof by an election court or election commissioners (whether under that section or otherwise), no further incapacity shall be imposed on him by reference to section six or ten of the said Act by reason of the report.

(6) A person shall not be prosecuted summarily for a corrupt practice in any case where there may be occasion to exercise the powers conferred by subsections (3) and (4) of this section, and a court exercising any of those powers shall make an order declaring how far, if at all, the incapacities imposed by virtue of the relevant report remain unaffected by the exercise of the said power, and that order shall be conclusive for all purposes.

(7) In paragraphs (c) and (d) of section two of the Public Bodies Corrupt Practices Act, 1889 (which impose certain incapacities on conviction under that Act), for the words "seven years" in each place there shall be substituted the words "five years".

PART III.

—*cont.*Area of
incapacity
and inquiry
into corrupt
and illegal
practices.

53.—(1) Any provision of the corrupt practices Act imposing on a person convicted or reported of a corrupt or illegal practice in reference to an election an incapacity to be elected or sit for the constituency or to be elected to or hold any corporate office in the local government area for which the election was held, shall apply to being elected or sitting for any constituency or to being elected to or holding any corporate office in any local government area, as the case may be, of which the area includes the whole or part of that of the constituency or local government area for which the election was held as constituted for the purposes of the election.

(2) Any provision of the corrupt practices Act imposing on a person convicted or reported of a corrupt or illegal practice in reference to an election an incapacity to be registered as an elector or vote at an election for or within the constituency or local government area for which the election was held shall apply to being registered as an elector and voting at elections for constituencies or local government areas wholly or partly within the area of the constituency or local government area, as the case may be, for which the election was held as constituted for the purposes of the election.

15 & 16 Vict.
c. 57.

(3) The power of election commissioners under section six of the Election Commissioners Act, 1852, where they find that corrupt or illegal practices have been committed at a parliamentary election, to inquire into the latest previous election for the same constituency shall, where a change of boundaries has intervened, extend to the latest election before the change for any constituency of which the area at that election included the whole or part of that of the first mentioned constituency as constituted for the purpose of the election at which the corrupt or illegal practices are found to have been committed:

Provided that, where there has been more than one change of boundary the commissioners shall not inquire into an election for a constituency of which the area at that election did not include some part of the area of the constituency in relation to which they were appointed as constituted for the purposes of the election in relation to which they were appointed.

Computation
of time for
purposes of
election
petitions, etc.

54.—(1) Where the day or last day on which anything is required or permitted to be done by or in pursuance of the Parliamentary Elections Act, 1868, or Part IV of the Municipal Corporations Act, 1882, or the corrupt practices Act or this Part of this Act is any of the days mentioned in the next following subsection, the requirement or permission shall

be deemed to relate to the first day thereafter which is not one of those days, and in computing any period of not more than seven days for the purposes of the said enactments any of the days so mentioned shall be disregarded.

PART III.
—cont.

(2) The days referred to in the foregoing subsection are any Sunday, Christmas Day, Good Friday, any bank holiday under the Bank Holidays Act, 1871, and any day appointed for public thanksgiving or mourning.

34 & 35 Vict.
c. 17.

(3) Section forty-nine of the Parliamentary Elections Act, 1868 (which makes other provision as to the computation of time), shall cease to have effect, and section two hundred and thirty of the Municipal Corporations Act, 1882, shall not have effect for the purposes of Part IV of that Act.

55.—(1) So much of the corrupt practices Act, or of that Act as applied in relation to the Parliament of Northern Ireland and local elections in Northern Ireland, as provides—

Inter-relation
of United
Kingdom and
Northern
Ireland law as
to corrupt and
illegal
practices.

(a) for things done in reference to elections for the Parliament of Northern Ireland and local elections in Northern Ireland affecting matters relating to the Parliament of the United Kingdom and local elections and holding office in Great Britain;

(b) for things done in reference to elections for the Parliament of the United Kingdom and local elections in Great Britain affecting matters relating to the Parliament of Northern Ireland and local elections and holding office in Northern Ireland;

shall cease to have effect.

(2) So long as any person is subject by virtue of the corrupt practices Act as applied as aforesaid or of any Act of the Parliament of Northern Ireland amending or replacing that Act to any incapacity with respect to the Parliament of Northern Ireland, he shall be subject to the like incapacity with respect to the Parliament of the United Kingdom.

(3) So long as any person is subject by virtue of the corrupt practices Act to any incapacity with respect to the Parliament of the United Kingdom, he shall be subject to the like incapacity with respect to the Parliament of Northern Ireland.

(4) Where, by reason of anything done in reference to an election, a person is subject to an incapacity with respect to either Parliament, and the incapacity is limited to a particular constituency or constituencies, then the like incapacity imposed by this section with respect to the other Parliament shall be limited to any constituency which includes the area or part of the area for which the said election was held.

56.—(1) For the purposes of this Part of this Act, the expression "local government area," shall include the City of London, the expression "local government election" shall

Application
of Part III
to City of
London.

PART III.
—*cont.*

include any municipal election in that City (that is to say, any election to which the local corrupt practices Act is applied by section thirty-five thereof) and the expression "corporate office," shall include any office mentioned in paragraph (1) of that section:

Provided that in relation to municipal elections in the City of London this Part of this Act shall have effect subject to the modifications hereafter mentioned in this section.

(2) In relation to those elections—

- (a) in subsection (3) of section forty the reference to the day of election shall be taken as a reference to the day fixed for the election and (where a poll is taken) any day thereafter up to and including the day of the poll, but in relation to a meeting held with reference to an election other than an annual election that subsection shall not apply to an offence committed on or before the day on which the precept is issued;
- (b) the expression "vote" in sections forty-eight and forty-nine shall not include voting otherwise than on a poll, and in the said section forty-nine subparagraph (ii) of paragraph (a) of subsection (2) shall not apply;
- (c) subsection (2) of section forty and subsection (2) of section fifty-one shall not apply.

(3) In relation to ward elections—

- (a) the expression "electoral area" means ward;
- (b) subsection (4) of section thirty-eight shall not apply.

(4) In relation to elections other than ward elections—

- (a) the expression "electoral area" means the City of London;
- (b) sections thirty-eight, forty-two and forty-four shall not apply, and accordingly—

- (i) section twenty-one of the local corrupt practices Act shall be modified as mentioned in subsection (2) of section thirty-nine of this Act, except that the form of declaration as to election expenses shall be such as may be prescribed by Act of Common Council; and

- (ii) in subsection (1) of section fifty-one of this Act, paragraph (b) shall not apply and references to subsection (1) and to subsection (7) of the said section twenty-one shall respectively be substituted for the references to subsection (2) or subsection (4) of section twenty-nine and to section thirty-four of the corrupt practices Act.

PART IV.

SPECIAL PROVISIONS AS TO LOCAL ELECTIONS IN ENGLAND AND WALES.

57.—(1) The ordinary day of election of councillors in England or Wales shall be that provided by the following provisions of this section and not that provided by the local elections Act. Ordinary day
of election.

(2) In the case of county councillors the day shall be a day in the week beginning with the Sunday before the ninth day of April or, if the said ninth day of April is a Sunday, with that day, and shall be such day in that week as the county council may, not later than the preceding twenty-fifth day of January, fix for that purpose:

Provided that, if the said week is Easter week, the week beginning with the Thursday in Easter week shall be substituted therefor, and if the said week is the week before Easter, the week ending with the Wednesday in the week before Easter shall be substituted therefor.

(3) In the case of any other councillors, the day shall be a day in the week beginning with the Sunday before the ninth day of May or, if the said ninth day is a Sunday, with that day:

Provided that if the said week is the week before Whit Sunday, the week ending on the Thursday before Whit Sunday shall be substituted therefor.

(4) The day of election for borough councillors shall be the same throughout England and Wales and shall be fixed for each year by the Secretary of State.

(5) The day of election for district councillors and parish councillors shall be such day as the county council may, not later than the end of the preceding February, fix for that purpose, after consultation, in the case of the election of district councillors, with the district council concerned.

(6) If default is made by a county council in fixing a day of election as required by this section, the day shall be the Tuesday in the week provided by this section.

(7) The Sixth Schedule to this Act shall have effect, as from the passing of this Act, with respect to the day of retirement and date of the annual meeting in the case of councils to which this section applies and for making other amendments consequential on the provisions of this section.

PART IV.
—cont.
Time table
for local
government
elections.

58.—(1) At an election of county councillors in England or Wales—

- (a) the latest time for the delivery of nomination papers shall be noon on the fourteenth day before the day of election (instead of five o'clock in the afternoon on the twelfth day before the day of election); and
- (b) the latest time for the despatch of notices of decisions on nominations and for the publication of the statement of persons nominated shall be noon on the thirteenth day before the day of election (instead of five o'clock in the afternoon on the eleventh day before the day of election); and
- (c) the latest time for delivery of notices of withdrawals from candidatures, and for giving or withdrawing notices as to extending the hours of polling, shall be noon on the twelfth day before the day of election (instead of five o'clock in the afternoon on the ninth day before the day of election);

and the time for doing anything at an election of borough councillors in England or Wales shall be the same as at an election of county councillors.

(2) Paragraph 12 of Part I of the local elections rules (which provides for disregarding Sundays and other days in computing time for the purpose of those rules) shall in England and Wales apply in relation to the Saturday before, and the Tuesday after, Easter day or Whit Sunday as it applies in relation to Sundays and the other days therein mentioned.

Electoral
divisions and
number of
councillors
of L.C.C.

59.—(1) Each parliamentary constituency described in the First Schedule to this Act which is within the administrative county of London shall be an electoral division for the purposes of the election of county councillors, and the number of county councillors to be elected for an electoral division shall be three.

(2) The additional alderman required, in consequence of the increase by virtue of this Act in the number of the said county councillors, to maintain the proportion between the number of aldermen and the number of councillors shall be elected at the first ordinary election of county aldermen after the coming into force of the foregoing subsection.

(3) The consequential matters for which provision may be made by an Order in Council under the House of Commons (Redistribution of Seats) Act, 1944, shall, where the Order makes any change affecting constituencies in the administrative county of London, include any modification of subsection (1) of this section.

60. In England and Wales, the ordinary election of parish councillors shall in all cases be conducted by means of nomination and, if necessary, a poll, and any provision of the Local Government Act, 1933, for their election at a parish meeting or at a poll consequent thereon shall cease to have effect.

PART IV.

—cont.

Method of
election
of parish
councillors.

61.—(1) In England and Wales, the poll at elections of district councillors or parish councillors shall be kept open after eight in the evening if, but only if, a number of candidates nominated at the election, not being less than the number of councillors to be elected, request that the poll may be kept open till nine o'clock in the evening, and shall in that case be kept open until but not after nine o'clock in the evening.

Hours of poll
at district
and parish
elections.

(2) Any request for the purposes of this section shall be by notice in writing signed by the candidate and delivered at the place at which notices of withdrawals from candidatures are required to be delivered not later than the time appointed for the delivery of the said notices by the rules governing the election, and a notice given by any candidate for the purposes of this section shall be of no effect if the candidate is not validly nominated, or if he withdraws, or is deemed to have withdrawn, from his candidature or if he withdraws the notice by a further notice in writing signed by him and delivered at the place and within the time appointed for the delivery of the first mentioned notice.

PART V.

SPECIAL PROVISIONS AS TO LOCAL GOVERNMENT ELECTIONS IN SCOTLAND.

62.—(1) The election of county councillors representing the landward area of a county and the election of elected district councillors for any district of a county shall take place on the second Tuesday of May in the year nineteen hundred and forty-nine and in every third year thereafter.

Alteration of
dates of
election of
county, town
and district
councillors.

(2) The annual retirement and election of town councillors of a burgh shall, in the year nineteen hundred and forty-nine and in every year thereafter, take place on the first Tuesday of May.

(3) The county councillors representing any burgh within a county shall be elected at a meeting of the town council to be held in the month of May after the annual election of town councillors in the year nineteen hundred and forty-nine and in every third year thereafter.

PART V.
—*cont.*

(4) No triennial or annual election of county, town or district councillors shall take place in the year nineteen hundred and forty-eight, and the term of office of any such councillor in office at the commencement of this Part of this Act shall be extended until the day of election of county, town or elected district councillors, as the case may be, next after the day on which such councillor would have retired in ordinary course if this Act had not been passed:

Provided that nothing in this subsection shall operate to continue in office a county councillor representing a burgh after he has ceased to be a town councillor.

(5) A person holding at the commencement of this Part of this Act, any of the following offices—

- (a) convener of a county
- (b) provost of a burgh
- (c) honorary treasurer of a burgh
- (d) chairman of a district council

shall not retire in ordinary course from his office until the day of election of county, town or elected district councillors, as the case may be, next after the day on which such person would have so retired if this Act had not been passed.

(6) A member of a committee of or appointed by any county, town or district council holding office at the commencement of this Part of this Act shall not retire from his office until the day of election of county, town or elected district councillors as the case may be next after the day on which he would have so retired if this Act had not been passed.

(7) Section twenty-seven of the Local Government (Scotland) Act, 1947 (which empowers the Secretary of State to make provision for a different day of election of town councillors of fishing burghs) shall have effect as if for the words from "a day other than" to "Tuesday of February" there were substituted the words "such day not being earlier than the first or later than the last Tuesday of April as may be specified in the order", and any order made, or having effect as if made, under the said section twenty-seven and in force at the commencement of this Part of this Act shall cease to have effect.

(8) At an election of town councillors in Scotland, the latest times for publication of the notice of election, for delivery of nomination papers, and for delivery of notices of withdrawals of nominations, shall be the same in relation to the day of election as in the case of an election of county councillors in relation to the day of that election, and accordingly Part II

of the Second Schedule to the Local Government (Scotland) Act, 1947, shall have effect as if in the heading to the second column the words "or town" were inserted after the word "county," and as if the third column were omitted.

PART V.
—cont.

63.—(1) In the year nineteen hundred and forty-nine and in every year thereafter, a burgh licensing court shall in lieu of meeting on the second Tuesday of April, meet on the second Tuesday of March, and a county or district licensing court shall in lieu of meeting on the third Tuesday of April meet on the third Tuesday of March.

Alteration of
date of
licensing
courts.

(2) For the purposes of—

- (a) any proceeding at the half yearly meeting in March in any year of a licensing court for any area or at any adjournment thereof; or
- (b) any appeal from any such proceeding; or
- (c) any application for confirmation of a new certificate granted at any such meeting or adjournment,

which is not finally disposed of before the expiry in that year of the term of office of any of the members of the licensing court or court of appeal, as the case may be, the members of the licensing court or court of appeal in office at the date of the said meeting, shall, notwithstanding such expiry, be deemed to constitute the licensing court or court of appeal therefrom as the case may be.

64.—(1) The poll at a local government election in Scotland shall, subject as hereinafter provided, commence at eight o'clock in the morning and shall be kept open until eight o'clock in the afternoon of the same day and no longer.

Hours of poll
at local
government
elections in
Scotland.

(2) If before the time appointed by Part II of the Second Schedule to the Local Government (Scotland) Act, 1947, for the delivery of notices of withdrawals of nominations—

- (a) the appropriate council resolve; or
- (b) there is delivered at the place at which such notices as aforesaid are required to be delivered a notice signed by the candidate or candidates authorised as hereinafter mentioned, requesting,

that the poll at a local government election shall—

- (i) commence at seven o'clock in the morning; or
- (ii) be kept open until nine o'clock in the afternoon; or
- (iii) commence at seven o'clock in the morning and be kept open until nine o'clock in the afternoon;

the poll shall commence or be kept open in accordance with such resolution or notice.

PART V.
—cont.

(3) For the purposes of the last foregoing subsection—

- (a) the appropriate council shall be, in relation to the election of a county councillor or to the election of an elected district councillor or councillors, the county council, and in relation to the election of a town councillor or councillors the town council; and
- (b) the candidate or candidates authorised shall be in the case of an election where only one councillor is to be elected a candidate nominated at that election, and in the case of any other local government election a number of candidates nominated at the election not being less than the number of councillors to be elected.

(4) A resolution under subsection (2) of this section shall not be passed unless the council are satisfied that the extension of the hours during which the poll is to be open is necessary in order to afford all the electors such reasonable facilities for voting as are practicable in the circumstances, and a notice signed by a candidate under the said subsection shall be of no effect if the candidate is not validly nominated or withdraws or is deemed to have withdrawn from his candidature or if the candidate or candidates signing the notice withdraws or withdraw the request by a notice signed by him or them and delivered at the place and before the time appointed by Part II of the Second Schedule to the Local Government (Scotland) Act, 1947, for the delivery of notices of withdrawals of nominations.

(5) Where in pursuance of the foregoing provisions of this section the poll at an election of a county councillor for an electoral division is required to commence earlier or to be kept open later than the hours specified in subsection (1) of this section, the requirement shall apply to the poll at an election of a district councillor or councillors for that division or any ward thereof, and where any such requirement is in operation as regards the election of an elected district councillor or councillors for any such electoral division or any ward thereof, the requirement shall apply to the poll at the election of a county councillor for that electoral division or to the poll in that ward as the case may be.

Consequential
and minor
amendments.

65.—(1) The enactments set forth in the Seventh Schedule to this Act shall have effect subject to the amendments therein specified being amendments consequential on the foregoing provisions of this Part of this Act or amendments relating to minor details.

(2) Where it appears to the Secretary of State that by reason of special circumstances affecting any local authority, the provisions of this Part of this Act are in relation to that

authority or any members thereof, inapplicable or inadequate without some addition or modification, he may by order make such provision (including amendment of a local Act applying to the authority) as appears to him to be necessary or expedient in consequence of the changes effected by this Part of this Act in the dates of local government elections.

PART V.
—*cont.*

(3) The power conferred by the last foregoing subsection to make an order shall be exercisable by statutory instrument, and any such instrument shall be subject to annulment by resolution of either House of Parliament.

PART VI.

GENERAL.

Supplemental provisions as to registration, etc.

66.—(1) A registration officer shall comply with any general or special directions which may be given by the Secretary of State with respect to the arrangements to be made by the registration officer for carrying out his registration duties. Discharge of
registration
duties.

(2) Except in Scotland, any of the duties and powers of a registration officer may be performed and exercised by any deputy for the time being approved by the Secretary of State, and the provisions of this Act shall apply to any such deputy so far as respects any duties or powers to be performed or exercised by him as they apply to the registration officer.

(3) A registration officer in England or Wales whose appointment was made by an order of the Secretary of State shall comply with any conditions made by the order as to the appointment of deputies for any part of the constituency.

(4) Any acts authorised or required to be done by or with respect to the registration officer may, in the event of his incapacity to act, or of a vacancy, be done—

(a) in England or Wales, by or with respect to the standing or temporary deputy acting as clerk of the authority under section one hundred and fifteen or one hundred and sixteen of the local elections Act or, in the case of the secondary of the City of London, by or with respect to any person temporarily appointed in that behalf by the Lord Mayor; and

(b) in Northern Ireland, by or with respect to the person appointed to take his place as registration officer for the purpose of elections of members to serve in the House of Commons of Northern Ireland.

(5) A district council in England or Wales (as well as a county or borough council) may assign officers to assist the clerk of the council in carrying out any of his duties in

PART VI.
—cont.

relation to the registration of electors and the conduct of parliamentary elections upon such terms as may be agreed between the council and the clerk, and in Northern Ireland a county, county borough or county district council shall, in relation to the registration of electors, have the like power.

(6) If the Secretary of State is of opinion, as respects any constituency in Northern Ireland which is not wholly within one registration area, that any power or duty of the registration officer ought to be exercised or performed by an officer acting for the whole of the constituency, he may by order direct that that power or duty shall be exercised or performed as respects the whole constituency by the registration officer for such one of the registration areas in which part of the constituency is included as may be specified in the order.

Power to
make
regulations
as to
registration,
etc.

67.—(1) Provision may be made by regulations with respect to the form of the register of electors and of the electors lists or any special lists or records required by this Act in connection with the register or with any election, and with respect to the procedure to be followed in their preparation, and with respect to the time, place and manner of their publication, and generally with respect to any matters incidental to the provisions of this Act so far as those provisions relate to the registration of electors or to voting by post or proxy.

(2) The said incidental matters shall be taken to include the time and manner of preparation and publication and form of, and the making and determination of claims or objections with respect to, the corrupt and illegal practices lists required by section thirty-nine of the corrupt practices Act, and that section, except subsection (1) thereof, shall accordingly cease to have effect.

(3) Without prejudice to the generality of the foregoing subsections, regulations made with respect to the matters therein mentioned may contain any such provisions as are mentioned in the Eighth Schedule to this Act.

Payment of
expenses of
registration.

68.—(1) Any expenses properly incurred by a registration officer in the performance of his registration duties (in this Act referred to as "registration expenses") shall (except in Northern Ireland) be paid by the local authority whose clerk is registration officer and there shall be paid to the local authority—

- (a) out of moneys provided by Parliament one half of the amount of the registration expenses paid by the authority; and
- (b) where the registration officer acts for an area outside the area of the authority such contributions by any

other local authority as the Secretary of State may direct.

PART VI.
—cont.

(2) The registration expenses of a registration officer in Northern Ireland shall be paid out of moneys provided by Parliament.

(3) Any fees or other sums received by the registration officer in respect of his registration duties, other than sums paid to that officer in respect of his registration expenses, shall be accounted for by that officer and paid to the local authority whose clerk he is, and any sums receivable by a local authority under this subsection shall be accounted for by that authority to the Treasury and, as to one half thereof, be paid into the Exchequer of the United Kingdom:

Provided that, in the case of a registration officer in Northern Ireland, the whole amount shall be accounted for by that officer to the Treasury and paid into the Exchequer of the United Kingdom.

(4) Any expenses properly incurred by the clerk of the authority of any county borough, metropolitan borough or county district in pursuance of the requisition of a registration officer requiring him to perform any of the functions of that registration officer or to furnish him with information shall be paid by the registration officer as part of his registration expenses.

(5) On the request of a registration officer for an advance on account of registration expenses, the local authority whose clerk is registration officer or, in the case of a registration officer in Northern Ireland, the Treasury may, if they think fit, make such an advance to him of such an amount and subject to such conditions as they may approve.

(6) Any registration expenses or contribution thereto paid by a county council in England or Wales shall, if the case requires, be paid as expenses for special county purposes.

(7) Any registration expenses or contribution thereto paid by the common council of the City of London shall be paid out of the general rate and any sums paid to the common council under this section shall be placed to the credit of that rate.

(8) In the application of this section to Scotland, for any reference to the local authority whose clerk is registration officer there shall be substituted a reference to the council of the county or burgh the assessor of which is registration officer.

PART VI.

—cont.

Ascertainment
of amount of
registration
expenses.

69.—(1) The registration expenses payable to a registration officer—

- (a) shall include all proper and reasonable charges for his own personal remuneration for performing his registration duties and for the remuneration and expenses of any staff provided by a local authority to enable him to perform them; but
- (b) shall not include any sum on account of the use of premises, furniture or equipment provided by a local authority in excess of the amount by which that authority's expenditure has been actually and directly increased by the use of those premises or of that furniture or equipment in connection with registration.

(2) The foregoing subsection shall apply in relation to the expenses payable by a registration officer to the clerk of the authority of a county borough, metropolitan borough or county district acting in pursuance of a requisition of that registration officer, as it applies in relation to the registration expenses payable to a registration officer.

(3) The Treasury may frame a scale of registration expenses applicable to all or any class or classes of those expenses, and may alter the scale as and when they think fit, and any expenses incurred by a registration officer of a class to which the scale is applicable—

- (a) shall be taken to be properly incurred if they do not exceed the maximum amount determined by or in accordance with the scale; and
- (b) shall be taken not to have been properly incurred so far as they do exceed that amount, unless the sanction (whether previous or not) of the Treasury, and (except in Northern Ireland) that of the local authority, is specially given for the excess.

(4) Nothing in paragraph (a) of the last foregoing subsection shall be construed as entitling a registration officer to receive payments in excess of the expenses actually incurred by him, except his proper and reasonable charges for his own personal remuneration.

(5) If any question arises whether any expenses incurred by a registration officer of a class to which no scale framed under this section is applicable have been properly incurred or not, that question shall be referred to the Secretary of State, and his decision thereon shall be final.

(6) The Treasury may make with the appropriate department of the government of Northern Ireland arrangements for determining what part of any expenses incurred in connection with the registration of electors or voting by post or

proxy in Northern Ireland is to be attributed respectively to this Act and to the law of Northern Ireland, in cases where any document used or thing done has effect for the purposes of both, and the arrangements may make provision—

- (a) for making any scale of registration expenses framed for the purposes of either applicable to expenses incurred wholly or partly for the purposes of the other, being expenses which cannot readily be kept separate from other expenses to which the scale applies;
- (b) for the apportionment in such manner as may be agreed of any such expenses; and
- (c) as to the manner in which any such expenses are to be paid in the first instance;

and in the application of this section to Northern Ireland paragraph (b) of subsection (1) shall not apply.

70.—(1) An appeal shall lie to the county court—

Registration
appeals.

- (a) from any decision under this Act of the registration officer on any claim for registration or objection to a person's registration made to and considered by him;
- (b) from any decision under this Act of the registration officer disallowing a person's application to be treated as an absent voter or to vote by post as proxy, in any case where the application is not made for a particular election only;
- (c) from any decision under this Act of the registration officer to place or not to place against any name in the register a mark indicating that the person registered is or is not registered as a service voter or as a non-resident or is or is not entitled to vote for a particular local government area:

Provided that an appeal shall not lie where the person desiring to appeal has not availed himself of a prescribed right to be heard by or make representations to the registration officer on the matter which is the subject of the appeal, or has not given the prescribed notice of appeal within the prescribed time.

(2) No appeal shall lie from the decision of the Court of Appeal on appeal from a decision of the county court under this section.

(3) An appeal to the county court or Court of Appeal by virtue of this section which is pending when notice of an election is given shall not prejudice the operation as respects the election of the decision appealed against, and anything

PART VI.
—cont.

done in pursuance of the decision shall be as good as if no such appeal had been brought and shall not be affected by the decision of the appeal.

(4) Notice shall be sent to the registration officer in manner provided by rules of court of the decision of the county court or of the Court of Appeal on any appeal by virtue of this section, and the registration officer shall make such alterations in the electors lists or register as may be required to give effect to the decision.

(5) The registration officer shall undertake such duties in connection with appeals brought by virtue of this section as may be prescribed and shall on any such appeal be deemed to be a party to the proceedings, and the registration expenses payable to a registration officer shall include any expenses properly incurred by him by virtue of this subsection.

(6) Where a county court judge appoints a person to act as his deputy, and the Lord Chancellor on the representation of the judge is satisfied that the judge would otherwise have been unable, owing to the necessity of dealing with appeals under this section, to transact the business of his court with proper despatch, there shall be paid to the deputy out of moneys provided by Parliament such remuneration as the Lord Chancellor, with the approval of the Treasury, thinks fit to allow.

(7) This section shall apply in relation to decisions on claims and objections with respect to any corrupt and illegal practices list as it applies in relation to the decisions mentioned in subsection (1) but as if a reference to that list were included in the reference to the electors lists and with any other prescribed modifications.

(8) This section shall apply to Scotland subject to the following modifications:—

- (a) subsections (2) and (6) shall be omitted;
- (b) for any reference to the county court there shall be substituted a reference to the sheriff;
- (c) an appeal shall lie on any point of law from any decision of the sheriff under this section to the court of three judges of the Court of Session appointed under section twenty-three of the Representation of the People (Scotland) Act, 1868, and that section shall have effect as if for references to the appeals therein mentioned and to that Act there were respectively substituted references to appeals under this paragraph and to this Act; and
- (d) for any reference to the Court of Appeal there shall be substituted a reference to the said court of three judges.

(g) Subsections (2), (4) and (6) of this section shall not apply to Northern Ireland, but—

PART VI.
—cont.

- (a) any decision of a county court upon a point of law under subsection (1) of this section shall be appealable in the same way and subject to the same provisions as a corresponding decision under the law relating to the registration of electors for elections of members to sit in the House of Commons of Northern Ireland, and the reference in subsection (3) of this section to the Court of Appeal shall be construed accordingly; and
- (b) any provision of the said law relating to the appointment of assistants to judges of county courts by reason of pressure of business due to appeals thereunder and any power to make rules of court with respect to those appeals shall apply to appeals under this section.

71.—(1) For the purposes of this Act, the expression “member of the forces” means a person serving on full pay as a member of any of the naval, military or air forces of the Crown raised in the United Kingdom: Supplemental provisions as to members of the forces and service voters.

Provided that the expression shall not include a person serving only as a member of a reserve or auxiliary force except in so far as regulations provide that it shall include persons so serving during a period of emergency.

(2) The reference in the foregoing subsection to the naval, military or air forces of the Crown shall include any women's force administered by the Admiralty, Army Council or Air Council.

(3) Where a person is not a member of the forces as defined by the foregoing provisions of this section but is, in the performance of his duty as a member of any of His Majesty's reserve or auxiliary forces, absent on the qualifying date from an address at which he has been residing, any question arising under subsection (2) of section two of this Act whether his residence at that address has been interrupted on that date by his absence in the performance of that duty shall be determined as if the performance thereof did not prevent his resuming actual residence at any time after that date.

(4) Arrangements shall be made by the appropriate government department for securing that (so far as circumstances permit) every person having a service qualification by virtue of paragraph (a) or (b) of subsection (1) of section six of this Act shall—

- (a) have an effective opportunity of exercising from time to time as occasion may require the rights conferred

PART VI.
—cont.

on him by this Act in relation to the making and cancellation of service declarations and of appointments of a proxy, and in relation to voting by post; and

- (b) receive such instructions as to the effect of this Act and any regulations made under it, and such other assistance, as may be reasonably sufficient in connection with the exercise by him and, in the case of a man, by his wife of any rights conferred on them as aforesaid:

Provided that the arrangements need not extend to members of the forces who are for the time being under the age of twenty-one and will in the ordinary course cease to be members of the forces before attaining that age.

(5) In the last foregoing subsection the expression "the appropriate government department" means, in relation to members of the forces, the Admiralty, Army Council or Air Council, as the case requires, and in relation to any other person means the government department under which he is employed in the employment giving the service qualification.

Superannuation rights of contributory] employees in England and Wales.

72.—(1) Any contributory employee or local Act contributor who received remuneration in respect of work done by him in the year nineteen hundred and thirty-nine in connection with the preparation of a register of electors under the Representation of the People Act, 1918, for any area in England or Wales shall be entitled to contribute a sum in respect of that remuneration to the appropriate superannuation fund in respect of any year in which a register is prepared under this Act, if—

- (a) he was required to do the work in the year nineteen hundred and thirty-nine by virtue (directly or indirectly) of the post as officer or servant of a local authority which he holds in the later year; and
- (b) he does not receive remuneration in respect of work done by him in the later year in connection with the preparation of the register under this Act to an amount greater than that of the first-mentioned remuneration.

(2) Where a person makes a contribution under this section in respect of any year, he shall not be required or entitled to make, in respect of that year, any contribution under the Local Government Superannuation Act, 1937, or the local Act scheme, as the case may be, in respect of any remuneration received by him in respect of work done by him in that year in connection with the preparation of a register under this Act.

(3) Where a person makes a contribution under this section in respect of any year, then for the purpose of computing in accordance with the provisions of section eight of the said Act of 1937 his average remuneration (if he is a contributory employee), or of calculating his superannuation allowance under a local Act scheme (if he is a local Act contributor) he shall be deemed—

- (a) to have received in respect of service rendered in that year the remuneration by reference to which the contribution was calculated; and
 - (b) not to have received in respect of that year any such remuneration as is mentioned in the last foregoing subsection.
- (4) In this section—
- (a) the expressions “contributory employee,” “local Act contributor,” “local Act scheme” and “appropriate superannuation fund” have the same meanings respectively as in the said Act of 1937, except that in relation to a local Act contributor the last mentioned expression means the superannuation fund in the benefits of which he is entitled to participate;
 - (b) references to remuneration in respect of any work do not include an inclusive salary paid partly in respect of that work and partly in respect of the recipient’s ordinary work as an officer or servant of a local authority.

Miscellaneous.

73.—(1) Proceedings under the Ballot Act, 1872, or under the Corrupt and Illegal Practices Prevention Act, 1883, or under this Act so far as it relates to parliamentary elections, in respect of an offence alleged to have been committed outside the United Kingdom by a British subject may be taken before the appropriate court in the United Kingdom having jurisdiction in the place where the person charged is for the time being.

Punishment of offences committed outside the U.K.

(2) Any period fixed by law as the period within which proceedings may be commenced shall, in the case of any such proceedings as aforesaid, be reckoned as from the date on which the person charged first landed in the United Kingdom next after the commission of the offence, and for the purposes of this provision a person entering Northern Ireland by land shall be deemed thereby to land in the United Kingdom.

74.—(1) The Tenth Schedule to this Act shall have effect with respect to the interpretation and adaptation of Acts other than this Act and with respect to the other matters dealt with in that Schedule, so, however, that the inclusion

Adaptation, interpretation and minor amendments of law,

PART VI.
—cont.52 & 53 Vict.
c. 63.

in that Schedule of any express provision shall not be taken to prejudice the operation in relation to this Act of any provision of the Interpretation Act, 1889, as to repeals.

(2) The provisions of the said Tenth Schedule may be supplemented in relation to any Act passed before this Act by an order made by the Secretary of State in any particular case where that appears to him necessary for harmonising that Act with this Act.

(3) Any power conferred by this section or by the said Schedule to make an order shall be exercisable by statutory instrument, and any such instrument shall be subject to annulment by resolution of either House of Parliament.

(4) For the form of writ for a parliamentary election set out in the Second Schedule to the Ballot Act, 1872, there shall be substituted the form set out in Part I of the Ninth Schedule to this Act.

(5) The enactments mentioned in the Eleventh Schedule to this Act shall cease to have effect to the extent specified in the third column of that Schedule.

Construction
of references
to local
elections
Act, local
elections
rules, and
corrupt
practices Acts.
23 & 24 Geo. 5.
c. 51.
2 & 3 Geo. 6.
c. 40.
10 & 11 Geo. 6.
c. 43.

75.—(1) In this Act, except in so far as the context otherwise requires—

(a) the expression “ the local elections Act ” means—

(i) in relation to England and Wales, except London, the Local Government Act, 1933;

(ii) in relation to London, the London Government Act, 1939; and

(iii) in relation to Scotland, the Local Government (Scotland) Act, 1947; and

(b) the expression “ the local elections rules ” means the Second Schedule to the local elections Act.

(2) In this Act, except in so far as the context otherwise requires—

(a) the expression “ the parliamentary corrupt practices Act ” means the Corrupt and Illegal Practices Prevention Act, 1883;

(b) the expression “ the local corrupt practices Act ” means the Municipal Elections (Corrupt and Illegal Practices) Act, 1884, or, in relation to Scotland, the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890; and

(c) the expression “ the corrupt practices Act ” means the parliamentary corrupt practices Act and the local corrupt practices Act,

46 & 47 Vict.
c. 51.

47 & 48 Vict.
c. 70.

53 & 54 Vict.
c. 55.

(3) The tables of comparison set out in the Twelfth Schedule to this Act show (so far as is necessary for the construction of this Act) the provisions of the Acts there mentioned which correspond to one another, and except in so far as the context otherwise requires—

(a) any reference in this Act to a specified provision of the local elections Act or rules, or of the corrupt practices Act, by that name shall be taken as a reference both to—

(i) the provision specified of the Act or rules referred to in the first column of the said Schedule; and

(ii) any corresponding provision of the Acts referred to in the second and third columns thereof; and

(b) any reference in this Act to a specified provision of the local corrupt practices Act by that name shall be taken as a reference to—

(i) the provision specified of the Act referred to in the second column of that Schedule; and

(ii) any corresponding provision of the Act referred to in the third column thereof.

76.—(1) In this Act, unless the context otherwise requires,—

General
provisions as to
interpretation.

the expression “ dwelling house ” includes any part of a house where that part is occupied separately as a dwelling house;

the expression “ legal incapacity ” includes (in addition to any incapacity by virtue of any subsisting provision of the common law) any disqualification imposed by the corrupt practices Act or any other Act;

the expression “ prescribed ” means prescribed by regulations;

the expression “ registration duties ” includes the duties of a registration officer as such with respect to voting by post or by proxy, with respect to any corrupt and illegal practices list and with respect to the lists of rooms to the use of which candidates are entitled under this Act;

the expression “ service voter ” means a person whose service declaration is for the time being in force or who remains registered in pursuance of a service declaration no longer in force.

(2) Any provision of the local elections Act applying the local elections rules to elections under that Act shall have, in

PART VI.
—cont.

relation to the provisions of this Act dealing with the subject matter of those rules, the like operation as it has in relation to those rules:

Provided that voting by post or by proxy shall not be allowed at any election of auditors in a borough to which the local elections rules are applied by section two hundred and thirty-eight of the Local Government Act, 1933.

(3) References in this Act to any enactment shall, except in so far as the context otherwise requires, be taken as referring to that enactment as amended by any other enactment, including this Act.

(4) Any power conferred by this Act to make regulations shall, except where this Act otherwise provides, be a power exercisable by the Secretary of State by statutory instrument, which shall not come into force unless or until it is approved by resolution of each House of Parliament.

Interpretation
and
application
of local
government
provisions in
England
and Wales.

77.—(1) In this Act unless the context otherwise requires the following expressions have, in relation to England and Wales, the meanings assigned to them by this subsection, that is to say—

the expression “borough” includes a metropolitan borough;

the expression “county” means (subject to subsection (5) of this section) an administrative county;

the expression “county district” means a borough other than a metropolitan or county borough, an urban district or a rural district;

the expression “electoral area” means any electoral division, borough, ward, district, parish or other area for which an election of councillors is held under the Local Government Act, 1933, or the London Government Act, 1939;

the expression “local government area” means a county, borough, urban or rural district or parish;

the expression “local government election” means an election of councillors for any electoral area;

the expression “parish” means a rural parish within the meaning of the Local Government Act, 1933.

(2) In this Act the expression “clerk of the authority” in relation to a borough means the town clerk, and where the town clerk of a borough is registration officer, references to the authority whose clerk he is refer to the borough council; and references to the clerk of the authority of a county borough, metropolitan borough or county district acting on the requisition of a registration officer include an officer designated by the council thereof and so acting.

(3) Any provision of the Local Government Act, 1933, the Local Government Act, 1888, or the London Government Act, 1939, applying the Municipal Elections (Corrupt and Illegal Practices) Acts, 1884 and 1911, or either of them in relation to local authorities in England or Wales shall have, in relation to the provisions of this Act dealing with the subject matter of the enactments applied, the like operation as it has in relation to those enactments.

(4) Subject to any express provision therein contained this Act, so far as it has effect for the purposes of parliamentary elections or of elections of London county councillors, shall apply in relation to the City of London as if it were a metropolitan borough and as if the common council were a metropolitan borough council, but with the substitution for references to the town clerk of references to the secondary; and for the purposes of this subsection the Inner Temple and Middle Temple shall be treated as forming part of the said City.

(5) This Act shall apply in relation to the Isles of Scilly as if those isles were an administrative county and as if the council of those isles were a county council, except that—

(a) paragraph 1 of the Eighth Schedule and any reference to a person acting in pursuance of the requisition of a registration officer shall apply as if the isles were a county district and the council were a district council; and

(b) the provisions of Part II relating to the conduct of local government elections shall have effect in relation to those isles subject to such adaptations as the Minister of Health may by statutory instrument prescribe.

78.—(1) The provisions of this section shall in addition to any express provision for the application to Scotland of any provision of this Act have effect for the general application of this Act to Scotland.

(2) For any reference to a county borough or a borough there shall be substituted a reference to a burgh, and for any reference to a borough constituency whether in this Act or in any amendment made by this Act in any other Act there shall be substituted a reference to a burgh constituency.

(3) The following expressions have the following meanings respectively:—

the expression “ assessor ” means the assessor appointed under the Lands Valuation (Scotland) Act, 1854;

the expression “ local authority ” means the council of a county or of a large burgh;

PART VI.
—cont.

the expression "county" means a county inclusive of any small burgh situate therein, and in the case of counties combined for the purposes mentioned in subsection (1) of section one hundred and eighteen of the Local Government (Scotland) Act, 1947, means the combined county, and "council" means the joint county council;

the expressions "electoral area", "large burgh" and "small burgh" have the like meanings as in the last mentioned Act;

the expression "local government area" means a county, burgh or district; and

the expression "local government election" means an election of councillors for any electoral area.

(4) Any reference to the report of an election court shall in relation to an election court under the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890, be construed as a reference to a finding of the court and the expression "reported of a corrupt or illegal practice," shall be construed accordingly.

General
application to
Northern
Ireland.

79.—(1) The following provisions shall, in addition to any express provision for the application to Northern Ireland of any provision of this Act, have effect for the general application of this Act to Northern Ireland, that is to say:—

(a) for references to the Clerk of the Crown in Chancery there shall be substituted references to the Clerk of the Crown for Northern Ireland;

(b) the expression "summary conviction" means conviction subject to, and in accordance with, the Petty Sessions (Ireland) Act, 1851, and any Act (including an Act of the Parliament of Northern Ireland) amending that Act;

(c) subject to the next following subsection, a reference to any enactment shall be construed as a reference to that enactment as it applies in Northern Ireland.

(2) Nothing in this Act shall affect the law relating to the Parliament of Northern Ireland or to local government in Northern Ireland except so far as is expressly provided by this Act.

(3) So much of this Act as relates to matters with respect to which the Parliament of Northern Ireland has power to make laws shall be deemed for the purposes of section six of the Government of Ireland Act, 1920 (which relates to that power) to be a provision of an Act passed before the appointed day for the purposes of that section.

PART VI.
—cont.
Commence-
ment, repeals,
etc.

80.—(1) Except where otherwise expressly provided, the provisions of Parts I and II of this Act and, for the purposes of the said Parts I and II, Part VI thereof shall come into force so as to enable the first register of electors prepared under this Act to be the autumn register in the year nineteen hundred and forty-nine, and shall have effect with respect to that register and subsequent registers under this Act and the elections for which they are used.

(2) Notwithstanding anything in the foregoing subsection, the provisions of the said Parts I and VI relating to the constituencies which are to return members to serve in Parliament (including provisions relating to returning officers for those constituencies) except as aforesaid, shall come into force for the purposes of the first general election after the passing of this Act, and shall not affect—

- (a) the constitution of the House of Commons in the Parliament passing this Act; or
- (b) the right of any person to vote at an election of a member to serve for a university constituency in that Parliament or the conduct of any such election (including the manner of voting thereat):

Provided that, without prejudice to section thirty-seven of the Interpretation Act, 1889 (which authorises the taking before an Act comes into operation of the necessary steps to bring it into operation), it shall be the duty of the authority having power to divide a constituency established by this Act into polling districts, and designate polling places for the polling districts, to take the matter into consideration as soon as may be after the passing of this Act and make such division and designate such polling places as will be required for the purposes of the said general election.

(3) The provisions of the said Parts II and VI, so far as they relate to voting by post or by proxy at local government elections or amend the local elections rules, shall come into force on the appointed day.

(4) Except where otherwise expressly provided, the provisions of Part III of this Act and, so far as relates to the said Part III, Part VI thereof shall come into force on the appointed day.

(5) Except where otherwise expressly provided, the provisions of Part IV of this Act and, so far as relates to the said Part IV, Part VI thereof shall come into force for the purposes of the first ordinary election of councillors held after the passing of this Act.

PART VI.
—cont.

(6) The provisions of Part V of this Act and, so far as relates to the said Part V, Part VI thereof shall come into force on the first day of October, nineteen hundred and forty-eight.

(7) The enactments mentioned in the Thirteenth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule:

Provided that without prejudice to any provision of the Interpretation Act, 1889, as to repeals,—

- (a) the repeal by this Act of any enactment abolishing any ground of incapacity to be registered as an elector or to vote shall not be taken as restoring that ground of incapacity;
- (b) the repeal by this Act of any provision relating to registration expenses, or the expenses of returning officers at parliamentary elections, shall not affect the operation of that provision with respect to expenses incurred in connection with any register prepared or election begun before the repeal has effect;
- (c) the repeal by this Act of section eighteen of the Representation of the People Act, 1918, shall not affect any compensation payable thereunder;
- (d) any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or to the corresponding enactment, if any, in this Act.

(8) No provision in this Act shall apply in relation to any parliamentary bye-election or local government election begun before it comes into force.

(9) Regulations may be made for the purpose of facilitating the coming into operation, or into full operation, of the provisions of this Act and for adjusting those provisions during any period when it has a partial operation only, including in particular regulations providing—

- (a) for altering, in connection with the first register prepared under this Act, the qualifying date or the date of publication;
- (b) for continuing in force anything made or done for the purposes of any enactment repealed by this Act until superseded under this Act;
- (c) for making any savings or additional savings from the effect of any repeal,

(10) For the purposes of this section—

PART VI.
—cont.

- (a) the expression “ the appointed day ” means such day as the Secretary of State may by statutory instrument appoint, and different days may be appointed for different purposes;
- (b) an election shall be deemed to be begun on the day on which notice of the election is given.

81. This Act may be cited as the Representation of the People Act, 1948, and this Act and the House of Commons (Redistribution of Seats) Act, 1947, shall be included among the Acts which may be cited as the Representation of the People Acts. Short title,
and citation.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

PARLIAMENTARY CONSTITUENCIES.

[NOTE.—The constituencies are described by reference to circumstances as they existed immediately before the end of the year 1947, except as otherwise stated and except that any subsequent accretion from the sea, whether natural or artificial and whether occurring before or after the passing of this Act, shall be taken to be included in the constituency or constituencies which it adjoins, in proportion to the extent of the common boundary.]

PART I.

ENGLAND.

BEDFORDSHIRE.

(a) *County Constituencies*

<i>Name.</i>	<i>Contents.</i>
1. Bedford ...	(i) The borough of Bedford ; (ii) the urban district of Kempston ; (iii) the rural district of Bedford, except the parishes included in the Mid-Bedfordshire constituency.
2. Mid-Bedfordshire...	(i) The urban districts of Ampthill, Biggleswade and Sandy ; (ii) the rural districts of Ampthill and Biggleswade and the following parishes in the rural district of Bedford, namely, Cardington, Colmworth, Cople, Eaton Socon, Eastcotts, Elstow, Great Barford, Kempston Rural, Little Barford, Renhold, Roxton, Stagsden, Stewartby, Wilden, Willington, Wilshamstead and Wootton.
3. South Bedfordshire	(i) The borough of Dunstable and the Leagrave and Limbury wards of the borough of Luton ; (ii) the urban district of Leighton Buzzard ; (iii) the rural district of Luton.

(b) *Borough Constituency.*

<i>Name.</i>	<i>Contents.</i>
1. Luton ...	.. The borough of Luton, except the Leagrave and Limbury wards,

BERKSHIRE.

1ST SCH.
—cont.

(a) *County Constituencies.*

<i>Name.</i>	<i>Contents.</i>
1. Abingdon ...	(i) The boroughs of Abingdon and Wallingford ; (ii) the urban district of Wantage ; (iii) the rural districts of Abingdon, Faringdon, Wallingford and Wantage.
2. Newbury ...	(i) The borough of Newbury ; (ii) the rural districts of Bradfield, Hungerford and Newbury.
3. Windsor ...	(i) The boroughs of Maidenhead and New Windsor ; (ii) the rural districts of Cookham and Windsor.
4. Wokingham ...	(i) The borough of Wokingham ; (ii) the rural districts of Easthampstead and Wokingham.

(b) *Borough Constituencies.*

1. Reading North ...	The following wards of the county borough of Reading, namely, Abbey, Battle, Castle, Caversham East, Caversham West, Tilehurst and Victoria.
2. Reading South ...	The following wards of the county borough of Reading, namely, Church, East, Katesgrove, Minster, Redlands and West.

BUCKINGHAMSHIRE.

(a) *County Constituencies.*

1. Aylesbury ...	(i) The borough of Aylesbury ; (ii) the urban district of Chesham ; (iii) the rural district of Aylesbury and the following parishes in the rural district of Amersham, namely, Ashley Green, Chartridge, Cholesbury cum St. Leonards, Great Missenden, Latimer, Lee and Little Missenden.
2. Buckingham ...	(i) The borough of Buckingham ; (ii) the urban districts of Bletchley, Linslade, Newport Pagnell and Wolverton ; (iii) the rural districts of Buckingham, Newport Pagnell, Wing and Winslow.
3. South Buckinghamshire	(i) The urban district of Beaconsfield ; (ii) the rural district of Eton and the following parishes in the rural district of Amersham, namely, Amersham, Chalfont St. Giles, Chalfont St. Peter, Chenies, Chesham Bois, Coleshill, Penn and Seer Green.
4. Wycombe ...	(i) The borough of High Wycombe ; (ii) the urban district of Marlow ; (iii) the rural district of Wycombe.

1ST SCH.
—cont.(b) *Borough Constituency.**Name.**Contents.*

1. Eton and Slough ... (i) The borough of Slough ;
(ii) the urban district of Eton.

CAMBRIDGESHIRE.

(a) *County Constituency.*

1. Cambridgeshire ... The county of Cambridge, except the borough of Cambridge.

(b) *Borough Constituency.*

1. Cambridge ... The borough of Cambridge.

CHESHIRE.

(a) *County Constituencies.*

1. Cheadle ... The urban districts of Bredbury and Romiley, Cheadle and Gatley, Hazel Grove and Bramhall and Marple.
2. City of Chester ... (i) The county borough of Chester ;
(ii) the urban district of Hoole ;
(iii) the rural district of Chester.
3. Crewe ... (i) The borough of Crewe ;
(ii) the urban district of Nantwich ;
(iii) the rural district of Nantwich.
4. Knutsford ... (i) The urban districts of Alderley Edge, Alsager, Bowdon, Hale, Knutsford, Sandbach and Wilmslow.
(ii) The rural districts of Bucklow and Congleton.
5. Macclesfield ... (i) The boroughs of Congleton and Macclesfield ;
(ii) the urban district of Bollington ;
(iii) the rural districts of Disley and Macclesfield.
6. Northwich ... (i) The urban districts of Middlewich, Northwich and Winsford ;
(ii) the rural districts of Northwich and Tarvin.
7. Runcorn ... (i) The urban districts of Lymm and Runcorn ;
(ii) the rural district of Runcorn.
8. Stalybridge and Hyde (i) The boroughs of Dukinfield, Hyde and Stalybridge ;
(ii) the urban district of Longdendale ;
(iii) the rural district of Tintwistle.
9. Wirral ... The urban districts of Ellesmere Port, Hoylake, Neston and Wirral.

(b) *Borough Constituencies.*

1. Altrincham and Sale The boroughs of Altrincham and Sale.

<i>Name.</i>	<i>Contents.</i>
2. Bebington...	... The borough of Bebington and the following wards of the county borough of Birkenhead, namely, Bebington, Devonshire, Egerton, Mersey and Prenton.
3. Birkenhead	... The county borough of Birkenhead, except the wards included in the Bebington constituency.
4. Stockport North ...	The following wards of the county borough of Stockport, namely, Edgeley, Heaton Lane, Heaton Norris North, Heaton Norris South, Hollywood, Lancashire Hill, Old Road, Reddish North and Reddish South.
5. Stockport South ...	The following wards of the county borough of Stockport, namely, Cale Green, Davenport, Heaviley, Hempshaw Lane, Portwood, St. Mary's, St. Thomas's, Shaw Heath and Vernon.
6. Wallasey ...	... The county borough of Wallasey.

1ST SCH.
—cont.

CORNWALL.

County Constituencies.

1. Bodmin ... (i) The boroughs of Bodmin, Fowey, Liskeard, Lostwithiel, and Saltash ;
(ii) the urban districts of Looe and Torpoint ;
(iii) the rural districts of St. Germans and Liskeard, the following parishes in the rural district of St. Austell, namely, Lanlivery, Luxulyan and St. Sampson, and the following parishes in the rural district of Wadebridge, namely, Blisland, Cardinham, Helland, Lanhydrock, Lani-vet and Withiel.
2. Falmouth and Camborne (i) The boroughs of Falmouth and Penryn ;
(ii) the urban district of Camborne-Redruth ;
(iii) the following parishes in the rural district of Kerrier, namely, Budock, Constantine, Crowan, Mabe, Mawnan, St. Gluvais, Stithians and Wendron, the following parishes in the rural district of West Penwith, namely, Gwinear-Gwithian and Hayle, and the parish of Gwennap in the rural district of Truro.
3. North Cornwall ... (i) The borough of Dunheved, otherwise Launceston ;
(ii) the urban districts of Bude-Stratton, Newquay and Padstow ;
(iii) the rural districts of Camelford, Launceston and Stratton, the following parishes in the rural district of St. Austell, namely, Colan, Mawgan in Pyder, St. Columb Major, St. Enoder and St. Wenn and the rural district of Wadebridge except the parishes included in the Bodmin constituency.

1ST SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
4.	St. Ives ...	... (i) The boroughs of Helston, Penzance and St. Ives ; (ii) the urban district of St. Just ; (iii) the Isles of Scilly ; (iv) the rural districts of Kerrier and West Penwith except the parishes included in the Falmouth and Camborne constituency.
5.	Truro ...	... (i) The borough of Truro ; (ii) the urban district of St. Austell ; (iii) the rural district of Truro except the parish included in the Falmouth and Camborne constituency, and the rural district of St. Austell except the parishes included in the Bodmin and North Cornwall constituencies.

CUMBERLAND.

(a) *County Constituencies.*

1.	Penrith and the Border	... (i) The urban district of Penrith ; (ii) the rural districts of Alston with Garrigill, Border, Penrith and Wigton.
2.	Whitehaven	... (i) The borough of Whitehaven ; (ii) the rural districts of Ennerdale and Millom.
3.	Workington	... (i) The borough of Workington ; (ii) the urban districts of Cockermouth, Keswick and Maryport ; (iii) the rural district of Cockermouth.

(b) *Borough Constituency.*

1.	Carlisle ...	... The county borough of Carlisle.
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DERBYSHIRE.

(a) *County Constituencies.*

1.	Belper ...	... (i) The urban districts of Belper and Swadlincote District ; (ii) the rural district of Repton and the rural district of Belper except the parish of Shipley.
2.	Bolsover	... (i) The urban district of Bolsover ; (ii) the rural districts of Blackwell and Clowne.
3.	High Peak	... (i) The boroughs of Buxton and Glossop ; (ii) the urban districts of New Mills and Whaley Bridge ; (iii) the rural district of Chapel en le Frith.

<i>Name.</i>	<i>Contents.</i>
4. Ilkeston ...	(i) The borough of Ilkeston ; (ii) the urban districts of Alfreton, Heanor and Ripley ; (iii) the parish of Shipley in the rural district of Belper.
5. North East Derbyshire	(i) The urban districts of Clay Cross and Dronfield ; (ii) the rural district of Chesterfield except the parish of Brimington.
6. South East Derbyshire	(i) The urban district of Long Eaton ; (ii) the rural district of Shardlow.
7. West Derbyshire ...	(i) The urban districts of Ashbourne, Bakewell, Matlock and Wirksworth ; (ii) the rural districts of Ashbourne and Bakewell.
(b) <i>Borough Constituencies.</i>	
1. Chesterfield ...	(i) The borough of Chesterfield ; (ii) the urban district of Staveley ; (iii) the parish of Brimington in the rural district of Chesterfield.
2. Derby North ...	The following wards of the county borough of Derby, namely, Abbey, Babington, Becket, Bridge, Derwent, Friar Gate, King's Mead and Rowditch.
3. Derby South ...	The following wards of the county borough of Derby, namely, Alvaston, Arboretum, Castle, Dale, Litchurch, Normanton, Osmaston and Pear Tree.

DEVON.

(a) <i>County Constituencies.</i>	
1. Honiton ...	(i) The borough of Honiton ; (ii) the urban districts of Axminster, Budleigh Salterton, Exmouth, Ottery St. Mary, Seaton and Sidmouth ; (iii) the rural districts of Axminster and Honiton and the following parishes in the rural district of St. Thomas, namely, Aylesbeare, Bicton, Clyst Honiton, Clyst St. George, Clyst St. Mary, Colaton Raleigh, East Budleigh, Farringdon, Harpford, Lympstone, Otterton, Rockbeare, Sowton, Topsham and Woodbury.
2. North Devon ...	(i) The boroughs of Barnstaple and South Molton ; (ii) the urban districts of Ilfracombe and Lynton ; (iii) the rural districts of Barnstaple and South Molton.

1ST SCH. —cont.	Name.	Contents.
3. Tavistock ...	...	(i) The urban districts of Holsworthy and Tavistock ; (ii) the rural districts of Broadwoodwiger, Holsworthy and Tavistock and the rural district of Plympton St. Mary except the parishes of Bickleigh and Tamerton Foliot.
4. Tiverton ...	...	(i) the borough of Tiverton ; (ii) the urban districts of Dawlish and Teignmouth ; (iii) the rural district of Tiverton and the rural district of St. Thomas except the parishes included in the Honiton constituency.
5. Torrington	...	(i) The boroughs of Bideford, Great Torrington and Okehampton ; (ii) the urban districts of Crediton and Northam ; (iii) the rural districts of Bideford, Crediton, Okehampton and Torrington.
6. Totnes ...	...	(i) The boroughs of Clifton Dartmouth Hardness and Totnes ; (ii) the urban districts of Ashburton, Buckfastleigh, Kingsbridge, Newton Abbot and Salcombe ; (iii) the rural districts of Kingsbridge and Newton Abbot and the rural district of Totnes except the parishes of Churston Ferrers and Kingswear.

(b) *Borough Constituencies.*

1. Exeter ... The county borough of Exeter.
2. Plymouth, Devon-port (i) The following wards of the county borough of Plymouth, namely, Ford, Keyham Molesworth, Mount Edgecumbe, Nelson, Pennycross, St. Aubyn, St. Budeaux, St. Peter's and Stoke ;
(ii) the parish of Tamerton Foliot in the rural district of Plympton St. Mary.
3. Plymouth, Sutton (i) The following wards of the county borough of Plymouth, namely, Charles, Compton, Crownhill, Drake's, Friary, Laira, Mutley, St. Andrew's Sutton, Valletort and Vintry ;
(ii) the parish of Bickleigh in the rural district of Plympton St. Mary.
4. Torquay ... (i) The borough of Torquay ;
(ii) the urban districts of Brixham and Paignton ;
(iii) the parishes of Churston Ferrers and Kingswear in the rural district of Totnes.

DORSET

1ST SCH.
—cont.

(a) *County Constituencies.*

<i>Name.</i>	<i>Contents.</i>
1. North Dorset ...	(i) The boroughs of Blandford Forum and Shaftesbury ; (ii) the urban district of Wimborne Minster ; (iii) the rural districts of Blandford, Shaftesbury, Sturminster and Wimborne and Cranborne.
2. South Dorset ...	(i) The boroughs of Wareham and Weymouth and Melcombe Regis ; (ii) the urban districts of Portland and Swanage ; (iii) the rural district of Wareham and Purbeck and the parishes of Bincombe, Chickerell, Fleet, Osmington, Owermoigne and Poxwell in the rural district of Dorchester.
3. West Dorset ...	(i) The boroughs of Bridport, Dorchester and Lyme Regis ; (ii) the urban district of Sherborne ; (iii) the rural districts of Beaminster, Bridport and Sherborne and the rural district of Dorchester, except the parishes included in the South Dorset constituency.

(b) *Borough Constituency.*

1. Poole ...	... The borough of Poole.
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DURHAM.

(a) *County Constituencies.*

1. Bishop Auckland...	(i) The urban districts of Barnard Castle, Bishop Auckland and Shildon ; (ii) the rural district of Barnard Castle.
2. Blaydon ...	... The urban districts of Blaydon, Ryton and Whickham.
3. Chester-le-Street ...	(i) The urban districts of Chester-le-Street and Washington ; (ii) the rural district of Chester-le-Street.
4. Consett ...	... The urban districts of Consett and Stanley.
5. Durham ...	(i) The borough of Durham ; (ii) the urban districts of Hetton and Spenny-moor ; (iii) the rural district of Durham.
6. Easington ...	... The rural district of Easington.
7. Houghton-le-Spring	(i) The urban districts of Houghton-le-Spring and Seaham ; (ii) the rural district of Sunderland.

1ST SCH. —cont.	Name.	Contents.
8. Jarrow ...	...	(i) The borough of Jarrow ; (ii) the urban districts of Boldon, Felling and Hebburn.
9. North West Durham		(i) The urban districts of Brandon and Byshottles, Crook and Willington and Tow Law ; (ii) the rural districts of Lanchester and Weardale.
10. Sedgefield ...	...	(i) The urban district of Billingham ; (ii) the rural districts of Darlington, Sedgefield and Stockton.

(b) *Borough Constituencies.*

1. Darlington ... The county borough of Darlington.
2. Gateshead East ... The following wards of the county borough of Gateshead, namely, East, East-Central, North-East, South and South-Central.
3. Gateshead West ... The following wards of the county borough of Gateshead, namely, Central, North, North-West, West and West-Central.
4. South Shields ... The county borough of South Shields.
5. Stockton-on-Tees... The borough of Stockton-on-Tees.
6. Sunderland North The following wards of the county borough of Sunderland, namely, Bridge, Central, Colliery, Deptford, Fulwell, Monkwearmouth, Monkwearmouth Shore, Roker and Southwick.
7. Sunderland South The following wards of the county borough of Sunderland, namely, Bishopwearmouth, Hendon, Humbledon, Pallion, Park, St. Michael's, Sunderland East, Thornhill and West.
8. The Hartlepools ... The county borough of West Hartlepool and the borough of Hartlepool.

THE ISLE OF ELY.

County Constituency.

1. The Isle of Ely ... The county of the Isle of Ely.

ESSEX.

(a) *County Constituencies.*

1. Billericay ... The urban districts of Benfleet, Billericay, Canvey Island and Rayleigh.
2. Chelmsford ... (i) The borough of Chelmsford ;
(ii) the rural districts of Chelmsford and Ongar.
3. Colchester ... (i) The borough of Colchester ;
(ii) the urban district of West Mersea ;
(iii) the rural district of Lexden and Winstree.

Name.	Contents.	1ST SCH. —cont.
4. Epping ...	(i) The borough of Chingford ; (ii) the urban districts of Epping and Waltham Holy Cross ; (iii) the rural district of Epping.	
5. Harwich ...	(i) The borough of Harwich ; (ii) the urban districts of Brightlingsea, Clacton, Frinton and Walton and Wivenhoe ; (iii) the rural district of Tendring.	
6. Maldon ...	(i) The borough of Maldon ; (ii) the urban districts of Braintree and Bocking, Burnham-on-Crouch and Witham ; (iii) the rural district of Maldon and the rural district of Braintree except the parishes of Bardfield Saling and Great Bardfield.	
7. Saffron Walden ...	(i) The borough of Saffron Walden ; (ii) the urban district of Halstead ; (iii) the rural districts of Dunmow, Halstead and Saffron Walden and the following parishes in the rural district of Braintree, namely, Bardfield Saling and Great Bardfield.	
8. Thurrock	... The urban district of Thurrock.	
(b) <i>Borough Constituencies.</i>		
1. Barking ...	... The borough of Barking.	
2. Dagenham ...	... The borough of Dagenham.	
3. East Ham North ...	The Kensington, Little Ilford, Manor Park, Plashet and Woodgrange wards of the county borough of East Ham.	
4. East Ham South ...	The Castle, Central, Greatfield, South and Wall End wards of the county borough of East Ham.	
5. Hornchurch	... The urban district of Hornchurch.	
6. Ilford North	... The Barkingside, Clayhall, Fairlop, North Hainault, Seven Kings and South Hainault wards of the borough of Ilford.	
7. Ilford South	... The Clementswood, Cranbrook, Goodmayes, Loxford, Mayfield, and Park wards of the borough of Ilford.	
8. Leyton ...	... The borough of Leyton.	
9. Romford ...	(i) The borough of Romford ; (ii) the urban district of Brentwood.	
10. Southend East ...	(i) The following wards of the county borough of Southend-on-Sea, namely, All Saints, Pier, Shoebury, Southchurch and Thorpe ; (ii) the rural district of Rochford.	
11. Southend West ...	The following wards of the county borough of Southend-on-Sea, namely, Chalkwell, Eastwood, Leigh, Milton, Prittwell, St. Clements, Victoria and Westborough.	

1ST SCH.
—cont.

<i>Name.</i>	<i>Contents.</i>
12. Walthamstow East	The Hale End, Hoe Street and Wood Street wards of the borough of Walthamstow.
13. Walthamstow West	The High Street, Higham Hill and St. James Street wards of the borough of Walthamstow.
14. West Ham North...	The following wards of the county borough of West Ham, namely, Broadway, Forest Gate, High Street, Newtown, Park, Plashet Road, Upton and West Ham.
15. West Ham South...	The following wards of the county borough of West Ham, namely, Beckton Road, Bemer-syde, Canning Town and Grange, Custom House and Silvertown, Hudsons, Ordnance, Plaistow and Tidal Basin.
16. Woodford	... (i) The borough of Wanstead and Woodford; (ii) the urban district of Chigwell.

GLOUCESTERSHIRE.

(a) *County Constituencies.*

1. Cirencester and Tewkesbury
 - (i) The borough of Tewkesbury ;
 - (ii) the urban district of Cirencester ;
 - (iii) the rural districts of Cheltenham, Cirencester, North Cotswold, Northleach and Tetbury.
2. South Gloucester-shire
 - (i) The urban districts of Kingswood and Mangotsfield ;
 - (ii) the rural districts of Sodbury and Warmley.
3. Stroud and Thorn-bury
 - (i) The urban districts of Nailsworth and Stroud ;
 - (ii) The rural districts of Dursley, Stroud and Thornbury and the following parishes in the rural district of Gloucester, namely, Arlingham, Brookthorpe, Eastington, Elmore, Frampton-on-Severn, Fretherne with Saul, Frocester, Hardwicke, Harescombe, Haresfield, Longney, Moreton Valence, Quedgeley, Standish, Upton St. Leonards and Whitminster.
4. West Gloucester-shire

The rural districts of East Dean, Lydney, Newent and West Dean and the following parishes in the rural district of Gloucester, namely, Ashleworth, Chaceley, Church-down, Down Hatherley, Forthampton, Hasfield, Highnam, Longford, Longlevens, Maisemore, Minsterworth, Newnham, Norton, Sandhurst, Tirley, Twigworth and Westbury-on-Severn.

(b) *Borough Constituencies.*

1ST SCH.
—cont.

<i>Name.</i>	<i>Contents.</i>
1. Bristol Central ...	The following wards of the county borough of Bristol, namely, Easton, Knowle, Redcliffe, St. Paul, St. Philip and Jacob North and St. Philip and Jacob South.
2. Bristol North East	The following wards of the county borough of Bristol, namely, District, Eastville, Hillfields and Stapleton.
3. Bristol North West	The following wards of the county borough of Bristol, namely, Avon, Durdham, Horfield and Westbury-on-Trym.
4. Bristol South ...	The following wards of the county borough of Bristol, namely, Bedminster, Somerset, Southville and Windmill Hill.
5. Bristol South-East	The following wards of the county borough of Bristol, namely, Brislington, Hengrove, St. George East and St. George West.
6. Bristol West ...	The following wards of the county borough of Bristol, namely, Bishopston, Clifton, Redland, St. Augustine, St. James and St. Michael.
7. Cheltenham ...	(i) The borough of Cheltenham ; (ii) the urban district of Charlton Kings.
8. Gloucester...	(i) The county borough of Gloucester ; (ii) the following parishes in the rural district of Gloucester, namely, Barnwood, Brockworth, Hempsted, Hucclecote and Wotton Vill.

HAMPSHIRE.

(a) *County Constituencies.*

1. Aldershot ...	(i) The borough of Aldershot ; (ii) the urban districts of Farnborough and Fleet ; (iii) the rural district of Hartley Wintney.
2. Basingstoke ...	(i) The boroughs of Andover and Basingstoke ; (ii) the rural districts of Andover, Basingstoke and Kingsclere and Whitchurch and the following parishes in the rural district of Romsey and Stockbridge, namely, Ashley, Bossington, Broughton, Buckholt, East Tytherley, Frenchmoor, Houghton, King's Somborne, Leckford, Little Somborne, Longstock, Nether Wallop, Over Wallop, Stockbridge and West Tytherley.
3. New Forest ...	(i) The borough of Lymington ; (ii) the rural districts of New Forest and Ringwood and Fordingbridge.

1ST SCH. —cont.	Name.	Contents.
4.	Petersfield	... (i) The urban districts of Alton and Petersfield ; (ii) the rural districts of Alton, Droxford and Petersfield and the parishes of Botley, Bursledon, Hamble, Hedge End, Hound and West End in the rural district of Winchester.
5.	Winchester	... (i) The boroughs of Eastleigh, Romsey and Winchester ; (ii) the following parishes in the rural district of Romsey and Stockbridge, namely, Ampfield, Chilworth, East Dean, Lockerley, Melchet Park and Plaitford, Michelmersh, Mottisfont, North Baddesley, Nursling and Rownhams, Romsey Extra, Sherfield English and Wellow, and the rural district of Winchester except the parishes included in the Petersfield constituency.

(b) *Borough Constituencies.*

1. Bournemouth East and Christchurch The borough of Christchurch and the following wards of the county borough of Bournemouth, namely, Boscombe East, Boscombe West, King's Park, Queen's Park, Southbourne and West Southbourne.
2. Bournemouth West The following wards of the county borough of Bournemouth, namely, Central, East Cliff, Kinson, Moordown North, Moordown South, Redhill Park, Westbourne, West Cliff and Winton.
3. Gosport and Fareham (i) The borough of Gosport ;
(ii) the urban district of Fareham.
4. Portsmouth, Langstone (i) The Cosham and Meredith wards of the county borough of Portsmouth ;
(ii) the urban district of Havant and Waterloo.
5. Portsmouth South The Havelock, Highland, Kingston, St. Paul, St. Simon and St. Thomas wards of the county borough of Portsmouth.
6. Portsmouth West The Buckland, Charles Dickens, Fratton, Guildhall, Nelson, North End, Portsea and St. Mary wards of the county borough of Portsmouth.
7. Southampton, Itchen The following wards of the county borough of Southampton, namely, Bevois, Bitterne and Peartree, Bitterne and Sholing, Newtown, Northam, Portswood, St. Denys, St. Mary's, Trinity and Woolston.

<i>Name.</i>	<i>Contents.</i>	1ST SCH. —cont.
8. Southampton, Test	(i) The following wards of the county borough of Southampton, namely, All Saints, Banister, Freemantle, Millbrook, St. Nicholas, Shirley and Town ; (ii) the parish of Millbrook in the rural district of Romsey and Stockbridge.	

HEREFORDSHIRE.

County Constituencies.

- | | | |
|-----------------|-----|---|
| 1. Hereford ... | ... | (i) The borough of Hereford ;
(ii) the urban district of Ross on Wye ;
(iii) the rural districts of Dore and Bredwardine and Ross and Whitchurch and the following parishes in the rural district of Hereford, namely, Aconbury, Allensmore, Bolstone, Callow, Clehonger, Dewshall, Dinedor, Dormington, Eaton Bishop, Fownhope, Grafton, Hampton Bishop, Haywood, Holme Lacy, Little Birch, Little Dewchurch, Lower Bullingham, Mordiford, Much Birch, Much Dewchurch and Stoke Edith. |
| 2. Leominster | ... | (i) The borough of Leominster ;
(ii) the urban districts of Bromyard, Kington and Ledbury ;
(iii) the rural districts of Bromyard, Kington, Ledbury, Leominster and Wigmore and Weobley and the following parishes in the rural district of Hereford, namely, Bartestree, Breinton, Burghill, Credenhill, Dinmore, Holmer, Kenchester, Lugwardine, Marden, Moreton on Lugg, Pipe and Lyde, Preston Wynne, Stretton Sugwas, Sutton, Wellington, Westhide, Weston Beggard and Withington. |

HERTFORDSHIRE.

(a) *County Constituencies.*

- | | | |
|--------------------|-----|---|
| 1. Barnet ... | ... | (i) The urban districts of Barnet and East Barnet ;
(ii) the rural districts of Elstree and Hatfield. |
| 2. Hemel Hempstead | | (i) The borough of Hemel Hempstead ;
(ii) the urban districts of Berkhamsted, Harpenden, and Tring ;
(iii) the rural districts of Berkhamsted and Hemel Hempstead and the parishes of Harpenden Rural and Redbourn in the rural district of St. Albans. |

1ST SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
3.	Hertford ...	(i) The borough of Hertford ; (ii) the urban districts of Bishop's Stortford, Cheshunt, Hoddesdon, Sawbridgeworth and Ware ; (iii) the rural district of Ware, the rural district of Braughing, except the parishes of Anstey, Ardeley, Aspenden, Broadfield, Buckland, Buntingford, Cottered, Hornead, Meesden, Throcking, Westmill and Wyddiall, and the rural district of Hertford, except the parishes of Aston, Bennington, Datchworth, Sacomb, Walkern and Watton-at-Stone.
4.	Hitchin ...	(i) The urban districts of Baldock, Hitchin, Letchworth, Royston and Stevenage ; (ii) the rural district of Hitchin, the rural district of Braughing, except the parishes included in the Hertford constituency and the rural district of Hertford, except the parishes included in the Hertford constituency.
5.	St. Albans...	(i) The borough of St. Alban ; (ii) the urban district of Welwyn Garden City ; (iii) the rural district of Welwyn and the rural district of St. Albans except the parishes of Harpenden Rural and Redbourn.
6.	South West Hertfordshire	(i) The urban districts of Bushey, Chorleywood and Rickmansworth ; (ii) the rural district of Watford.
		(b) <i>Borough Constituency.</i>
1.	Watford ...	The borough of Watford.

HUNTINGDONSHIRE.

County Constituency.

1. Huntingdonshire ... The county of Huntingdon.

KENT.

(a) *County Constituencies.*

- | | | |
|----|----------------|---|
| 1. | Ashford ... | <ul style="list-style-type: none"> (i) The borough of Tenterden ; (ii) the urban district of Ashford ; (iii) the rural districts of Cranbrook, East Ashford, Tenterden and West Ashford. |
| 2. | Canterbury ... | <ul style="list-style-type: none"> (i) The county borough of Canterbury ; (ii) the urban districts of Herne Bay and Whitstable ; (iii) the rural district of Bridge Blean. |

<i>Name.</i>	<i>Contents.</i>	1ST SCH. —cont.
3. Chislehurst	... (i) The urban district of Chislehurst and Sidcup ; (ii) the parishes of Darenth, Stone, Sutton at Hone, and Wilmington in the rural district of Dartford.	
4. Dover	... (i) The boroughs of Deal, Dover and Sandwich ; (ii) the rural district of Dover, and the rural district of Eastry, except the parishes included in the Isle of Thanet constituency.	
5. Faversham	... (i) The boroughs of Faversham and Queenborough ; (ii) the urban districts of Sheerness and Sittingbourne and Milton ; (iii) the rural districts of Sheppey and Swale.	
6. Folkestone and Hythe	(i) The boroughs of Folkestone, Hythe, Lydd and New Romney ; (ii) the rural districts of Elham and Romney Marsh.	
7. Gravesend	... (i) The borough of Gravesend ; (ii) the urban districts of Northfleet and Swanscombe ; (iii) the rural district of Strood.	
8. Isle of Thanet	... (i) The boroughs of Margate and Ramsgate ; (ii) the urban district of Broadstairs and St. Peter's ; (iii) the parishes of Acol, Minster, Monkton, St. Nicholas at Wade, and Sarre in the rural district of Eastry.	
9. Maidstone	... (i) The borough of Maidstone ; (ii) the rural districts of Hollingbourne and Maidstone.	
10. Orpington	... (i) The urban district of Orpington ; (ii) the rural district of Dartford except the parishes included in the Chislehurst constituency.	
11. Sevenoaks...	... (i) The urban district of Sevenoaks ; (ii) The rural districts of Malling and Sevenoaks.	
12. Tonbridge	... (i) The borough of Royal Tunbridge Wells (ii) the urban districts of Southborough and Tonbridge ; (iii) the rural district of Tonbridge.	
(b) <i>Borough Constituencies.</i>		
1. Beckenham	... (i) The borough of Beckenham ; (ii) the urban district of Penge.	
2. Bexley	... The borough of Bexley.	

1ST SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
3.	Bromley ...	... The borough of Bromley.
4.	Dartford ...	... (i) The boroughs of Dartford and Erith ; (ii) the urban district of Crayford.
5.	Gillingham ...	... The borough of Gillingham.
6.	Rochester and Chatham.	The boroughs of Rochester and Chatham.

2

LANCASHIRE.

(a) *County Constituencies.*

1.	Chorley ...	... (i) The borough of Chorley ; (ii) the urban districts of Adlington and Leyland ; (iii) the rural district of Chorley.
2.	Clitheroe ...	... (i) The borough of Clitheroe ; (ii) the urban districts of Great Harwood, Longridge and Padiham ; (iii) the rural districts of Burnley and Clitheroe, and the parishes of Dutton, Hothersall and Ribchester in the rural district of Preston.
3.	Darwen ...	... (i) The borough of Darwen ; (ii) the urban districts of Turton and Withnell ; (iii) the rural district of Blackburn.
4.	Farnworth ...	... (i) The borough of Farnworth ; (ii) the urban districts of Kearsley, Little Lever and Worsley.
5.	Heywood and Royton	(i) The borough of Heywood ; (ii) the urban districts of Crompton, Little- borough, Milnrow, Royton, Wardle and Whitworth.
6.	Huyton ...	... (i) The urban districts of Huyton with Roby and Prescott ; (ii) the parishes of Eccleston, Kirkby, Knowsley and Windle in the rural district of Whiston.
7.	Ince ...	... The urban districts of Abram, Ashton in Makerfield, Billinge and Winstanley, Ince in Makerfield, Orrell, Skelmersdale and Upholland.
8.	Lancaster ...	... (i) The borough of Lancaster ; (ii) the urban district of Carnforth ; (iii) the rural district of Lunesdale, and the following parishes in the rural district of Lancaster, namely, Ashton with Stodday, Cockerham, Ellet, Heaton with Oxcliffe, Middleton, Overton, Over Wyresdale, Scotforth and Thurnham.

<i>Name.</i>	<i>Contents.</i>	1ST SCH. — <i>cont.</i>
9. Middleton and Prestwich	(i) The boroughs of Middleton and Prestwich; (ii) the urban district of Whitefield.	
10. Morecambe and Lonsdale	(i) The borough of Morecambe and Heysham; (ii) the urban districts of Grange and Ulverston; (iii) the rural district of Ulverston, and the following parishes in the rural district of Lancaster, namely, Bolton le Sands, Priest Hutton, Silverdale, Slyne with Hest, Warton, Yealand Conyers and Yealand Redmayne.	
11. Newton	(i) The urban districts of Golborne, Haydock, Irlam and Newton-le-Willows; (ii) the rural district of Warrington;	
12. North Fylde ...	(i) The borough of Fleetwood; (ii) the urban districts of Poulton-le-Fylde, Preesall and Thornton Cleveleys; (iii) the rural district of Garstang.	
13. Ormskirk	(i) The urban districts of Formby, Ormskirk and Rainford; (ii) the rural district of West Lancashire except the parishes of Aintree and Ford.	
14. South Fylde ...	(i) The borough of Lytham St. Anne's; (ii) the urban district of Kirkham; (iii) the rural district of Fylde, and the rural district of Preston except the parishes of Dutton, Hothersall and Ribchester.	
15. Westhoughton ...	(i) The urban districts of Aspull, Blackrod, Hindley, Horwich, Standish with Langtree and Westhoughton; (ii) the rural district of Wigan.	
16. Widnes	(i) The borough of Widnes; (ii) the rural districts of Whiston except the parishes of Eccleston, Kirkby, Knowsley and Windle.	

(b) *Borough Constituencies.*

- | | |
|----------------------|---|
| 1. Accrington ... | (i) The borough of Accrington;
(ii) the urban districts of Church, Clayton le
Moors, Oswaldtwistle and Rishton. |
| 2. Ashton under Lyne | (i) The boroughs of Ashton under Lyne and
Mossley;
(ii) the rural district of Limehurst. |
| 3. Barrow in Furness | (i) The county borough of Barrow in Furness;
(ii) the urban district of Dalton in Furness. |

1ST SCH.
—cont.

<i>Name.</i>	<i>Contents.</i>
4. Blackburn East ...	The following wards of the county borough of Blackburn, namely, St. John's, St. Mary's, St. Matthew's, St. Michael's, St. Stephen's, St. Thomas's and Trinity.
5. Blackburn West ...	The following wards of the county borough of Blackburn, namely, Park, St. Andrew's, St. Luke's, St. Mark's, St. Paul's, St. Peter's and St. Silas's.
6. Blackpool North ...	The following wards of the county borough of Blackpool, namely, Bank Hey, Bispham, Brunswick, Claremont, Foxhall, Layton, Talbot and Warbreck.
7. Blackpool South ...	The following wards of the county borough of Blackpool, namely, Alexandra, Marton, Stanley, Tyldesley, Victoria and Waterloo.
8. Bolton East ...	The following wards of the county borough of Bolton, namely, Astley Bridge, Bradford, Church, Darcy Lever cum Breightmet, East, Great Lever, Hulton, North and Tonge.
9. Bolton West ...	The following wards of the county boroughs of Bolton, namely, Deane cum Lostock, Derby, Halliwell, Heaton, Rumworth, Smithills and West.
10. Bootle ...	(i) The county borough of Bootle ; (ii) the urban district of Litherland.
11. Burnley ...	The county borough of Burnley.
12. Bury and Radcliffe	(i) The county borough of Bury and the borough of Radcliffe ; (ii) the urban district of Tottington.
13. Crosby ...	(i) The borough of Crosby ; (ii) the parish of Ford in the rural district of West Lancashire.
14. Droylsden ...	The urban districts of Audenshaw, Denton, Droylsden and Failsworth.
15. Eccles ...	The boroughs of Eccles and Swinton and Pendlebury.
16. Leigh ...	(i) The borough of Leigh ; (ii) the urban districts of Atherton and Tyldesley.
17. Liverpool, Edge Hill	The following wards of the county borough of Liverpool, namely, Edge Hill, Fairfield, Kensington and Low Hill.
18. Liverpool, Exchange	The following wards of the county borough of Liverpool, namely, Abercromby, Brunswick, Castle Street, Exchange, Granby, Great George, St. Anne's, St. Peter's and Vauxhall.

<i>Name.</i>	<i>Contents.</i>
19. Liverpool, Garston	The following wards of the county borough of Liverpool, namely, Aigburth, Allerton, Childwall, Garston, Little Woolton and Much Woolton.
20. Liverpool, Kirkdale	The following wards of the county borough of Liverpool, namely, Anfield, Breckfield and Kirkdale.
21. Liverpool, Scotland	The following wards of the county borough of Liverpool, namely, Everton, Netherfield, North Scotland, St. Domingo, Sandhills and South Scotland.
22. Liverpool, Toxteth	The following wards of the county borough of Liverpool, namely, Dingle, Princes Park, Sefton Park East and Sefton Park West.
23. Liverpool, Walton	(i) The Fazakerley, Walton and Warbreck wards of the county borough of Liverpool; (ii) the parish of Aintree in the rural district of West Lancashire.
24. Liverpool, Wavertree	The Old Swan, Wavertree and Wavertree West wards of the county borough of Liverpool.
25. Liverpool, West Derby	The Croxteth and West Derby wards of the county borough of Liverpool.
26. Manchester, Ardwick	The following wards of the county borough of Manchester, namely, Ardwick, Longsight, New Cross and St. Mark's.
27. Manchester, Blackley	The Blackley, Crumpsall and Moston wards of the county borough of Manchester.
28. Manchester, Cheetham	The following wards of the county borough of Manchester, namely, Cheetham, Collegiate Church, Collyhurst, Harpurhey and St. Michael's.
29. Manchester, Clayton	The following wards of the county borough of Manchester, namely, Beswick, Bradford, Miles Platting and Newton Heath.
30. Manchester, Exchange	The following wards of the county borough of Manchester, namely, All Saints, Exchange, Medlock Street, Oxford, St. Ann's, St. Clement's, St. George's, St. John's and St. Luke's.
31. Manchester, Gorton	The following wards of the county borough of Manchester, namely, Gorton North, Gorton South, Levenshulme and Openshaw.
32. Manchester, Moss Side	The Chorlton-cum-Hardy, Moss Side East and Moss Side West wards of the county borough of Manchester.
33. Manchester, Withington	The Rusholme and Withington wards of the county borough of Manchester.

1ST SCH.
—cont.

1ST SCH. —cont.	<i>Name.</i>	<i>Contents.</i>
34.	Manchester, Wythenshawe	The Didsbury and Wythenshawe wards of the county borough of Manchester.
35.	Nelson and Colne	(i) The boroughs of Nelson and Colne ; (ii) the urban districts of Barrowford, Brierfield and Trawden.
36.	Oldham East ...	(i) The following wards of the county borough of Oldham, namely, Clarksfield, Mumps, St. James, St. Mary's, St. Paul's, St. Peter's and Waterhead ; (ii) the urban district of Lees.
37.	Oldham West ...	(i) The following wards of the county borough of Oldham, namely, Coldhurst, Hartford, Hollinwood, Werneth and Westwood ; (ii) the urban district of Chadderton.
38.	Preston North ...	(i) The following wards of the county borough of Preston, namely, Deepdale, Fishwick, Moorbrook, Park and Ribbleson ; (ii) the urban district of Fulwood.
39.	Preston South ...	(i) The following wards of the county borough of Preston, namely, Ashton, Avenham, Christ Church, Maudland, St. John's, St. Peters and Trinity ; (ii) the urban district of Walton-le-Dale.
40.	Rochdale ...	The county borough of Rochdale.
41.	Rossendale ...	(i) The boroughs of Bacup, Haslingden and Rawtenstall ; (ii) the urban district of Ramsbottom.
42.	St. Helens ...	The county borough of St. Helens.
43.	Salford East ...	The following wards of the county borough of Salford, namely, Albert Park, Crescent, Kersal, Mandley Park, Ordsall Park, Regent, St. Matthias and Trinity.
44.	Salford West ...	The following wards of the county borough of Salford, namely, Claremont, Charlestown, Docks, Langworthy, St. Paul's, St. Thomas', Seedley and Weaste.
45.	Southport ...	The county borough of Southport.
46.	Stretford ...	(i) The borough of Stretford ; (ii) the urban district of Urmston.
47.	Warrington ...	The county borough of Warrington.
48.	Wigan ...	The county borough of Wigan.

LEICESTERSHIRE.**(a) County Constituencies.**

- | | | |
|----|----------------|--|
| 1. | Bosworth ... | (i) The urban districts of Coalville and Hinckley ;
(ii) the rural district of Market Bosworth. |
| 2. | Harborough ... | (i) The urban districts of Market Harborough, Oadby and Wigston ;
(ii) the rural districts of Blaby, Lutterworth and Market Harborough. |

<i>Name.</i>	<i>Contents.</i>
3. Loughborough ...	(i) The borough of Loughborough ; (ii) the urban districts of Ashby-de-la-Zouch, Ashby Woulds and Shepshed ; (iii) the rural districts of Ashby-de-la-Zouch and Castle Donington.
4. Melton ...	(i) The urban district of Melton Mowbray ; (ii) the rural districts of Barrow upon Soar, Billesdon and Melton and Belvoir.

(b) *Borough Constituencies.*

1. Leicester North-East	The Belgrave, Charnwood, Humberstone and Latimer wards of the county borough of Leicester.
2. Leicester North-West	The Abbey, Newton, St. Margaret's and Westcotes wards of the county borough of Leicester.
3. Leicester South-East	The Evington, Knighton, Spinney Hill and Wycliffe wards of the county borough of Leicester.
4. Leicester South-West	The Aylestone, De Montfort, North Braun- stone and The Castle wards of the county borough of Leicester.

LINCOLNSHIRE—PARTS OF HOLLAND.

County Constituency.

Holland with Boston ... The county of the Parts of Holland.

LINCOLNSHIRE—PARTS OF KESTEVEN AND RUTLANDSHIRE.

County Constituencies.

1. Grantham ...	(i) The borough of Grantham ; (ii) the urban district of Sleaford ; (iii) the rural district of North Kesteven, the rural district of East Kesteven, except the parishes included in the Rutland and Stamford constituency, and the following parishes in the rural district of West Kesteven, namely, Allington, Ancaster, Barkston, Barrowby, Belton and Manthorpe, Carlton Scroop, Cay- thorpe, Claypole, Fenton, Foston, Ful- beck, Great Gonerby, Heydour, Honing- ton, Hougham, Hough-on-the-Hill, Londonthorpe and Harrowby Without, Long Bennington, Marston, Normanton, Sedgebrook, Stubton, Syston Welby and Westborough and Dry Doddington.
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1ST SCH.
—cons.

<i>Name.</i>	<i>Contents.</i>
2. Rutland and Stamford	(i) The county of Rutland ; (ii) the borough of Stamford ; (iii) the urban district of Bourne ; (iv) the rural district of South Kesteven, the following parishes in the rural district of East Kesteven, namely, Aswarby and Swarby, Aunsby and Dembleby, Helpringham, Newton and Haceby, Osbournby, Screddington, Swaton, Threkingham and Walcot, and the rural district of West Kesteven, except the parishes included in the Grantham constituency.

LINCOLNSHIRE—PARTS OF LINDSEY

(a) *County Constituencies.*

1. Brigg ...	(i) The borough of Scunthorpe ; (ii) the urban districts of Barton upon Humber and Brigg ; (iii) the rural district of Glanford Brigg.
2. Gainsborough ...	(i) The urban districts of Gainsborough and Market Rasen ; (ii) the rural districts of Caistor, Gainsborough, Isle of Axholme and Welton.
3. Horncastle ...	(i) The urban districts of Alford, Horncastle, Mablethorpe and Sutton, Skegness and Woodhall Spa ; (ii) the rural districts of Horncastle and Spilsby.
4. Louth ...	(i) The boroughs of Cleethorpes and Louth ; (ii) the rural districts of Grimsby and Louth.

(b) *Borough Constituencies.*

1. Grimsby ...	The county borough of Grimsby.
2. Lincoln ...	The county borough of Lincoln.

LONDON.

Borough Constituencies.

1. Battersea North ...	The Church, Latchmere, Nine Elms, Park and Winstanley wards of the borough of Battersea.
2. Battersea South ...	The Bolingbroke, Broomwood, St. John and Shaftesbury wards of the borough of Battersea.
3. Bermondsey ...	The borough of Bermondsey.
4. Bethnal Green ...	The borough of Bethnal Green.
5. Camberwell, Dulwich	The following wards of the borough of Camberwell, namely, Alleyn, Lyndhurst, Nunhead, Ruskin, Rye Lane, St. John's, The College, The Hamlet and The Rye.

<i>Name.</i>	<i>Contents.</i>
6. Camberwell, Peckham	The following wards of the borough of Camberwell, namely, Addington, Clifton, Cobourg, Goldsmith, Marlborough, North Peckham, St. George's, St. Giles, St. Mary's, The West and Town Hall.
7. Chelsea	The borough of Chelsea and the Brompton ward of the royal borough of Kensington.
8. The Cities of London and Westminster.	The county of the City of London, the borough of the City of Westminster, and the Inner Temple and Middle Temple.
9. Deptford	The borough of Deptford.
10. Fulham East	The Barons Court, Lillie, Sands End and Walham wards of the borough of Fulham.
11. Fulham West	The Hurlingham, Margravine, Munster and Town wards of the Borough of Fulham.
12. Greenwich	The borough of Greenwich.
13. Hackney South	The borough of Hackney, except the wards included in the Stoke Newington and Hackney North constituency.
14. Hammersmith North	The following wards (as constituted by the Hammersmith (Councillors and Wards) Order, 1948, S.I., 1948, No. 729) of the borough of Hammersmith, namely, College, Park and Latimer, Coningham, Old Oak, Starch Green, White City and Wormholt.
15. Hammersmith South	The following wards (as so constituted) of the borough of Hammersmith, namely, Addison, Broadway, Brook Green, Grove, Olympia, Ravenscourt and St. Stephen's.
16. Hampstead	The borough of Hampstead.
17. Holborn and St. Pancras South.	The borough of Holborn and wards Nos. 5 to 8 of the borough of St. Pancras.
18. Islington East	The Canonbury, Highbury and Mildmay wards of the borough of Islington.
19. Islington North	The Tollington, Tufnell and Upper Holloway wards of the borough of Islington.
20. Islington South West	The Barnsbury, Lower Holloway, St. Mary, St. Peter and Thornhill wards of the borough of Islington.
21. Kensington North	The Golborne, Norland, Pembridge and St. Charles wards of the royal borough of Kensington.
22. Kensington South	The Earls Court, Holland, Queens Gate and Redcliffe wards of the royal borough of Kensington.
23. Lambeth, Brixton	The Angell, Stockwell, Town Hall, and Vassal wards of the borough of Lambeth.
24. Lambeth, Norwood	The Herne Hill, Knight's Hill and Tulse Hill wards of the borough of Lambeth.

1ST SCH.
—cont.

1ST SCH.
—*cont.*

<i>Name.</i>	<i>Contents.</i>
25. Lambeth, Vauxhall	The Bishops, Marsh, Oval, Prince's and Vauxhall wards of the borough of Lambeth.
26. Lewisham North ...	The Blackheath and Church Lee, Ladywell, Lewisham Park, Lewisham Village, Manor Lee and South Lee wards of the borough of Lewisham.
27. Lewisham South ...	The Bellingham, Catford, Downham and Hither Green wards of the borough of Lewisham.
28. Lewisham West ...	The Brockley, Forest Hill, Honor Oak Park, Sydenham East and Sydenham West wards of the borough of Lewisham.
29. Paddington North	The Harrow Road, Maida Vale, Queen's Park and Town wards of the borough of Paddington.
30. Paddington South	The Church, Hyde Park, Lancaster Gate East, Lancaster Gate West and Westbourne wards of the borough of Paddington.
31. Poplar ...	The borough of Poplar.
32. St. Marylebone ...	The borough of St. Marylebone.
33. St. Pancras North	Wards Nos. 1 to 4 of the borough of St. Pancras.
34. Shoreditch and Finsbury	The boroughs of Finsbury and Shoreditch.
35. Southwark ...	The borough of Southwark.
36. Stepney ...	The borough of Stepney.
37. Stoke Newington and Hackney North	The borough of Stoke Newington, and the Leaside, Maury, Southwold, Springfield and Stamford wards of the borough of Hackney.
38. Wandsworth Central	The Springfield and Tooting wards of the borough of Wandsworth and the part of the Balham ward of that borough lying to the south of the Southern Railway.
39. Wandsworth, Clapham	The Clapham North and Clapham South wards of the borough of Wandsworth and the part of the Balham ward of that borough lying to the north of the Southern Railway.
40. Wandsworth, Putney	The Fairfield, Putney and Southfields wards of the borough of Wandsworth.
41. Wandsworth, Streatham	The Streatham ward of the borough of Wandsworth.
42. Woolwich East ...	The following wards of the borough of Woolwich, namely, Abbey Wood, Burrage, Central, Dockyard, Glyndon, River, St. Margaret's, St. Mary's and St. Nicholas.
43. Woolwich West ...	The following wards of the borough of Woolwich, namely, Avery Hill, Herbert, St. George's, Sherard and Well Hall.

MIDDLESEX.

1ST SCH.
—cont.

(a) *County Constituencies.*

<i>Name.</i>	<i>Contents.</i>
1. Spelthorne	... The urban districts of Feltham, Staines and Sunbury on Thames.
2. Uxbridge ...	... The urban districts of Uxbridge and Yiewsley and West Drayton.

(b) *Borough Constituencies.*

1. Acton	... The borough of Acton.
2. Brentford and Chiswick	The borough of Brentford and Chiswick.
3. Ealing North	... The following wards of the borough of Ealing, namely, Greenford Central, Greenford North, Greenford South, Hanger Hill, Northolt and Perivale.
4. Ealing South	... The following wards of the borough of Ealing, namely, Castlebar, Drayton, Grange Grosvenor, Lammas, Manor and Mount Park.
5. Edmonton	... The borough of Edmonton.
6. Enfield East	... The Central, North East and South East wards of the urban district of Enfield.
7. Enfield West	... The urban district of Potters Bar and the South West and West wards of the urban district of Enfield.
8. Finchley ...	(i) The borough of Finchley ; (ii) the urban district of Friern Barnet.
9. Harrow Central	... The Harrow on the Hill and Greenhill, Headstone, Wealdstone North, Wealdstone South and West Harrow wards of the urban district of Harrow.
10. Harrow East	... The Kenton, Stanmore North and Stanmore South wards of the urban district of Harrow and the part of the Harrow Weald ward which lies to the east of a line drawn from the county boundary down the middle of Oxhey Lane to its junction with Uxbridge Road, along the middle of Uxbridge Road, from its junction with Oxhey Lane to its junction with Headstone Lane and along the middle of Headstone Lane from its junction with Uxbridge Road to the last mentioned ward boundary adjoining the London Midland and Scottish Railway.

1ST SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
11.	Harrow West ...	The Pinner North, Pinner South and Roxeth wards of the urban district of Harrow and the part of the Harrow Weald ward of the urban district of Harrow not included in the Harrow East constituency.
12.	Hayes and Harlington	The urban district of Hayes and Harlington.
13.	Hendon North ...	The Burnt Oak, Edgware, Mill Hill and West Hendon wards of the borough of Hendon.
14.	Hendon South ...	The Central Hendon, Childs Hill, Garden Suburb, Golders Green and Park wards of the borough of Hendon.
15.	Heston and Isleworth	The borough of Heston and Isleworth.
16.	Hornsey ...	The borough of Hornsey.
17.	Ruislip-Northwood	The urban district of Ruislip-Northwood.
18.	Southall ...	The borough of Southall and the Hanwell North and Hanwell South wards of the borough of Ealing.
19.	Southgate	The borough of Southgate.
20.	Tottenham	The borough of Tottenham except the wards included in the Wood Green constituency.
21.	Twickenham	The borough of Twickenham.
22.	Wembley North ...	The following wards of the borough of Wembley, namely, Chalkhill, Fryent, Kenton, Preston, Roe Green and The Hyde.
23.	Wembley South ...	The following wards of the borough of Wembley, namely, Alperton, Central, Sudbury, Sudbury Court, Tokyngton and Wembley Park.
24.	Willesden East ...	The following wards of the borough of Willesden, namely, Brondesbury Park, Carlton, Cricklewood, Kilburn, Mapesbury and Neasden.
25.	Willesden West ...	The following wards of the borough of Willesden, namely, Church End, Harlesden, Kensal Rise, Manor, Roundwood, Stonebridge and Willesden Green.
26.	Wood Green	The borough of Wood Green and the Coleraine, Park and White Hart Lane wards of the borough of Tottenham.

NORFOLK.

1ST SCH.
—cont.

(a) *County Constituencies.*

<i>Name.</i>	<i>Contents.</i>
1. Central Norfolk ...	The rural districts of Forehoe and Henstead and St. Faith's and Aylsham and the parishes of Plumstead Great and Little, Postwick and Thorpe next Norwich in the rural district of Blofield and Flegg.
2. King's Lynn ...	(i) The borough of King's Lynn ; (ii) the urban district of New Hunstanton ; (iii) the rural districts of Docking, Freebridge Lynn and Marshland.
3. North Norfolk ...	(i) The urban districts of Cromer, North Walsham, Sheringham and Wells next the Sea ; (ii) the rural districts of Erpingham, Smallburgh and Walsingham.
4. South Norfolk ...	(i) The borough of Thetford ; (ii) the urban districts of Diss and Wymondham ; (iii) the rural districts of Depwade, Loddon and Wayland.
5. South West Norfolk	(i) The urban districts of Downham Market, East Dereham and Swaffham ; (ii) the rural districts of Downham, Mitford and Launditch and Swaffham.
6. Yarmouth...	(i) The county borough of Great Yarmouth ; (ii) the rural district of Blofield and Flegg except the parishes of Plumstead Great and Little, Postwick and Thorpe next Norwich.

(b) *Borough Constituencies.*

1. Norwich North ...	The following wards of the county borough of Norwich, namely, Catton, Coslany, Fye Bridge, Heighham, Hellesdon, Mousehold, Thorpe and Westwick.
2. Norwich South ...	The following wards of the county borough of Norwich, namely, Ber Street, Conesford, Earham, Eaton, Lakenham, Nelson, St. Stephen and Town Close.

1ST SCH.
—cont.

NORTHAMPTONSHIRE AND THE SOKE OF PETERBOROUGH.

(a) *County Constituencies.*

<i>Name.</i>	<i>Contents.</i>
1. Kettering ...	(i) The borough of Kettering ; (ii) the urban districts of Burton Latimer, Corby, Desborough and Rothwell ; (iii) the rural districts of Brixworth and Kettering.
2. Peterborough ...	(i) The borough of Peterborough ; (ii) the urban district of Oundle ; (iii) the rural districts of Barnack and Peterborough and the rural district of Oundle and Thrapston except the parishes of Chelveston cum Caldecott and Hargrave.
3. South Northants ...	(i) The boroughs of Brackley and Daventry ; (ii) the rural districts of Brackley, Daventry, Northampton and Towcester.
4. Wellingborough ...	(i) The borough of Higham Ferrers ; (ii) the urban districts of Irthlingborough, Raunds, Rushden and Wellingborough ; (iii) the rural district of Wellingborough and the parishes of Chelveston cum Caldecott and Hargrave in the rural district of Oundle and Thrapston.

(b) *Borough Constituency.*

1. Northampton ... The county borough of Northampton.

NORTHUMBERLAND.

(a) *County Constituencies.*

- | | |
|--------------------------|--|
| 1. Berwick upon
Tweed | (i) The borough of Berwick upon Tweed ;
(ii) the urban districts of Alnwick and Amble ;
(iii) the rural districts of Alnwick, Belford, Glendale, Norham and Islandshires and Rothbury. |
| 2. Hexham ... | (i) The urban districts of Hexham and Prudhoe ;
(ii) the rural districts of Bellingham, Castle Ward, Haltwhistle and Hexham. |
| 3. Morpeth ... | (i) The borough of Morpeth ;
(ii) the urban districts of Ashington and Newbiggin by the Sea ;
(iii) the rural district of Morpeth. |

(b) *Borough Constituencies.*

1ST SCH.
—cont.

<i>Name.</i>	<i>Contents.</i>
1. Blyth	(i) The borough of Blyth ; (ii) the urban districts of Bedlingtonshire and Seaton Valley.
2. Newcastle upon Tyne Central	(i) The following wards of the county borough of Newcastle upon Tyne, namely, Armstrong, Byker, St. Anthony's, St. Nicholas and Stephenson ; (ii) the rural district of Newcastle upon Tyne.
3. Newcastle upon Tyne East	The following wards of the county borough of Newcastle upon Tyne, namely, Dene, Heaton, St. Lawrence, Walker and Walker Gate.
4. Newcastle upon Tyne North	The following wards of the county borough of Newcastle upon Tyne, namely, Arthur's Hill, Elswick, Jesmond, Sandford and Westgate.
5. Newcastle upon Tyne West	(i) The following wards of the county borough of Newcastle upon Tyne, namely, Benwell, Fenham, Kenton and Scotswood ; (ii) the urban district of Newburn.
6. Tynemouth	(i) The county borough of Tynemouth ; (ii) the urban district of Whitley Bay.
7. Wallsend	(i) The borough of Wallsend ; (ii) the urban districts of Gosforth and Longbenton.

NOTTINGHAM.

(a) *County Constituencies.*

1. Bassetlaw	(i) The boroughs of East Retford and Worksop ; (ii) the urban district of Warsop ; (iii) the rural districts of East Retford and Worksop.
2. Broxtowe	(i) The urban districts of Eastwood, Hucknall and Kirkby in Ashfield ; (ii) the following parishes in the rural district of Basford, namely, Annesley, Awsworth, Bestwood Park, Brinsley, Cossall, Felley, Greasley, Kimberley, Linby, Newstead, Nuthall, Papplewick, Selston, Strelley and Trowell.

1ST SCH.
—cont.

Name.	Contents.
3. Carlton ...	(i) The urban districts of Arnold and Carlton ; (ii) the rural district of Bingham and the following parishes in the rural district of Basford, namely, Burton Joyce, Calverton, Lambley, Stoke Bardolph and Woodborough.
4. Mansfield ...	(i) The borough of Mansfield ; (ii) the urban district of Sutton in Ashfield.
5. Newark ...	(i) The borough of Newark upon Trent ; (ii) the urban district of Mansfield Woodhouse ; (iii) the rural districts of Newark and Southwell.
6. Rushcliffe ...	(i) The urban districts of Beeston and Stapleford and West Bridgford ; (ii) the rural district of Basford except the parishes included in the Broxtowe and Carlton constituencies.

(b) *Borough Constituencies.*

1. Nottingham Central	(i) The following wards of the county borough of Nottingham, namely, Forest, Market, Robin Hood, St. Mary's and Sherwood ; (ii) the rural district of Nottingham.
2. Nottingham East	The following wards of the county borough of Nottingham, namely, Byron, Manvers, Mapperley and St. Anne's.
3. Nottingham North West	The following wards of the county borough of Nottingham, namely, Broxtowe, St. Albans and Wollaton.
4. Nottingham South	The following wards of the county borough of Nottingham, namely, Bridge, Castle, Meadows and Trent.

OXFORD.

(a) *County Constituencies.*

1. Banbury ...	(i) The boroughs of Banbury, Chipping Norton and Woodstock ; (ii) the urban district of Witney ; (iii) the rural districts of Banbury, Chipping Norton and Witney and the following parishes in the rural district of Ploughley, namely, Begbroke, Gosford and Water Eaton, Hampton Gay and Poyle, Kidlington, Shipton on Cherwell, Thrupp and Yarnton.
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<i>Name.</i>	<i>Contents.</i>	1ST SCH. —cont.
2. Henley ...	(i) The borough of Henley on Thames ; (ii) the urban districts of Bicester and Thame ; (iii) the rural districts of Bullingdon and Henley and the rural district of Ploughley except the parishes included in the Banbury constituency.	
	(b) <i>Borough Constituency.</i>	
1. Oxford ...	... The county borough of Oxford.	

SHROPSHIRE.

County Constituencies.

1. Ludlow ...	(i) The boroughs of Bishop's Castle, Bridgnorth, Ludlow and Wenlock ; (ii) the urban district of Church Stretton ; (iii) the rural districts of Bridgnorth, Clun and Ludlow.
2. Oswestry ...	(i) The borough of Oswestry ; (ii) the urban districts of Ellesmere, Market Drayton, Wem and Whitchurch ; (iii) the rural districts of Drayton, Ellesmere, Oswestry and Wem.
3. Shrewsbury ...	(i) The borough of Shrewsbury ; (ii) the rural district of Atcham.
4. The Wrekin ...	(i) The urban districts of Dawley, Newport, Oakengates and Wellington ; (ii) the rural districts of Shifnal and Wellington.

SOMERSET.

(a) *County Constituencies.*

1. Bridgwater ...	(i) The borough of Bridgwater ; (ii) the urban districts of Burnham on Sea, Minehead and Watchet ; (iii) the rural districts of Bridgwater and Williton.
2. North Somerset ...	(i) The urban districts of Keynsham, Norton Radstock and Portishead ; (ii) the rural districts of Bathavon and Clutton ; (iii) the rural district of Long Ashton, except the parishes of Kenn, Kingston Seymour and Yatton.
3. Taunton ...	(i) The borough of Taunton ; (ii) the urban district of Wellington ; (iii) the rural districts of Dulverton, Taunton and Wellington.

1ST SCH.
—cont.

Name.	Contents.
4. Wells 	(i) The boroughs of Glastonbury and Wells ; (ii) the urban districts of Frome, Shepton Mallet and Street ; (iii) the rural districts of Frome, Shepton Mallet, Wells and Wincanton.
5. Weston Super Mare	(i) The borough of Weston Super Mare ; (ii) the urban district of Clevedon ; (iii) the rural district of Axbridge and the parishes of Kenn, Kingston Seymour and Yatton in the rural district of Long Ashton.
6. Yeovil 	(i) The boroughs of Chard and Yeovil ; (ii) the urban districts of Crewkerne and Ilminster ; (iii) the rural districts of Chard, Langport and Yeovil.
(b) <i>Borough Constituency.</i>	
1. Bath 	The county borough of Bath.

STAFFORDSHIRE.

(a) *County Constituencies.*

1. Brierley Hill ...	(i) The urban districts of Amblecote, Brierley Hill and Tettenhall ; (ii) the rural district of Seisdon.
2. Burton 	(i) The county borough of Burton upon Trent ; (ii) the urban district of Uttoxeter ; (iii) the rural districts of Tutbury and Uttoxeter.
3. Cannock 	(i) The urban districts of Brownhills and Cannock ; (ii) the rural district of Cannock.
4. Leek , 	(i) The urban districts of Biddulph, Kids-grove and Leek ; (ii) the rural districts of Cheadle and Leek.
5. Lichfield and Tamworth	(i) The boroughs of Lichfield and Tamworth ; (ii) the urban districts of Aldridge and Rugeley ; (iii) the rural district of Lichfield.
6. Stafford and Stone	(i) The borough of Stafford ; (ii) the urban district of Stone ; (iii) the rural districts of Stafford and Stone.

(b) *Borough Constituencies.*

1. Bilston 	(i) The borough of Bilston ; (ii) the urban districts of Coseley and Sedgley.
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<i>Name.</i>	<i>Contents.</i>
2. Newcastle under Lyme	(i) The borough of Newcastle under Lyme ; (ii) the rural district of Newcastle under Lyme.
3. Rowley Regis and Tipton	The boroughs of Rowley Regis and Tipton.
4. Smethwick ...	The county borough of Smethwick.
5. Stoke on Trent Central	Wards Nos. 10 to 18 and 28 of the county borough of Stoke on Trent.
6. Stoke on Trent North	Wards Nos. 1 to 9 and 27 of the county borough of Stoke on Trent.
7. Stoke on Trent South	Wards Nos. 19 to 26 of the county borough of Stoke on Trent.
8. Walsall ...	The county borough of Walsall.
9. Wednesbury ...	(i) The borough of Wednesbury ; (ii) the urban districts of Darlaston, Wednesfield and Willenhall.
10. West Bromwich ...	The county borough of West Bromwich.
11. Wolverhampton North East	The following wards of the county borough of Wolverhampton, namely, Bushbury, Dunstall, Heath Town, Low Hill, Park, St. James', St. Mary's and St. Peter's.
12. Wolverhampton South West	The following wards of the county borough of Wolverhampton, namely, Blakenhall and St. John's, Graiseley, Penn, St. George's, St. Mark's and Merridale, St. Matthew's and St. Philip's.

SUFFOLK.

(a) *County Constituencies.*

1. Bury St. Edmunds (i) The borough of Bury St. Edmunds ;
(ii) the urban districts of Haverhill and Newmarket ;
(iii) the rural districts of Clare, Mildenhall, Thedwastre and Thingoe.
2. Eye ... (i) The boroughs of Aldeburgh and Eye ;
(ii) the urban districts of Leiston cum Sizewell, Saxmundham and Stowmarket ;
(iii) the rural districts of Blyth, Gipping and Hartismere and the following parishes in the rural district of Deben, namely, Blaxhall, Boulge, Bredfield, Burgh, Campsey Ash, Charsfield, Chillesford, Clopton, Cretingham, Dallinghoo, Dallinghoo Wield, Debach, Eyke, Gedgrave, Grundisburgh, Hoo, Iken, Letheringham, Monewden, Orford, Otley, Pettistree, Rendlesham, Sudbourne, Swilland, Tunstall, Ufford, Wantisden, Wickham Market and Witnesham.

1st SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
3.	Lowestoft	... (i) The boroughs of Beccles, Lowestoft and Southwold ; (ii) the urban districts of Bungay and Halesworth ; (iii) the rural districts of Lothingland and Wainford.
4.	Sudbury and Woodbridge	(i) The borough of Sudbury ; (ii) the urban districts of Felixstowe, Hadleigh and Woodbridge ; (iii) the rural districts of Cosford, Melford and Samford and the rural district of Deben, except the parishes included in the Eye constituency.
		(b) <i>Borough Constituency.</i>
1.	Ipswich ...	... The county borough of Ipswich.

SURREY.

(a) *County Constituencies.*

1.	Carshalton	... The urban districts of Banstead and Carshalton.
2.	Chertsey ...	... (i) The urban districts of Chertsey and Egham ; (ii) the rural district of Bagshot.
3.	Dorking ...	... (i) The urban district of Dorking ; (ii) the rural district of Dorking and Horley and the following parishes in the rural district of Guildford, namely, Albury, East Clandon, East Horsley, Effingham, Ockham, Ripley, St. Martha, Send, Shere, West Clandon, West Horsley and Wisley.
4.	East Surrey	... The urban districts of Caterham and Warlingham and Coulsdon and Purley.
5.	Epsom ...	... (i) The borough of Epsom and Ewell ; (ii) the urban district of Leatherhead.
6.	Esher ...	... The urban districts of Esher and Walton and Weybridge.
7.	Farnham ...	... (i) The borough of Godalming ; (ii) the urban districts of Farnham and Haslemere ; (iii) the parish of Seale in the rural district of Guildford and the following parishes in the rural district of Hambledon, namely, Chiddingfold, Dockenfield, Elstead, Frensham, Peper Harow, Thursley, Tilford and Witley.

<i>Name.</i>	<i>Contents.</i>	1ST SCH. —cont.
8. Guildford ...	(i) The borough of Guildford ; (ii) the following parishes in the rural district of Guildford, namely, Artington, Compton, Puttenham, Shackleford, Shalford, Wanborough and Worplesdon and the following parishes in the rural district of Hambledon, namely, Alfold, Bramley, Busbridge, Cranleigh, Dunsfold, Ewhurst, Hambledon, Hascombe and Wonersh.	
9. Reigate ...	(i) The borough of Reigate ; (ii) the rural district of Godstone.	
10. Woking ...	(i) The urban districts of Frimley and Camberley and Woking ; (ii) the parishes of Ash and Normandy and Pirbright in the rural district of Guildford.	

(b) *Borough Constituencies.*

1. Croydon East ... The Addington, Addiscombe, East, South Norwood and Woodside wards of the county borough of Croydon.
2. Croydon North ... The Bensham Manor, Norbury, Thornton Heath, Upper Norwood and West Thornton wards of the county borough of Croydon.
3. Croydon West ... The Broad Green, Central, South, Waddon and Whitehorse Manor wards of the county borough of Croydon.
4. Kingston-upon-Thames ... The boroughs of Kingston upon Thames and Surbiton.
5. Merton and Morden ... The urban district of Merton and Morden.
6. Mitcham ... The boroughs of Mitcham and Beddington and Wallington.
7. Richmond (Surrey) ... The boroughs of Richmond and Barnes.
8. Sutton and Cheam ... The borough of Sutton and Cheam.
9. Wimbledon ... The boroughs of Wimbledon and Malden and Coombe.

EAST SUSSEX.

(a) *County Constituencies.*

1. Eastbourne ... (i) The county borough of Eastbourne and the borough of Bexhill ;
(ii) the following parishes in the rural district of Hailsham, namely, Eastdean, Friston, Hooe, Jevington, Ninfield, Pevensey, Polegate, Wartling, Westham and Willingdon.

1st Sch.
—cont.

<i>Name.</i>	<i>Contents.</i>
2. East Grinstead ...	(i) The urban districts of Cuckfield and East Grinstead ; (ii) the rural district of Uckfield, the following parishes in the rural district of Cuckfield, namely, Ardingly, Balcombe, Bolney, Cuckfield Rural, Horsted Keynes, Lindfield Rural, Slaugham, West Hoathly and Worth, and the parishes of Burwash, Etchingham and Ticehurst in the rural district of Battle.
3. Lewes ...	(i) The borough of Lewes ; (ii) the urban districts of Burgess Hill, Newhaven and Seaford ; (iii) the rural district of Chailey, the following parishes in the rural district of Cuckfield, namely, Albourne, Clayton, Fulking, Hurstpierpoint, Keymer, Newtimber, Poynings, Pyecombe and Twineham, and the rural district of Hailsham except the parishes included in the Eastbourne constituency.

(b) *Borough Constituencies.*

1. Brighton, Kempton	The following wards of the county borough of Brighton, namely, Elm Grove, Hanover, King's Cliff, Lewes Road, Moulescoomb, Pier, Queens Park, Rottingdean and St. John's.
2. Brighton, Pavilion	The following wards of the county borough of Brighton, namely, Hollingbury, Montpelier, Patcham, Pavilion, Preston, Preston Park, Regency, St. Nicholas, St. Peters and West.
3. Hastings ...	(i) The county borough of Hastings, and the borough of Rye ; (ii) the rural district of Battle except the parishes of Burwash, Etchingham and Ticehurst.
4. Hove ...	(i) The borough of Hove ; (ii) the urban district of Portslade by Sea.

WEST SUSSEX.

(a) *County Constituencies.*

1. Arundel and Shoreham	(i) The borough of Arundel ; (ii) the urban districts of Littlehampton, Shoreham by Sea and Southwick ; (iii) the rural districts of Chanctonbury and Worthing.
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<i>Name.</i>	<i>Contents.</i>	1ST SCH —cont.
2. Chichester...	... (i) The borough of Chichester ; (ii) the urban district of Bognor Regis ; (iii) the rural district of Chichester.	
3. Horsham ...	... (i) The urban district of Horsham ; (ii) the rural districts of Horsham, Midhurst and Petworth.	
	(b) <i>Borough Constituency.</i>	
1. Worthing ...	... The borough of Worthing.	

WARWICKSHIRE.

(a) *County Constituencies.*

1. Nuneaton ...	... (i) The borough of Nuneaton ; (ii) the urban district of Bedworth ; (iii) the rural district of Atherstone.
2. Rugby ...	... (i) The borough of Rugby ; (ii) the rural district of Rugby.
3. Solihull ...	... The urban district of Solihull.
4. Stratford ...	... (i) The borough of Stratford on Avon ; (ii) the rural districts of Alcester, Shipston on Stour, Southam and Stratford on Avon.
5. Sutton Coldfield ...	(i) The borough of Sutton Coldfield ; (ii) the rural districts of Meriden and Tam- worth.
6. Warwick and Leamington	(i) The boroughs of Royal Leamington Spa and Warwick ; (ii) the urban district of Kenilworth ; (iii) the rural district of Warwick.

(b) *Borough Constituencies.*

1. Birmingham, Aston	The Aston, Lozells, St. Mary's and St. Paul's wards of the county borough of Birmingham.
2. Birmingham, Erdington	The Bromford, Erdington and Gravelly Hill wards of the county borough of Birmingham.
3. Birmingham, Edgbaston	The Edgbaston, Harborne and Market Hall wards of the county borough of Birmingham.
4. Birmingham, Hall Green	The Hall Green and Sparkhill wards of the county borough of Birmingham.
5. Birmingham, Handsworth	The Handsworth, Sandwell and Soho wards of the county borough of Birmingham.
6. Birmingham, Ladywood	The All Saints', Ladywood and Rotton Park wards of the county borough of Birmingham.
7. Birmingham, King's Norton	The King's Norton and Moseley and King's Heath wards of the county borough of Birmingham.

1ST SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
8.	Birmingham, Northfield	The Northfield and Selly Oak wards of the county borough of Birmingham.
9.	Birmingham, Perry Barr	The Perry Barr ward of the county borough of Birmingham.
10.	Birmingham, Small Heath	The Duddeston and Nechells, St. Bartholomew's, Saltley and Small Heath wards of the county borough of Birmingham.
11.	Birmingham, Sparkbrook	The Balsall Heath, St. Martin's and Deritend and Sparkbrook wards of the county borough of Birmingham.
12.	Birmingham, Stechford	The Stechford and Washwood Heath wards of the county borough of Birmingham.
13.	Birmingham, Yardley	The Acock's Green and Yardley wards of the county borough of Birmingham.
14.	Coventry East ...	The Charterhouse and Binley, Longford, Lower Stoke, Upper Stoke and Walsgrave wards of the county borough of Coventry.
15.	Coventry North ...	The Bablake, Foleshill, Holbrook, Radford and Sherbourne wards of the county borough of Coventry.
16.	Coventry South ...	The Cheylesmore, Earlsdon, Godiva, St. Michael's Westwood and Whoberley wards of the county borough of Coventry.

WESTMORLAND.

County Constituency.

1. Westmorland ... The county of Westmorland.

ISLE OF WIGHT.

County Constituency.

1. Isle of Wight ... The county of the Isle of Wight.

WILTSHIRE.

County Constituencies.

1. Chippenham ... (i) The boroughs of Calne, Chippenham and Malmesbury ;
(ii) the rural districts of Calne and Chippenham, Cricklade and Wootton Bassett and Malmesbury.
2. Devizes ... (i) The boroughs of Devizes and Marlborough ;
(ii) the rural districts of Devizes, Highworth, Marlborough and Ramsbury and Pewsey.
3. Salisbury ... (i) The boroughs of Salisbury and Wilton ;
(ii) the rural districts of Amesbury and Salisbury and Wilton.

<i>Name.</i>	<i>Contents.</i>	1ST SCH. —cont.
4. Westbury ...	(i) The urban districts of Bradford on Avon, Melksham, Trowbridge, Warminster and Westbury; (ii) the rural districts of Bradford and Melksham, Mere and Tisbury and Warminster and Westbury. (b) <i>Borough Constituency.</i>	
1. Swindon ...	... The borough of Swindon.	

WORCESTERSHIRE.

(a) <i>County Constituencies.</i>		
1. Bromsgrove ...	(i) The urban districts of Bromsgrove and Redditch; (ii) the rural district of Bromsgrove.	
2. Kidderminster ...	(i) The boroughs of Bewdley and Kidderminster; (ii) the urban district of Stourport on Severn; (iii) the rural districts of Kidderminster, Martley and Tenbury.	
3. South Worcester-shire	(i) The borough of Evesham; (ii) the urban district of Malvern; (iii) the rural districts of Evesham, Pershore and Upton upon Severn.	
(b) <i>Borough Constituencies.</i>		
1. Dudley ...	... The county borough of Dudley and the borough of Stourbridge.	
2. Oldbury and Halesowen	The boroughs of Halesowen and Oldbury.	
3. Worcester ...	(i) The county borough of Worcester and the borough of Droitwich; (ii) the rural district of Droitwich.	

YORKSHIRE—EAST RIDING.

(a) <i>County Constituencies.</i>		
1. Beverley ...	(i) The borough of Beverley; (ii) the urban district of Norton; (iii) the rural districts of Beverley, Derwent, Howden, Norton and Pocklington.	
2. Bridlington	(i) The boroughs of Bridlington and Hedon; (ii) the urban districts of Driffeld, Filey, Hornsea and Withernsea; (iii) the rural districts of Bridlington, Driffeld and Holderness.	

1ST SCH.
—cont.(b) *Borough Constituencies.*

- | <i>Name.</i> | <i>Contents.</i> |
|------------------------------------|---|
| 1. Kingston upon Hull Central | The following wards of the county borough of Kingston upon Hull, namely, Albert, Botanic, Coltman, East Central, Myton, North Newington, Paragon, South Newington and West Central. |
| 2. Kingston upon Hull East | The following wards of the county borough of Kingston upon Hull, namely, Alexandra, Drypool, Marfleet, Southcoates, Stoneferry and Sutton. |
| 3. Kingston upon Hull, Haltemprice | (i) The Pickering and St. Andrews wards of the county borough of Kingston upon Hull ;
(ii) the urban district of Haltemprice. |
| 4. Kingston upon Hull North | The Beverley, Newland, Park and University wards of the county borough of Kingston upon Hull. |

YORKSHIRE—NORTH RIDING.

(a) *County Constituencies.*

- | | |
|---------------------------|---|
| 1. Cleveland ... | ... (i) The borough of Redcar ;
(ii) the urban districts of Eston, Guisborough, Loftus, Saltburn and Marske by the Sea and Skelton and Brotton. |
| 2. Richmond (Yorks) | (i) The borough of Richmond ;
(ii) the urban district of Northallerton ;
(iii) the rural districts of Aysgarth, Croft, Leyburn, Masham, Northallerton, Reeth, Richmond, Startforth and Stokesley. |
| 3. Scarborough and Whitby | (i) The borough of Scarborough ;
(ii) the urban districts of Pickering, Scalby and Whitby ;
(iii) the rural districts of Scarborough and Whitby and the following parishes in the rural district of Pickering, namely, Allerston, Ebberston, Kingthorpe, Levisham, Lockton, Newton, Pickering Marishes, Thornton Dale and Wilton. |
| 4. Thirsk and Malton | (i) The urban district of Malton ;
(ii) the rural districts of Bedale, Easingwold, Flaxton, Helmsley, Kirkby Moorside, Malton, Thirsk and Wath and the rural district of Pickering except the parishes included in the Scarborough and Whitby constituency. |

(b) *Borough Constituencies.*

1ST SCH.
—cont.

<i>Name.</i>	<i>Contents.</i>
1. Middlesbrough East	The county borough of Middlesbrough, except the Acklam, Ayresome and Linthorpe wards.
2. Middlesbrough West	The Acklam, Ayresome and Linthorpe wards of the county borough of Middlesbrough, and the borough of Thornaby on Tees.

YORKSHIRE—WEST RIDING.

(a) *County Constituencies.*

1. Barkston Ash.	... (i) The urban districts of Garforth and Selby ; (ii) the rural districts of Selby and Wetherby and the rural district of Tadcaster except the parishes of Great and Little Preston and Swillington ; (iii) the parishes of Hessay, Knapton, Moor Monkton, Poppleton Nether, Poppleton Upper and Rufforth in the rural district of Nidderdale.
2. Colne Valley	... The urban districts of Colne Valley, Holmfirth, Kirkburton, Meltham and Saddleworth.
3. Dearne Valley	... The urban districts of Conisbrough, Darfield, Mexborough, Swinton, Wath upon Dearne and Wombwell.
4. Don Valley	... (i) The urban districts of Adwick le Street, Bentley with Arksey and Tickhill ; (ii) the rural district of Doncaster.
5. Goole	... (i) The borough of Goole ; (ii) the urban district of Knottingley ; (iii) the rural districts of Goole, Osgoldcross and Thorne.
6. Harrogate	... (i) The borough of Harrogate ; (ii) the urban district of Knaresborough ; (iii) the rural district of Nidderdale except the parishes of Hessay, Knapton, Moor Monkton, Poppleton Nether, Poppleton Upper and Rufforth.
7. Hemsworth	... (i) The urban districts of Cudworth, Dearne, Hemsworth and Royston ; (ii) the rural district of Hemsworth.
8. Normanton	... (i) The urban districts of Normanton, Rothwell and Stanley ; (ii) the parishes of Great and Little Preston and Swillington in the rural district of Tadcaster and the parishes of Crofton, Sharlston and Warmfield cum Heath in the rural district of Wakefield.

1ST SCH. —cont.	Name.	Contents.
9. Penistone...	...	(i) The urban districts of Denby Dale, Dodworth, Hoyland Nether, Penistone and Stocksbridge; (ii) the rural districts of Penistone and Wortley.
10. Ripon ...	...	(i) The borough of Ripon ; (ii) the urban districts of Ilkley and Otley ; (iii) the rural districts of Ripon and Pateley Bridge and Wharfedale.
11. Rother Valley ...	...	(i) The urban districts of Maltby and Rawmarsh ; (ii) the rural districts of Kiveton Park and Rotherham.
12. Shipley ...	...	The urban districts of Baildon, Bingley and Shipley.
13. Skipton ...	...	(i) The urban districts of Barnoldswick, Earby and Skipton ; (ii) the rural districts of Bowland, Sedbergh and Settle and the rural district of Skipton except the parishes of Steeton with Eastburn and Sutton.
14. Sowerby ...	...	(i) The borough of Todmorden ; (ii) the urban districts of Elland, Hebden Royd, Ripponden and Sowerby Bridge; (iii) the rural district of Hepton.

(b) *Borough Constituencies.*

1. Barnsley ... (i) The county borough of Barnsley ;
(ii) the urban districts of Darton and Worsborough.
2. Batley and Morley The boroughs of Batley and Morley.
3. Bradford Central... The Bradford Moor, Exchange, Manningham, North-East and South wards of the county borough of Bradford.
4. Bradford East ... The East Bowling, Little Horton, North Bierley East, Tong and West Bowling wards of the county borough of Bradford.
5. Bradford North ... The Allerton, Bolton, Eccleshill, Heaton and Idle wards of the county borough of Bradford.
6. Bradford South ... The Clayton, Great Horton, Listerhills, North Bierley West and Thornton wards of the county borough of Bradford.
7. Brighouse and Spenborough (i) The borough of Brighouse ;
(ii) the urban districts of Queensbury and Shelf and Spenborough.

<i>Name.</i>	<i>Contents.</i>	1ST SCH. —cont.
8. Dewsbury ...	(i) The county borough of Dewsbury and the borough of Ossett ; (ii) the urban districts of Heckmondwike and Mirfield.	
9. Doncaster ...	The county borough of Doncaster.	
10. Halifax ...	The county borough of Halifax.	
11. Huddersfield East	The following wards of the county borough of Huddersfield, namely, Almondbury, Dalton, Deighton, Fartown, Newsome, North Central and South Central.	
12. Huddersfield West	The following wards of the county borough of Huddersfield, namely, Birkby, Crosland Moor, Lindley, Lockwood, Longwood, Marsh, Milnsbridge and Paddock.	
13. Keighley ...	(i) The borough of Keighley ; (ii) the urban districts of Denholme and Silsden ; (iii) the parishes of Steeton with Eastburn and Sutton in the rural district of Skipton.	
14. Leeds Central ...	The Armley and New Wortley, Blenheim, Central, Holbeck North, Mill Hill and South and Westfield wards of the county borough of Leeds.	
15. Leeds North-East	The Burmantofts, Harehills, Potternewton and Richmond Hill wards of the county borough of Leeds.	
16. Leeds North ...	The North, Roundhay and Woodhouse wards of the county borough of Leeds.	
17. Leeds North-West	The Far Headingley, Hyde Park and Kirkstall wards of the county borough of Leeds.	
18. Leeds South ...	The Beeston, Holbeck South, Hunslet Carr and Middleton and West Hunslet wards of the county borough of Leeds.	
19. Leeds South-East	The Cross Gates and Templenewsam, East Hunslet and Osmondthorpe wards of the county borough of Leeds.	
20. Leeds West ...	The Bramley, Farnley and Wortley and Upper Armley wards of the county borough of Leeds.	
21. Pontefract ...	(i) The borough of Pontefract ; (ii) the urban districts of Castleford and Featherstone.	

1ST SCH.
—cont.

<i>Name.</i>	<i>Contents.</i>
22. Pudsey ...	(i) The borough of Pudsey ; (ii) the urban districts of Aireborough and Horsforth.
23. Rotherham ...	The county borough of Rotherham.
24. Sheffield, Attercliffe	The Attercliffe, Darnall and Handsworth wards of the county borough of Sheffield.
25. Sheffield, Brightside	The Brightside, Firth Park and Tinsley wards of the county borough of Sheffield.
26. Sheffield, Hallam...	The Broomhill, Ecclesall and Hallam wards of the county borough of Sheffield.
27. Sheffield, Heeley ...	The Heeley, Nether Edge, Norton and Wood- seats wards of the county borough of Sheffield.
28. Sheffield, Hillsborough	The Crookesmoor, Hillsborough, Owlerton and Walkley wards of the county borough of Sheffield.
29. Sheffield, Neepsend	The Burngreave, Neepsend, St. Peter's and St. Phillip's wards of the county borough of Sheffield.
30. Sheffield, Park ...	The Manor, Moor, Park and Sharrow wards of the county borough of Sheffield.
31. Wakefield ...	(i) The county borough of Wakefield ; (ii) the urban district of Horbury ; (iii) the rural district of Wakefield except the parishes of Crofton, Sharlston and Warmfield cum Heath.

YORK.

Borough Constituency.

1. York The county borough of York.

PART II.

WALES.

ANGLESEY.

County Constituency.

1. Anglesey The county of Anglesey.

BRECKNOCKSHIRE AND RADNORSHIRE.

County Constituency.

1. Brecon and Radnor The counties of Brecknock and Radnor.

CAERNARVONSHIRE.

1ST SCH.
—cont.

County Constituencies.

<i>Name.</i>	<i>Contents.</i>
1. Caernarvon ...	(i) The boroughs of Caernarvon and Pwllheli; (ii) the urban districts of Criccieth and Portmadoc; (iii) the rural districts of Gwyrfaï and Lleyn.
2. Conway ...	(i) The boroughs of Bangor and Conway; (ii) the urban districts of Bethesda, Bettws-y-Coed, Llandudno, Llanfairfechan and Penmaenmawr; (iii) the rural districts of Nant Conway and Ogwen.

CARDIGANSHIRE.

County Constituency.

1. Cardigan ...	... The county of Cardigan.
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CARMARTHENSHIRE.

County Constituencies.

1. Carmarthen ...	(i) The boroughs of Carmarthen, Kidwelly and Llandovery; (ii) the urban districts of Llandilo and Newcastle Emlyn; (iii) the rural districts of Carmarthen and Newcastle Emlyn and the rural district of Llandilo except the parish of Bettws.
2. Llanelly ...	(i) The borough of Llanelly; (ii) the urban districts of Ammanford, Burry Port and Cwmamman; (iii) the rural district of Llanelly and the parish of Bettws in the rural district of Llandilo.

DENBIGHSHIRE.

County Constituencies.

1. Denbigh ...	(i) The boroughs of Colwyn Bay, Denbigh and Ruthin; (ii) the urban districts of Abergele, Llangollen and Llanrwst; (iii) the rural districts of Aled, Hiraethog and Ruthin, the parishes of Llangollen Rural and Llantysilio in the rural district of Wrexham and the rural district of Ceiriog except the parish of Chirk.
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1ST SCH —cont.	Name.	Contents.
2.	Wrexham	... (i) The borough of Wrexham ; (ii) the parish of Chirk in the rural district of Ceiriog and the rural district of Wrexham except the parishes of Llangollen Rural and Llantysilio.

FLINTSHIRE.

County Constituencies.

1.	East Flint...	... (i) The borough of Flint ; (ii) the urban districts of Buckley, Connah's Quay and Holywell ; (iii) the rural districts of Hawarden and Overton.
2.	West Flint	... (i) The urban districts of Mold, Prestatyn and Rhyl ; (ii) the rural districts of Holywell and St. Asaph.

GLAMORGANSHIRE.

(a) *County Constituencies.*

1.	Aberavon ...	... (i) The borough of Port Talbot ; (ii) the urban districts of Glyncoirwg and Porthcawl ; (iii) the parishes of Kenfig, Pyle, Sker, Tythegston Lower and Tythegston Higher in the rural district of Penybont.
2.	Barry ...	... (i) The borough of Barry ; (ii) the rural district of Cardiff.
3.	Caerphilly	... The urban districts of Caerphilly and Gelligaer.
4.	Gower ...	... (i) The urban district of Llwchwr ; (ii) the rural districts of Gower and Pontardawe.
5.	Neath ...	... (i) The borough of Neath ; (ii) the rural district of Neath.
6.	Ogmore ...	... (i) The urban districts of Bridgend, Maesteg and Ogmore and Garw ; (ii) the rural district of Penybont except the parishes included in the Aberavon constituency.
7.	Pontypridd	... (i) The borough of Cowbridge ; (ii) the urban district of Pontypridd ; (iii) the rural districts of Cowbridge and Llantrisant and Llantwit-Fardre.

(b) *Borough Constituencies.*

1.	Aberdare ...	... The urban districts of Aberdare and Mountain Ash.
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<i>Name.</i>	<i>Contents.</i>	
2. Cardiff North	... The Cathays, Central, Gabalfa, Penylan and Plasnewydd wards of the county borough of Cardiff.	
3. Cardiff South East	(i) The Adamsdown, Roath, Splott and South wards of the county borough of Cardiff; (ii) the urban district of Penarth.	
4. Cardiff West	... The Canton, Ely, Grangetown, Llandaff and Riverside wards of the county borough of Cardiff.	
5. Merthyr Tydfil	... The county borough of Merthyr Tydfil.	
6. Rhondda East	... Wards nos. 7 to 11 of the urban district of Rhondda and the part of ward no. 6 of that district lying to the east of the middle of the River Rhondda.	
7. Rhondda West	... Wards nos. 1 to 5 of the urban district of Rhondda and the part of ward no. 6 of that district lying to the west of the middle of the River Rhondda.	
8. Swansea East	... The following wards of the county borough of Swansea namely, Alexandra, Castle, Clase, Kilvey, Landore, Llansamlet, Morriston, Penderry, St. John's and St. Thomas.	
9. Swansea West	... The following wards of the county borough of Swansea, namely, Brynmelyn, Cockett, Ffynone, Oystermouth and Brynau, St. Helens, Sketty, Victoria and Waunarlwydd.	

1ST SCH.
—cont.

MERIONETHSHIRE.

County Constituency.

1. Merioneth ... The county of Merioneth.

MONMOUTHSHIRE.

(a) *County Constituencies.*

1. Abertillery ... The urban districts of Abercarn, Abertillery and Nantyglo and Blaina.
2. Bedwellty ... The urban districts of Bedwas and Machen, Bedwellty, Mynyddislwyn and Risca.
3. Ebbw Vale ... The urban districts of Ebbw Vale, Rhymney and Tredegar.

1ST SCH. —cont.	Name.	Contents.
4. Monmouth	...	(i) The boroughs of Abergavenny and Monmouth ; (ii) the urban districts of Caerleon, Chepstow and Usk ; (iii) the rural districts of Abergavenny, Chepstow, Magor and St. Mellons, Monmouth and Pontypool.
5. Pontypool...	...	The urban districts of Blaenavon, Cwmbran and Pontypool.
		(b) <i>Borough Constituency.</i>
1. Newport	...	The county borough of Newport.
		MONTGOMERYSHIRE. <i>County Constituency.</i>
1. Montgomery	...	The county of Montgomery.
		PEMBROKESHIRE. <i>County Constituency.</i>
1. Pembroke	...	The county of Pembroke.

PART III.

SCOTLAND.

[Note.—The references to the following areas, namely the burghs of Coatbridge and Lochgelly, the counties of Dumfries and Kirkcudbright, the ninth district of Lanarkshire and the Lochgelly district of Fife, are references to those areas as constituted on the sixteenth day of May, 1948.]

ABERDEENSHIRE.

(a) *County Constituencies.*

1. East Aberdeenshire (i) The burghs of Ellon, Fraserburgh, Huntly, Peterhead, Rosehearty and Turriff ;
(ii) the districts of Deer, Ellon, Huntly and Turriff.
2. West Aberdeenshire (i) The burghs of Ballater, Inverurie, Kintore and Old Meldrum ;
(ii) the districts of Aberdeen, Alford, Deeside and Garioch.

(b) *Burgh Constituencies.*

1. Aberdeen North ... The following wards of the county of the city of Aberdeen, namely, Gilcomston, Greyfriars, St. Clement, St. Machar, St. Nicholas and Woodside.
2. Aberdeen South ... The following wards of the county of the city of Aberdeen, namely, Ferryhill, Holburn, Rosemount, Rubislaw, Ruthrieston and Torry.

ANGUS AND KINCARDINE.

1ST SCH.
—cont.

(a) *County Constituencies.*

<i>Name.</i>	<i>Contents.</i>
1. North Angus and Mearns	(i) The county of Kincardine inclusive of all the burghs situated therein ; (ii) the burghs of Brechin and Montrose ; (iii) the districts of Brechin and Montrose.
2. South Angus ...	(i) The burghs of Arbroath, Carnoustie, Forfar, Kirriemuir and Monifieth ; (ii) the districts of Carnoustie, Forfar, Kirriemuir and Monifieth.

(b) *Burgh Constituencies.*

1. Dundee East ...	The first, fourth, fifth, tenth, eleventh and twelfth wards of the county of the city of Dundee.
2. Dundee West ...	The second, third, sixth, seventh, eighth and ninth wards of the county of the city of Dundee.

ARGYLL.

County Constituency.

1. Argyll ...	The county of Argyll inclusive of all the burghs situated therein.
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AYRSHIRE AND BUTE.

(a) *County Constituencies.*

1. Ayr ...	(i) The burghs of Ayr and Prestwick ; (ii) the district of Ayr except in so far as included in the Central Ayrshire constituency.
2. Bute and North Ayrshire	(i) The county of Bute inclusive of all the burghs situated therein ; (ii) the burghs of Ardrossan, Largs and Saltcoats ; (iii) the district of Saltcoats.
3. Central Ayrshire ...	(i) The burghs of Irvine, Kilwinning, Stewarton and Troon ; (ii) the districts of Irvine and Kilbirnie, the electoral division of Dundonald in the district of Ayr and the electoral division of Dunlop and Stewarton in the district of Kilmarnock.
4. Kilmarnock ...	(i) The burghs of Kilmarnock, Darvel, Galston and Newmilns and Greenholm ; (ii) the district of Newmilns and the district of Kilmarnock except in so far as included in the Central Ayrshire constituency.

1ST SCH.
—cont.

- | <i>Name.</i> | <i>Contents.</i> |
|-----------------------|---|
| 5. South Ayrshire ... | (i) The burghs of Cumnock and Holmhead,
Girvan and Maybole ;
(ii) the districts of Cumnock, Dalmellington,
Girvan and Maybole. |

BANFFSHIRE.

County Constituency.

- | | |
|--------------|--|
| 1. Banff ... | ... The county of Banff inclusive of all the
burghs situated therein. |
|--------------|--|

BERWICKSHIRE AND EAST LOTHIAN.

County Constituency.

- | | |
|-----------------------------|---|
| 1. Berwick and East Lothian | The counties of Berwick and East Lothian
inclusive of all the burghs situated therein. |
|-----------------------------|---|

CAITHNESS AND SUTHERLAND.

County Constituency.

- | | |
|-----------------------------|---|
| 1. Caithness and Sutherland | The counties of Caithness and Sutherland
inclusive of all the burghs situated therein. |
|-----------------------------|---|

DUMFRIESSHIRE.

County Constituency.

- | | |
|-----------------|---|
| 1. Dumfries ... | ... The county of Dumfries inclusive of all the
burghs situated therein. |
|-----------------|---|

DUNBARTONSHIRE.

County Constituencies.

- | | |
|------------------------|--|
| 1. East Dunbartonshire | (i) The burghs of Clydebank, Kirkintilloch
and Milngavie ;
(ii) the districts of Cumbernauld, Kirkin-
tilloch and New Kilpatrick. |
| 2. West Dunbartonshire | (i) The burghs of Dumbarton, Cove and
Kilcreggan and Helensburgh ;
(ii) the districts of Helensburgh, Old
Kilpatrick and Vale of Leven. |

FIFE.

(a) County Constituencies.

- | | |
|------------------|--|
| 1. East Fife ... | ... The burghs of Aùchtermucht, Crail, Cupar,
Elie and Earlsferry, Falkland, Kilrenny,
Anstruther Easter and Anstruther Wester,
Ladybank, Leven, Newburgh, Newport,
Pittenweem, St. Andrews, St. Monance and
Tayport. The districts of Anstruther,
Cupar and St. Andrews and the electoral
division of Kennoway and Scoonie in the
district of Wemyss. |
|------------------|--|

<i>Name.</i>	<i>Contents.</i>
2. West Fife ...	... The burghs of Culross, Leslie and Markinch. The districts of Dunfermline, Kirkcaldy and Lochgelly, and the Wemyss district in so far as not included in the East Fife constituency.
(b) <i>Burgh Constituencies.</i>	
1. Dunfermline burghs	The burghs of Dunfermline, Cowdenbeath, Inverkeithing and Lochgelly.
2. Kirkcaldy burghs	The burghs of Kirkcaldy, Buckhaven and Methil, Burntisland and Kinghorn.

1ST SCH.
—cont.

INVERNESSSHIRE AND ROSS AND CROMARTY.

County Constituencies.

1. Inverness ... The county of Inverness inclusive of all the burghs situated therein except in so far as contained within the Western Isles constituency.
2. Ross and Cromarty The county of Ross and Cromarty inclusive of all the burghs situated therein except in so far as contained within the Western Isles constituency.
3. Western Isles ... (i) The burgh of Stornoway ;
(ii) the districts of Barra, Harris, North Uist and South Uist in the county of Inverness and the district of Lewis in the county of Ross and Cromarty.

KIRKCUDBRIGHTSHIRE AND WIGTOWNSHIRE.

County Constituency.

1. Galloway ... The counties of Kirkcudbright and Wigtown inclusive of all the burghs situated therein.

LANARKSHIRE.

(a) *County Constituencies.*

1. Bothwell ... The sixth district, the electoral divisions of Baillieston, Mount Vernon and Carmyle, Springboig and Garrowhill in the ninth district and that part of the electoral division of Old Monkland in the said ninth district which is bounded on the North by the city of Glasgow and the burgh of Coatbridge, on the West by the electoral division of Baillieston and on the South and East by the electoral divisions of Tannochside and Bellshill North.

1ST SCH. —cont.	Name.	Contents.
2. Hamilton ...	...	(i) The burgh of Hamilton ; (ii) the electoral divisions of Hamilton, Larkhall North, Larkhall South and Dalserf in the fourth district and the electoral divisions of Stonefield, Blantyre and High Blantyre in the fifth district.
3. Lanark ...	...	(i) The burghs of Biggar and Lanark ; (ii) the first, second and third districts and, so far as not included in the Hamilton constituency, the fourth and fifth districts.
4. Motherwell	...	(i) The burgh of Motherwell and Wishaw ; (ii) the electoral division of Dalziel-Overtown in the seventh district.
5. North Lanarkshire		The ninth district so far as not included in the Bothwell constituency and the seventh district so far as not included in the Motherwell constituency.
6. Rutherglen	...	(i) The burgh of Rutherglen ; (ii) the eighth district.

(b) *Burgh Constituencies.*

1. Coatbridge and Airdrie The burghs of Coatbridge and Airdrie.
2. Glasgow, Bridgeton The following wards (as constituted by the Local Government (Scotland) (Glasgow Wards and Councillors) Order, 1948, S.I., 1948, No. 876) of the county of the city of Glasgow, namely, Calton and Dalmarnock.
3. Glasgow, Camlachie The following wards (as so constituted) of the county of the city of Glasgow, namely, Dennistoun, Provan and that part of Mile-End ward which lies to the west of a line commencing at a point on the northern boundary of the ward immediately opposite the centre line of Millerston Street thence southward to and along the centre line of Millerston Street to the centre line of Gallowgate ; thence eastward along the centre line of Gallowgate to a point opposite the centre line of Fielden Street ; thence southward along the centre line of Fielden

<i>Name.</i>	<i>Contents.</i>	<i>1ST SCH.</i> <i>—cont.</i>
	Street to the termination of the line on the southern boundary of the Mile-End ward immediately opposite the centre of Fielden Street.	
4. Glasgow, Cathcart	The following wards (as so constituted) of the county of the city of Glasgow, namely, Cathcart, Langside and that part of Govanhill ward which is south and east of a line commencing at a point on the western boundary of the ward where it is cut by the centre line of Calder Street ; thence eastward along the centre line of Calder Street to the centre of Polmadie Road ; thence north-eastward along the centre line of Polmadie Road to the termination of the line on the northern boundary of the ward at the centre of the British Railways main line from Glasgow to Rutherglen.	
5. Glasgow Central ...	The following wards (as so constituted) of the county of the city of Glasgow, namely, Exchange and Townhead.	
6. Glasgow, Gorbals...	The following wards (as so constituted) of the county of the city of Glasgow, namely, Gorbals, Hutchesontown and that part of the Govanhill ward which is not included in the Cathcart constituency.	
7. Glasgow, Govan ...	The following wards (as so constituted) of the county of the city of Glasgow, namely, Craigton, Fairfield and that part of Govan ward which lies to the west of a line commencing on the northwest boundary of the ward where it is cut by the centre line of Greenfield Street ; thence southward along the centre line of Greenfield Street to the centre line of Crossloan Road ; thence south-eastward along the centre line of Crossloan Road to the centre line of Craigton Road ; thence southward along the centre line of Craigton Road to the termination of the line at the ward boundary at the junction of Craigton Road and Shieldhall Road.	
8. Glasgow, Hillhead	The following wards (as so constituted) of the county of the city of Glasgow, namely, Kelvinside, Partick (West), and that part of Partick (East) ward which is south and west of a line commencing at a point on the ward boundary at the junction of the centre lines of Dowanside Road and Byres Road ;	

1ST SCH
—cont.*Name.**Contents.*

- thence southward along the centre line of Byres Road to the centre line of Ashton Road; thence south-eastward along the centre line of Ashton Road to the centre line of University Avenue; thence eastward along the centre line of University Avenue to a point opposite the centre of the southern end of Oakfield Avenue, thence in an easterly direction in a straight line to a point on the east side of Kelvin Way where the north boundary fence of Kelvingrove Park meets the said Kelvin Way, thence in a generally easterly direction along the north boundary fence of Kelvingrove Park to the southmost limit of Westbank Quadrant, thence in a straight line in a south-easterly direction to the east boundary of the ward at the centre of the River Kelvin.
9. Glasgow, Kelvingrove The following wards (as so constituted) of the county of the city of Glasgow, namely, Anderston and Park.
 10. Glasgow, Maryhill The following wards (as so constituted) of the county of the city of Glasgow, namely, Maryhill and Ruchill.
 11. Glasgow, Pollok ... The following wards (as so constituted) of the county of the city of Glasgow, namely, Camphill, Pollokshaws and Pollokshields.
 12. Glasgow, Scotstoun The following wards (as so constituted) of the county of the city of Glasgow, namely, Knightswood, Whiteinch and Yoker.
 13. Glasgow, Shettleston The following wards (as so constituted) of the county of the city of Glasgow, namely, Parkhead, Shettleston and Tollcross and that part of Mile-End ward which is not included in the Camlachie constituency.
 14. Glasgow, Springburn The following wards (as so constituted) of the county of the city of Glasgow, namely, Cowcaddens, Cowlares and Springburn.
 15. Glasgow, Tradeston The following wards (as so constituted) of the county of the city of Glasgow, namely, Kinning Park, Kingston and that part of Govan ward which is not included in the Govan constituency.
 16. Glasgow, Woodside The following wards (as so constituted) of the county of the city of Glasgow, namely, North Kelvin, Woodside and that part of Partick (East) ward which is not included in the Hillhead constituency.

MIDLOTHIAN AND PEEBLES SHIRE.

1ST SCH.
—cont.

(a) *County Constituency.*

<i>Name.</i>	<i>Contents.</i>
1. Midlothian and Peebles.	The counties of Midlothian and Peebles inclusive of all the burghs situated therein except the county of the city of Edinburgh and the burgh of Musselburgh.

(b) *Burgh Constituencies.*

1. Edinburgh Central The following wards (as constituted by the Local Government (Scotland) (Edinburgh Wards) Order, 1948, S.I., 1948, No. 1138) of the county of the city of Edinburgh, namely, George Square, Holyrood and St. Giles.
2. Edinburgh East ... The burgh of Musselburgh and the following wards (as so constituted) of the county of the city of Edinburgh, namely, Craigen-tinny, Craigmillar and Portobello.
3. Edinburgh, Leith The following wards (as so constituted) of the county of the city of Edinburgh, namely, Central Leith, South Leith and West Leith.
4. Edinburgh North The following wards (as so constituted) of the county of the city of Edinburgh, namely, Broughton, Calton and St. Andrew's.
5. Edinburgh,
Pentlands The following wards (as so constituted) of the county of the city of Edinburgh, namely, Colinton, Gorgie-Dalry, Merchiston and Sighthill.
6. Edinburgh South The following wards (as so constituted) of the county of the city of Edinburgh, namely, Liberton, Morningside and Newington.
7. Edinburgh West ... The following wards (as so constituted) of the county of the city of Edinburgh, namely, Corstorphine, Murrayfield-Cramond, St. Bernard's and Pilton.

MORAY AND NAIRN SHIRE.

County Constituency.

1. Moray and Nairn... The counties of Moray and Nairn inclusive of all the burghs situated therein.

1ST SCH.
—cont.

ORKNEY AND ZETLAND.

County Constituency.

1. Orkney and Zetland The counties of Orkney and Zetland inclusive of all the burghs situated therein.

PERTHSHIRE AND KINROSSSHIRE.

County Constituencies.

1. Kinross and West Perthshire (i) The county of Kinross inclusive of the burgh of Kinross ;
(ii) the burghs of Aberfeldy, Auchterarder, Callander, Crieff, Doune, Dunblane and Pitlochry ;
(iii) the Central, Highland and Western districts of the county of Perth.
2. Perth and East Perthshire (i) The burghs of Perth, Abernethy, Alyth, Blairgowrie and Rattray, and Coupar Angus ;
(ii) the Eastern and Perth districts of the county of Perth.

RENFREWSHIRE.

(a) *County Constituencies.*

1. East Renfrewshire (i) The burghs of Barrhead and Renfrew ;
(ii) the first and second districts of the county of Renfrew.
2. West Renfrewshire (i) The burghs of Port Glasgow, Gourock and Johnstone ;
(ii) the third, fourth and fifth districts of the county of Renfrew.

(b) *Burgh Constituencies.*

1. Greenock ... The burgh of Greenock.
2. Paisley ... The burgh of Paisley.

ROXBURGHSHIRE AND SELKIRKSHIRE.

County Constituency.

- | <i>Name.</i> | <i>Contents.</i> |
|--------------------------|--|
| 1. Roxburgh and Selkirk. | The counties of Roxburgh and Selkirk inclusive of all the burghs situated therein. |

STIRLINGSHIRE AND CLACKMANNANSHIRE.

1ST SCH.
—*cont.*

(a) *County Constituencies.*

1. Clackmannan and East Stirlingshire. (i) The county of Clackmannan inclusive of all the burghs situated therein ;
(ii) the Eastern No. 1, Eastern No. 2 and Eastern No. 3 districts of the county of Stirling.
2. West Stirlingshire (i) The burghs of Bridge of Allan, Denny and Dunipace and Kilsyth ;
(ii) the Central No. 1, Central No. 2, Western No. 1, Western No. 2 and Western No. 3 districts of the county of Stirling.

(b) *Burgh Constituency.*

1. Stirling and Falkirk The burghs of Stirling, Falkirk and Grange-murghs. mouth.

WEST LoTHIAN.

County Constituency.

1. West Lothian ... The county of West Lothian inclusive of all the burghs situated therein.

PART IV.

NORTHERN IRELAND.

(a) *County Constituencies.*

1. North Antrim ... (i) The boroughs of Ballymena and Larne ;
(ii) the urban districts of Ballycastle, Ballymoney and Portrush ;
(iii) the rural districts of Ballycastle, Ballymena and Ballymoney, and the following district electoral divisions in the rural district of Larne, namely, Ardclinis, Ballycor, Carncastle, Glenarm North, Glenarm South, Glencloy and Kilwaughter.
2. South Antrim ... (i) The urban districts of Ballyclare, Carrickfergus, Lisburn and Whitehead ;
(ii) the rural districts of Antrim, Belfast and Lisburn and the following district electoral divisions in the rural district of Larne, namely, Ballynure, Carrickfergus Rural, Eden, Glynn, Islandmagee North, Islandmagee South, Middle Division, Raloo and Templecorran.

1ST SCH.
—cont.

	<i>Name.</i>	<i>Contents.</i>
3.	Armagh ...	The county of Armagh.
4.	North Down ...	(i) The boroughs of Bangor and Newtownards ; (ii) the urban districts of Donaghadee and Holywood ; (iii) the rural districts of Castlereagh, Hillsborough and Newtownards.
5.	South Down ...	(i) The urban districts of Banbridge, Downpatrick, Dromore, Kilkeel, Newcastle, Newry and Warrenpoint ; (ii) the rural districts of Banbridge, Downpatrick, Kilkeel, Moira and Newry No. 1.
6.	Fermanagh and South Tyrone	(i) The county of Fermanagh ; (ii) the urban district of Dungannon ; (iii) the rural districts of Clogher and Dungannon, and the following district electoral divisions in the rural district of Omagh, namely, Aghafad, Deraghroy, Dromore, Drumharvey, Ecclesville, Fallaghearn, Fintona, Greenan, Killskerry, Lifford, Moorfield, Rahoney, Seskinore, Tattymoyle, and Trillick.
7.	Mid-Ulster ...	(i) The urban districts of Cookstown, Omagh and Strabane ; (ii) the rural districts of Castlederg, Cookstown, Magherafelt and Strabane, and the rural district of Omagh, except the district electoral divisions included in the Fermanagh and South Tyrone constituency.
8.	Londonderry ...	(i) The county of Londonderry, except the rural district of Magherafelt ; (ii) the county borough of Londonderry.
(b) <i>Borough Constituencies.</i>		
1.	Belfast East ...	The Mountpottinger, Dock and Victoria wards of the county borough of Belfast.
2.	Belfast North ...	The Duncairn, Shankill and Clifton wards of the county borough of Belfast.
3.	Belfast South ...	The Cromac, Windsor and Ormeau wards of the county borough of Belfast.
4.	Belfast West ...	The Falls, Smithfield St. Anne's, St. George's, Court and Woodvale wards of the county borough of Belfast.

SECOND SCHEDULE.

Section 3.

PROVISIONS OF THE HOUSE OF COMMONS (REDISTRIBUTION
OF SEATS) ACT, 1944, AS AMENDED.

4.—(1) Each Boundary Commission shall keep under review the representation in the House of Commons of the part of the United Kingdom with which they are concerned, and shall, in accordance with the next following subsection, submit to the Secretary of State reports with respect to the whole of that part of the United Kingdom, either—

- (a) showing the constituencies into which they recommend that it should be divided in order to give effect to the rules set out in the Third Schedule to this Act; or
 - (b) stating that, in the opinion of the Commission, no alteration is required to be made in respect of that part of the United Kingdom in order to give effect to the said rules.
- (2) Reports under the last foregoing subsection shall be submitted by a Commission—
- (a) in the case of the first report, not less than three or more than seven years from the date of the passing of the Representation of the People Act, 1948; and
 - (b) in the case of the second or any subsequent report, not less than three or more than seven years from the date of the submission of their last report under subsection (1) of this section:

Provided that a report stating that no alteration is required to be made in respect of the part of the United Kingdom with which a Commission is concerned shall not be submitted less than six years from the date of the passing of the said Act, or the date of the submission of their last report under subsection (1) of this section, as the case may be.

(3) Any Boundary Commission may also from time to time submit to the Secretary of State reports with respect to the area comprised in any particular constituency or constituencies in the part of the United Kingdom with which they are concerned, showing the constituencies into which they recommend that that area should be divided in order to give effect to the rules set out in the said Third Schedule.

(4) Where a Commission intend to consider making a report under this section, they shall, by notice in writing, inform the Secretary of State accordingly, and a copy of the said notice shall be published—

- (a) in a case where it was given by the Boundary Commission for England or the Boundary Commission for Wales, in the London Gazette; and

2ND SCH.
—cont.

- (b) in a case where it was given by the Boundary Commission for Scotland, in the *Edinburgh Gazette*; and
- (c) in a case where it was given by the Boundary Commission for Northern Ireland, in the *Belfast Gazette*;

and the date on which any such notice is so published with respect to any report shall, for the purposes of the Third Schedule to this Act, be taken to be the enumeration date in relation to that report.

(5) As soon as may be after a Boundary Commission have submitted a report to the Secretary of State under this section, he shall lay the report before Parliament together, except in a case where the report states that no alteration is required to be made in respect of the part of the United Kingdom with which the Commission are concerned, with the draft of an Order in Council for giving effect, whether with or without modifications, to the recommendations contained in the report.

General
provisions as
to reports and
Orders in
Council.

5.—(1) A report of a Boundary Commission under this Act showing the constituencies into which they recommend that any area should be divided shall state, as respects each constituency, the name by which they recommend that it should be known, and whether they recommend that it should be a county constituency or a borough constituency.

(2) The draft of any Order in Council laid before Parliament by the Secretary of State under this Act for giving effect, whether with or without modifications, to the recommendations contained in the report of a Boundary Commission may make provision for any matters which appear to him to be incidental thereto or consequential thereon.

(3) Where any such draft gives effect to any such recommendations with modifications, the Secretary of State shall lay before Parliament together with the draft a statement of the reasons for the modifications.

(4) If any such draft is approved by resolution of each House of Parliament, the Secretary of State shall submit it to His Majesty in Council.

(5) If a motion for the approval of any such draft is rejected by either House of Parliament or withdrawn by leave of the House, the Secretary of State may amend the draft and lay the amended draft before Parliament, and, if the draft as so amended is approved by resolution of each House of Parliament, the Secretary of State shall submit it to His Majesty in Council.

(6) Where the draft of an Order in Council is submitted to His Majesty in Council under this section, His Majesty in Council may make an Order in terms of the draft which shall come into force on such date as may be specified therein and shall have effect notwithstanding anything in any enactment:

Provided that the coming into force of any such Order shall not affect any parliamentary election until a proclamation is issued by His Majesty summoning a new Parliament, or affect the constitution of the House of Commons until the dissolution of the Parliament then in being.

(7) The validity of any Order in Council purporting to be made under this Act and reciting that a draft thereof has been approved by resolution of each House of Parliament shall not be called in question in any legal proceedings whatsoever.

2ND SCH.
—cont.

7. In this Act the expression “constituency” means an area having separate representation in the House of Commons.

(THIRD SCHEDULE.)

Rules for Distribution of Seats.

1. The number of constituencies in the several parts of the United Kingdom set out in the first column of the following table shall be as stated respectively in the second column of that table—

<i>Part of the United Kingdom</i>	<i>No. of Constituencies.</i>
Great Britain	Not substantially greater or less than 613.
Scotland	Not less than 71.
Wales	Not less than 35.
Northern Ireland	12.

2.—(2) Every constituency shall return a single member.

4A. There shall continue to be a constituency which shall include the whole of the City of London and the name of which shall refer to the City of London.

5.—(1) So far as is practicable having regard to the foregoing rules—

(a) in England and Wales,—

(i) no county or any part thereof shall be included in a constituency which includes the whole or part of any other county or the whole or part of a county borough or metropolitan borough;

(ii) no county borough or any part thereof shall be included in a constituency which includes the whole or part of any other county borough or the whole or part of a metropolitan borough;

(iii) no metropolitan borough or any part thereof shall be included in a constituency which includes the whole or part of any other metropolitan borough;

(iv) no county district shall be included partly in one constituency and partly in another;

(b) in Scotland, no burgh other than a county of a city shall be included partly in one constituency and partly in another;

(c) in Northern Ireland, no county district shall be included partly in one constituency and partly in another.

2ND SCH.
—cont.

(2) In paragraph (1) of this rule the following expressions have the following meanings, that is to say:—

“ county ” means an administrative county other than the county of London;

“ county borough ” has the same meaning as in the Local Government Act, 1933;

“ county district ” has, in sub-paragraph (a), the same meaning as in the Local Government Act, 1933, and, in sub-paragraph (c), the same meaning as in the Local Government (Ireland) Act, 1898.

5A.—(1) The electorate of any constituency shall be as near the electoral quota as is practicable having regard to the foregoing rules; and a Boundary Commission may depart from the strict application of the last foregoing rule if it appears to them that a departure is desirable to avoid an excessive disparity between the electorate of any constituency and the electoral quota, or between the electorate thereof and that of neighbouring constituencies in the part of the United Kingdom with which they are concerned.

6. A Boundary Commission may depart from the strict application of the last two foregoing rules if special geographical considerations, including in particular the size, shape and accessibility of a constituency, appear to them to render a departure desirable.

8.—(1) For the purpose of these rules—

(a) the expression “ electoral quota ” means—

(i) in the application of these rules to a constituency in Great Britain, a number obtained by dividing the electorate for Great Britain by the number of constituencies in Great Britain existing on the enumeration date;

(ii) in the application of these rules to a constituency in Northern Ireland, a number obtained by dividing the electorate for Northern Ireland by the number of constituencies in Northern Ireland existing on the enumeration date;

(b) the expression “ electorate ” means—

(i) in relation to a constituency, the number of persons whose names appear on the parliamentary register of electors in force on the enumeration date under the Representation of the People Acts for the constituency;

(ii) in relation to Great Britain or Northern Ireland, the aggregate electorate as hereinbefore defined of all the constituencies therein.

THIRD SCHEDULE.

Sections 12, 15.

PROCEEDINGS AT PARLIAMENTARY ELECTIONS.

PART I.

TIMETABLE.

<i>Proceeding.</i>	<i>Time in case of general election.</i>	<i>Time in case of bye-election.</i>
Issue of writ	... As soon as practicable after the issue of the proclamation summoning the new Parliament.	As soon as practicable after the issue of the warrant for the writ.
Publication of notice of election	Not later than four in the afternoon on the second day after that on which the writ is received.	The same as in the case of a general election.
Delivery of nomination papers	Between the hours of ten in the morning and three in the afternoon (or on a Saturday between those of ten in the morning and noon) on any day after the date of publication of the notice of election, but not later than the eighth day after the date of the proclamation summoning the new Parliament.	The same as in the case of a general election, except that the last day shall be a day fixed by the returning officer and shall be— (a) in a county constituency, not earlier than the fourth day after the date of publication of the notice of election, nor later than the ninth day after that on which the writ is received ; and (b) in a borough constituency, not earlier than the third day after the date of publication of the notice of election nor later than the seventh day after that on which the writ is received.
The making of objections to nomination papers	During the hours allowed for delivery of nomination papers on the last day for the delivery thereof and the hour following and, if the last day is a Saturday, between the hours of one and three in the afternoon on the day before : Provided that no objection may be	The same as in the case of a general election.

3RD SCH.
—cont.

<i>Proceeding.</i>	<i>Time in case of general election.</i>	<i>Time in case of bye-election.</i>
The making of objections to nomination papers— <i>cont.</i>	made in the afternoon of the said last day (or if it is a Saturday at any time on that day) except to a nomination paper delivered within twenty-four hours of the last time for the delivery thereof, and in the case of a nomination paper so delivered no objection may be so made to the sufficiency or nature of the particulars of the candidate unless made at or immediately after the time of the delivery of the nomination paper.	
Publication of statement of persons nominated	At the close of the time for making objections to nomination papers or as soon thereafter as any objections are disposed of.	The same as in the case of a general election.
Polling	Between the hours of seven in the morning and nine in the evening on the ninth day after the last day for delivery of nomination papers.	Between the hours of seven in the morning and nine in the evening on the day fixed by the returning officer, which shall not be earlier than the seventh nor later than the ninth day after the last day for delivery of nomination papers.

PART II.

PROCEDURE UP TO THE POLL.

Notice of Election.

1. The returning officer shall publish notice of the election stating—
- (a) the place and times at which nomination papers are to be delivered; and
 - (b) the date of the poll in the event of a contest;
- and the notice shall state that forms of nomination paper may be obtained at the place and times aforesaid.

Nomination of Candidates.

- 2.—(1) Each candidate shall be nominated by a separate nomination paper delivered by the candidate himself, or his proposer or seconder, to the returning officer at the place fixed for the purpose.

(2) The nomination paper shall state the full names, place of residence and description of the candidate and the surname shall be placed first in the list of his names.

(3) The description shall not refer to the candidate's political activities, and need not refer to his rank, profession or calling so long as, with the other particulars of the candidate, it is sufficient to identify him.

(4) If the description is unduly long, the returning officer after consultation (if possible) with the candidate or his election agent, proposer or seconder, may shorten it or substitute another.

3.—(1) The nomination paper shall be subscribed by two electors as proposer and seconder, and by eight other electors as assenting to the nomination.

(2) Where a nomination paper bears the signatures of more than the required number of persons as proposing, seconding or assenting to the nomination of a candidate, the signature or signatures (up to the required number) appearing first on the paper in each category shall be taken into account to the exclusion of any others in that category.

(3) The nomination paper shall give the electoral number of each person subscribing it.

(4) The returning officer shall supply any elector with a form of nomination paper at the place and during the time for delivery of nomination papers and shall at the request of any elector prepare a nomination paper for signature; but it shall not be necessary for a nomination to be on a form supplied by the returning officer.

4. No person shall subscribe more than one nomination paper at the same election and, if he does, his signature shall be inoperative on any paper other than the one first delivered:

Provided that a person shall not be prevented from subscribing a nomination paper by reason only of his having subscribed that of a candidate who has died or withdrawn before delivery of the first mentioned paper.

Consent to Nomination.

5. A person shall not be validly nominated unless his consent to nomination, given in writing on or within one month before the day fixed as the last day for the delivery of nomination papers, and attested by one witness, is delivered at the place and within the time for the delivery of nomination papers:

Provided that if the returning officer is satisfied that owing to the absence of a person from the United Kingdom it has not been reasonably practicable for his consent in writing to be given as aforesaid, a telegram consenting to his nomination and purporting to have been sent by him shall be deemed, for the purpose of this paragraph, to be consent in writing given by him on the day on which it purports to have been sent, and attestation of his consent shall not be required.

Deposit.

6.—(1) A person shall not be validly nominated unless the sum of one hundred and fifty pounds is deposited by him or on his behalf with the returning officer at the place and during the time for delivery of nomination papers.

3RD SCH.
—cont.

(2) The deposit may be made either by the deposit of any legal tender, or by means of a banker's draft, or with the consent of the returning officer in any other manner :

Provided that the returning officer may refuse to accept a deposit sought to be made by means of a banker's draft if he does not know that the drawer carries on business as a banker in the United Kingdom.

Place for Delivery of Nomination Papers.

7.—(1) The returning officer shall fix the place at which nomination papers are to be delivered to him, and shall attend there during the time for the delivery thereof and for the making of objections thereto.

(2) The place shall be in the constituency or in the registration area (if any) which includes the constituency or, unless the constituency is a borough constituency, in a borough adjoining the constituency or registration area.

Right to Attend Nomination.

8.—(1) Except for the purpose of delivering a nomination paper or of assisting the returning officer, no person shall be entitled to attend the proceedings during the time for delivery of nomination papers or making objections thereto unless he is a person standing nominated as a candidate or is the election agent, proposer or seconder of such a person :

Provided that where a candidate acts as his own election agent, he may name one other person who shall be entitled to attend in place of his election agent.

(2) Where a person stands nominated by more than one nomination paper, only the persons subscribing, as proposer and seconder, such one of them as he may select or, in default of any such selection, that one of them which is first delivered, shall be entitled to attend as his proposer and seconder.

(3) The right to attend conferred by this paragraph shall include the right to inspect, and to object to the validity of, any nomination paper.

Decisions as to the Validity of Nomination Papers.

9.—(1) Where a nomination paper and the candidate's consent thereto is delivered and a deposit is made in accordance with this Act, the candidate shall be deemed to stand nominated unless and until the returning officer decides that the nomination paper is invalid, or proof is given to the satisfaction of the returning officer of the candidate's death, or the candidate withdraws.

(2) The returning officer shall be entitled to hold a nomination paper invalid only on one of the following grounds, that is to say,—

(a) that the particulars of the candidate or the persons subscribing the paper are not as required by law ; and

(b) that the paper is not subscribed as so required.

(3) The returning officer shall give his decision on any objection to a nomination paper as soon as practicable after it is made.

(4) Where he decides that a nomination paper is invalid, he shall endorse and sign on the paper the fact and the reasons for his decision.

(5) The decision of the returning officer that a nomination paper is valid shall be final and shall not be questioned in any proceeding whatsoever.

3RD SCH.
—cont.

(6) Subject to the last foregoing sub-paragraph, nothing in this paragraph shall prevent the validity of a nomination being questioned on a petition questioning the election or return.

Withdrawal of Candidates.

10.—(1) A candidate may withdraw his candidature by notice of withdrawal signed by him and attested by one witness and delivered to the returning officer at the place and during the time for delivery of nomination papers.

(2) In the case of a candidate who is outside the United Kingdom, a notice of withdrawal signed by his proposer and accompanied by a written declaration also so signed of the candidate's absence from the United Kingdom shall be of the same effect as a notice of withdrawal signed by the candidate :

Provided that where the candidate stands nominated by more than one nomination paper a notice of withdrawal under this sub-paragraph shall be effective if, but only if,—

- (a) it and the accompanying declaration are signed by all the proposers except any who is, and is stated in the said declaration to be, outside the United Kingdom ; or
- (b) it is accompanied, in addition to the said declaration, by a written statement signed by the candidate that the proposer giving the notice is authorised to do so on the candidate's behalf during his absence from the United Kingdom.

Publication of Nominations.

11.—(1) The returning officer shall prepare and publish a statement showing the persons who have been and stand nominated and any other persons who have been nominated, with the reason why they no longer stand nominated.

(2) The statement shall show the names, addresses and descriptions of the persons nominated as given in their nomination papers, together with the names of the persons subscribing those papers.

(3) The statement shall show the persons standing nominated arranged alphabetically in the order of their surnames, and, if there are two or more of them with the same surname, of their other names.

(4) In the case of a person nominated by more than one nomination paper, the returning officer shall take the particulars required by the foregoing sub-paragraphs from such one of the papers as the candidate or the returning officer in default of the candidate may select, but if the election is contested a candidate standing nominated may require the returning officer to include in the statement the names of the persons subscribing a second and third nomination paper.

Declaration of Result of Uncontested Election.

12. If the statement of persons nominated shows only one person standing nominated, the statement shall also declare that person elected, and the returning officer shall forthwith return his name to the Clerk of the Crown in Chancery.

3RD SCH.
—cont.*Proceedings preliminary to Poll if Election Contested.*

13. If the statement of persons nominated shows more than one person standing nominated, then—

- (a) a poll shall be taken in accordance with the Ballot Act, 1872 ;
- (b) the statement shall include a notice of the poll, stating the day on which and hours during which the poll will be taken ;
- (c) the persons shown in the statement as standing nominated, and no others, shall be entitled to have their names inserted in the ballot papers ;
- (d) the order of the names in the statement and the particulars therein of the candidates shall be the order of the names and the particulars of the candidates inserted in the ballot papers ;
- (e) the statement may be combined with the notice as to polling stations and mode of voting which is required by rule 19 of the First Schedule to the Ballot Act, 1872.

14.—(1) If a poll is to be taken in a county constituency, the returning officer shall, on publication of the statement of persons nominated and notice of the poll, deliver to the postmaster of the principal post office where the place for the delivery of nomination papers is situated a paper signed by himself, giving the names of the candidates standing nominated, as the names will appear in the ballot paper, and the day and hours of the poll.

(2) The postmaster shall forward the information contained in the paper by telegraph, free of charge, to all postal telegraph offices situated in the constituency, and the information shall be published forthwith at each office in the manner in which post office notices are usually published.

Absent voters list, list of proxies, etc.

15.—(1) If a poll is to be taken, the registration officer shall as soon as practicable prepare the following special lists for the purposes of the election, namely,—

- (a) a list (in this Act referred to as “ the absent voters list ”) giving the name and number on the register of every person entitled to vote at the election as an absent voter ;
- (b) a list (in this Act referred to as “ the list of proxies ”) giving—
 - (i) the names and numbers on the register of the electors for whom proxies have been appointed, (omitting any of those electors who are registered as service voters and entitled to vote by post) ; and
 - (ii) the names and addresses of the persons appointed ;
- (c) a list of any persons entitled to vote by post as proxy at the election.

(2) The duty of the returning officer under Rule 20 of the First Schedule to the Ballot Act, 1872, to provide each polling station with copies of the register of electors or such part thereof as contains the names of the electors allotted to vote at the station shall include a duty to provide the corresponding parts of any special lists prepared for the election.

Issue of Official Poll Cards.

3RD SCH.
—cont.

16.—(1) If a poll is to be taken, the returning officer shall as soon as practicable send to electors and their proxies an official poll card :

Provided that an official poll card need not be sent to any person as an elector if he is placed on the absent voters list for the election, or to any person as a proxy if his application to vote as such by post is allowed for the election.

(2) An elector's official poll card shall be sent or delivered to his qualifying address, a proxy's to his address as shown in the list of proxies.

(3) The official poll card shall be in the prescribed form and shall set out—

- (a) the name of the constituency ;
- (b) the elector's name, qualifying address and number on the register ;
- (c) the date and hours of the poll and the situation of the elector's polling station.

Issue and receipt of postal ballot papers.

17.—(1) If a poll is to be taken, the returning officer shall as soon as practicable send to those entitled to vote by post, at the addresses furnished by them for the purpose, a ballot paper and a declaration of identity in the prescribed form, together with an envelope for their return.

(2) Before the returning officer proceeds to count the votes he shall count such of the said ballot papers as have been duly returned and record the number counted, and the papers counted under this provision shall be included with the ballot papers of those voting in person when they are mixed before the count as required by Rule 34 of the First Schedule to the Ballot Act, 1872.

(3) A ballot paper sent to a person for the purpose of voting by post shall not be deemed to be duly returned, unless it is returned in the proper envelope so as to reach the returning officer before the close of the poll and is accompanied by the declaration of identity duly signed and authenticated.

Supplemental.

18. In the foregoing provisions of this Part of this Schedule—

the expression "elector" means a person who is registered as a parliamentary elector in the constituency in the register to be used at the election or who, pending the publication of that register, appears from the electors lists therefor as corrected by the registration officer to be entitled to be so registered ;

the expression "electoral number" means a person's number in the said register or, pending the publication of the register, his number (if any) in the electors lists therefor.

PART III.

THE POLL.

Official mark.

1.—(1) The official mark stamped on a ballot paper shall be either embossed or perforated.

(2) The form of directions for the guidance of voters which, under the Second Schedule to the Ballot Act, 1872, are to be placarded outside polling stations and in the compartments of polling stations shall include a direction in the following terms :—

“ The voter should see that the ballot paper, before it is handed to him is stamped with the official mark ”.

Form of ballot paper.

2.—(1) So far as practicable, the following arrangements shall be observed in the printing of the ballot papers :—

(a) no words shall be printed on the face except the particulars of the candidates ;

(b) no rule shall be printed on the face except the horizontal rules separating the particulars of the candidates from one another and the vertical rules separating those particulars from the numbers on the left hand side and the spaces on the right where the vote is to be marked ;

(c) the whole space between the top and bottom of the paper shall be equally divided between the candidates by the rules separating their particulars.

(2) The surname of each candidate shall in all cases be printed by itself in large capitals, and his full particulars shall be set out below it and shall be printed in ordinary type except that small capitals shall be used—

(a) if his surname is the same as another candidate's, for his other names ; and

(b) if his other names are also the same as the other candidate's, either for his description or for his residence unless each of them is the same as that of another candidate with the same surname and other names.

Right to attend at polling station.

3. The persons entitled to be present in the polling station under Rule 21 of the First Schedule to the Ballot Act, 1872, shall include the election agents of the candidates, but a candidate attending at a polling station and an election agent attending by virtue of this paragraph shall make the same declaration of secrecy in the presence of a justice of the peace or the returning officer as a candidate's polling agent.

Cases in which ballot paper may be refused.

4.—(1) No person shall be admitted to vote in person elsewhere than at his own polling station under the provisions of this Act relating to constables and persons employed by the returning officer, except on production and surrender of a certificate as to his employment, which shall be in the prescribed form and signed by the prescribed officer of police or by the returning officer, as the case may be.

(2) Any certificate surrendered under this paragraph shall forthwith be cancelled and thereafter dealt with in the same way as the counter-foils to ballot papers are directed by law to be dealt with.

5.—(1) The presiding officer may, and if required by a candidate or his election or polling agent shall, put to any person applying for a ballot paper at the time of his application, but not afterwards, the following questions, or either of them, that is to say—

(a) in the case of a person applying as an elector—

(i) are you the person registered in the register of parliamentary electors for this election as follows [*read the whole entry from the register*] ?

(ii) have you already voted, here or elsewhere, at this bye-election [general election], otherwise than as proxy for some other person ?

(b) in the case of a person applying as proxy—

(i) are you the person whose name appears as A.B. in the list of proxies for this election as entitled to vote as proxy on behalf of C.D. ?

(ii) have you already voted here or elsewhere at this bye-election [general election] as proxy on behalf of C.D. ?

(2) In the case of a person applying as proxy, the presiding officer may, and if required as aforesaid shall, put the following additional question :—

“Are you the husband [wife], parent, grandparent, brother [sister], child or grandchild of C.D. ? ”

and if that question is not answered in the affirmative the following question :—

“Have you at this election already voted in this constituency on behalf of two persons of whom you are not the husband [wife], parent, grandparent, brother [sister], child or grandchild ? ”

(3) A ballot paper shall not be delivered to any person required to answer the above questions or any of them unless he has answered the questions or question satisfactorily.

(4) Save as by this paragraph authorised, no inquiry shall be permitted as to the right of any person to vote, and no person applying for a ballot paper shall be required to take or make any oath or affirmation.

Challenge of elector or proxy at polling station.

6.—(1) Sections eighty-six to ninety of the Parliamentary Voters Registration Act, 1843, and sections ninety-three to ninety-seven of the Representation of the People (Ireland) Act, 1850 (which make provision for the challenge of electors suspected of personation and matters connected therewith), shall cease to have effect.

(2) If at the time a person applies for a ballot paper for the purpose of voting in person (whether as elector or as proxy), or after he has applied for a ballot paper for that purpose and before he has left the polling station, a candidate or his election or polling agent declares to the presiding officer that he has reasonable cause to believe that the applicant has committed an offence of personation, and undertakes to substantiate the charge in a court of law, the presiding officer may order a police officer to arrest the applicant, and the order of the presiding officer shall be sufficient authority for the police officer so to do.

3RD SCH.
—*cont.*

(3) A person against whom a declaration is made under this paragraph shall not, by reason thereof, be prevented from voting.

(4) A person arrested under the provisions of this paragraph shall be dealt with as a person taken into custody by a police officer for an offence without a warrant.

Abolition of declaration of inability to read.

7. So much of Rule 26 of the First Schedule to the Ballot Act, 1872, as requires a person who is unable to read to make a declaration of his inability before a ballot paper can be marked in the manner directed by him shall cease to have effect, and in that rule for the words "who makes such a declaration as hereinafter mentioned that he is unable to read" there shall be substituted the words "who declares orally that he is unable to read".

Sealed packets of register and counterfoils.

8. Notwithstanding anything in the Ballot Act, 1872, the marked copies of the register of electors and the counterfoils of the used ballot papers shall be sealed up in separate packets after the close of the poll, and not in the same packet.

Adaptations, in relation to voting by proxy, of Ballot Act, 1872.

9.—(1) Part I of the Ballot Act, 1872, and Part I of the First Schedule and the Second Schedule to that Act shall be modified in accordance with the following provisions of this paragraph.

(2) The word "voter", except in the phrase "register of voters", shall mean a person voting whether as an elector or as proxy for an elector, and the word "vote" (whether noun or verb) shall be construed accordingly:

Provided that, in rules 15, 16, 20, 41 and 43 of the First Schedule and in the phrase "entitled to vote" where used in rule 26A thereof to describe the qualification of the companion of a blind voter, the word "vote" shall refer only to voting as an elector, but shall include voting otherwise than in person, and accordingly in the form of declaration to be made by the companion of a blind voter after the words "entitled to vote" there shall be inserted the words "as an elector".

(3) In the said rule 20 for the word "voters" where it last occurs there shall be substituted the word "electors" and in section nine and in rules 19, 21 and 25 of the First Schedule and in the first place where the word occurs in rule 24 thereof for the word "elector" there shall be substituted the word "voter".

(4) In section four after the word "elector" there shall be inserted the words "or proxy for an elector", and when that section is read as required by the said Second Schedule to a person making a declaration of secrecy it shall be read with the words hereby inserted.

(5) Any reference to a voter's number on the register shall, in relation to a person voting as proxy for an elector, be taken as a reference to the elector's number on the register.

(6) Rule 24 of the First Schedule shall, in the case of a person applying for a ballot paper as proxy, be taken to require a mark to be placed against his name in the list of proxies as well as against the number of the elector in the register, and the marked copies of the list of proxies shall after the close of the poll be sealed up in the same packet as the marked copies of the register.

(7) In rule 27 of the First Schedule for the words " If a person, representing himself to be a particular elector named on the register, applies for a ballot paper after another person has voted as such elector " there shall be substituted the following words :—

" If a person, representing himself to be—

- (a) a particular elector named on the register and not named in the absent voters list ; or
- (b) a particular person named in the list of proxies as proxy for an elector and not named in the list of persons entitled to vote by post as proxy ;

applies for a ballot paper after another person has voted in person either as the elector or as his proxy ".

PART IV.

THE COUNT.

Right to attend.

1.—(1) A candidate's wife or husband and a candidate's election agent may be present at the counting of the votes, notwithstanding anything in rule 33 of the First Schedule to the Ballot Act, 1872.

(2) The following persons attending the counting of the votes, that is to say—

- (a) any candidate ;
- (b) any person attending by virtue of sub-paragraph (1) of this paragraph ;
- (c) any person permitted by the returning officer to attend though not entitled to do so ;

shall make the same declaration of secrecy in the presence of a justice of the peace or of the returning officer as a candidate's counting agent :

Provided that a declaration required by this sub-paragraph need not be made before the opening of the poll, but shall be made before the person in question is permitted to attend the counting.

Appointment of and facilities for counting agents.

2.—(1) The counting agents to attend on behalf of a candidate at the counting of the votes may be appointed, and notice of the appointment given to the returning officer, by the candidate's election agent, instead of by the candidate.

(2) Notwithstanding anything in the First Schedule to the Ballot Act, 1872, the returning officer may limit the number of counting agents who may attend on behalf of the candidates, so, however, that the number of those who may attend shall be the same in the case of each candidate and the number allowed to a candidate shall not (except in special circumstances) be less than the number obtained by dividing the number of clerks employed on the counting by the number of candidates.

3RD SCH.
—cont.

(3) The counting agents attending on behalf of the candidates shall be given by the returning officer all such reasonable facilities for overseeing the proceedings, and all such information with respect thereto, as he can give them consistently with the orderly conduct of the proceedings and the discharge of his duties in connection therewith.

(4) In particular, where the votes are counted by sorting the ballot papers according to the candidate for whom the vote is given and then counting the number of ballot papers for each candidate, the counting agents shall be entitled to satisfy themselves that the ballot papers are sorted rightly.

Adjournments.

3.—(1) So far as practicable, the counting of the votes shall (unless otherwise agreed) proceed continuously by night as by day, allowing only time for refreshment, and accordingly in rule 35 of the First Schedule to the Ballot Act, 1872 (which excludes the hours between seven o'clock at night and nine o'clock on the succeeding morning, except so far as the returning officer and the candidates' agents otherwise agree), for the words "except so far as he and the agents otherwise agree" there shall be substituted the words "in so far as he and the agents agree."

(2) For the purposes of the said rule 35 the agreement of a candidate or his election agent shall be as effective as the agreement of his counting agents.

Re-counts.

4.—(1) A candidate or his election agent may, if present when the counting or any re-count of the votes is completed, require the returning officer to have the votes re-counted or again re-counted but the returning officer may refuse to do so if in his opinion the request is unreasonable.

(2) No step shall be taken on the completion of the counting or any re-count of the votes until the candidates and election agents present at the completion thereof have been given a reasonable opportunity to exercise the right conferred by this paragraph.

Rejection of ballot papers.

5. A ballot paper on which the vote is marked—

- (a) elsewhere than in the proper place ; or
- (b) otherwise than by means of a cross ; or
- (c) by more than one mark ;

shall not by reason thereof be rejected if an intention that the vote shall be for one or other of the candidates clearly appears, and the way the paper is marked does not of itself identify the voter and it is not shown that he can be identified thereby.

PART V.

SPECIAL CASES, AND COMPUTATION OF TIME.

Telegraphic information of writ.

1.—(1) Official telegraphic information of the writ having been issued for a parliamentary election may be given in such cases and by such persons as may be directed by His Majesty in Council.

(2) Any steps for holding an election which may be taken on or after the receipt of the writ may be taken on or after the receipt of an official telegraphic intimation of the writ having been issued.

Death of candidate.

3RD SCH.
—cont.

2.—(1) If a poll is to be taken in a constituency, and after publication of the statement of persons nominated and before the poll is commenced proof is given to the satisfaction of the returning officer of the death of one of the persons shown as standing nominated, the returning officer shall countermand notice of the poll, and all proceedings with reference to the election shall be commenced afresh in all respects as if the writ had been received on the day on which proof was given to the returning officer of the death :

Provided that no fresh nomination shall be necessary in the case of a person shown in the statement as standing nominated.

(2) Where by reason of the death of a candidate proceedings at an election are commenced afresh under this paragraph, then in the case of a general election, as in the case of a bye-election, the time for delivery of nomination papers and the time for polling shall be determined in accordance with the third column in Part I of this Schedule (with the modification required by the foregoing sub-paragraph of any reference to the date on which the writ is received).

Adjournment in case of riot.

3. Where the proceedings for or in connection with nomination are on any day interrupted or obstructed by riot or open violence, the proceedings shall be abandoned for that day, and if that day is the last day for the delivery of nomination papers, the proceedings shall be continued on the next day as if that were the last day for the delivery thereof, and that day shall be treated for the purposes of this Schedule as being the said last day (subject however to any further application of this paragraph in the event of interruption or obstruction on that day) :

Provided that where proceedings are abandoned by virtue of this paragraph—

- (a) nothing may be done after they are continued, if the time for doing it had passed at the time of the abandonment, nor shall anything done before the abandonment be invalidated by reason thereof ;
- (b) subject to the foregoing sub-paragraph, if the day on which the proceedings are continued is a Saturday and is (or is to be treated as) the said last day, the proviso to the entry in Part I of this Schedule relating to the making of objections shall not apply.

4.—(1) Where the proceedings at any polling station are interrupted or obstructed by riot or open violence, the presiding officer shall adjourn the proceedings till the following day and, if he is not the returning officer, shall forthwith give notice to the returning officer.

(2) Where the poll is adjourned at any polling station,—

- (a) the hours of polling on the day to which it is adjourned shall be those laid down by Part I of this Schedule for the original day ; and
- (b) references in any enactment to the close of the poll shall be construed accordingly.

3RD SCH.
—cont.

Computation of time.

5.—(1) In computing any period of time for the purposes of this Schedule or of the First Schedule to the Ballot Act, 1872, a Sunday, Christmas Day, Good Friday, bank holiday or day appointed for public thanksgiving or mourning shall be disregarded, and any such day shall not be treated as a day for the purpose of any proceedings mentioned in Part I or II of this Schedule nor shall the returning officer be obliged to proceed with the counting of the votes thereon.

(2) In this paragraph the expression " bank holiday " means—

- (a) in relation to a general election, a day which is a bank holiday under the Bank Holidays Act, 1871, in any part of the United Kingdom; and
- (b) in relation to a bye-election, a day which is a bank holiday under the said Act in that part of the United Kingdom in which the constituency in question is situated:

Provided that at a general election paragraph (b) and not paragraph (a) of this sub-paragraph shall apply—

- (i) in relation to any proceedings commenced afresh by reason of the death of a candidate; and
- (ii) in relation to any proceedings extending, by reason of riot or open violence, beyond the time laid down by Part I of this Schedule.

Section 28.

FOURTH SCHEDULE.

AMENDMENTS OF LOCAL ELECTIONS RULES.

PART I.

ADAPTATIONS TO VOTING BY POST AND BY PROXY.

Absent voters list, list of proxies, etc.

1.—(1) At every contested election, the registration officer shall as soon as practicable prepare the following special lists for the purposes of the election, namely,—

- (a) a list (in this Act referred to as " the absent voters list ") giving the name and number on the register of every person entitled to vote at the election as an absent voter;
- (b) a list (in this Act referred to as " the list of proxies ") giving—
 - (i) the names and numbers on the register of the electors for whom proxies have been appointed; and
 - (ii) the names and addresses of the persons appointed;
- (c) a list of any persons entitled to vote by post as proxy at the election.

(2) The duty of the returning officer or mayor under paragraph 7 of Part III of the local elections rules to provide each polling station with copies of the register of electors or such part thereof as contains the names of the electors allotted to vote at the station shall include a duty to provide the corresponding parts of any special lists prepared for the election.

Issue and receipt of ballot papers for voting by post.

4TH SCH.
—cont.

2.—(1) At every contested election, the returning officer or mayor shall as soon as practicable send to those entitled to vote by post, at the addresses furnished by them for the purpose, a ballot paper and a declaration of identity in the prescribed form, together with an envelope for their return.

(2) Before the returning officer proceeds to count the votes he shall count such of the said ballot papers as have been duly returned and record the number counted, and the papers counted under this provision shall be included with the ballot papers of those voting in person when they are mixed before the count as required by paragraph 31 of Part III of the local elections rules.

(3) A ballot paper sent to a person for the purpose of voting by post shall not be deemed to be duly returned, unless it is returned in the proper envelope so as to reach the returning officer before the close of the poll and is accompanied by the declaration of identity duly signed and authenticated.

(4) Nothing in sub-paragraph (1) of the foregoing paragraph or in this paragraph shall require or authorise any steps to be taken on a Sunday, Christmas Day, Good Friday, Bank Holiday or day appointed for public thanksgiving or mourning, or in Scotland on a public holiday.

Adaptations in relation to persons voting as proxy.

3.—(1) Subject to the following provisions of this paragraph, in Parts III and IV of the local elections rules—

- (a) the word “voter” shall be substituted for the word “elector”, wherever it occurs except in the phrases “register of electors” and “register of local government electors”; and
 - (b) the word “voter” shall mean a person voting whether as an elector or as proxy for an elector, and the word “vote” (whether noun or verb) shall be construed accordingly.
- (2) Notwithstanding anything in the foregoing sub-paragraph—
- (a) in sub-paragraph (a) of paragraph 7 of the said Part III and in the last place in sub-paragraph (e) of that paragraph, the word “electors” shall remain and shall be taken as meaning electors entitled to vote in person or by proxy, and the word “vote” shall be construed accordingly in those sub-paragraphs;
 - (b) in sub-paragraphs (a) to (d) of paragraph 18 of the said Part III the word “elector” shall remain but a mark shall be placed against the name of the proxy in the list of proxies as well as against the number of the elector in the register, and the marked copies of the list of proxies shall after the close of the poll be sealed up in the same packet as the marked copies of the register;
 - (c) in any other provision a reference to a voter’s number on the register of electors shall, in relation to a person voting as proxy for an elector, be taken as a reference to the elector’s number on the register;

4TH SCH.
—cont.

- (d) in sub-paragraph (3) of paragraph 21 of the said Part III, and in the said Part IV in the form of declaration to be made by the companion of a blind voter after the words "entitled to vote" there shall be inserted the words "as an elector";
- (e) in paragraph 23 of the said Part III, for the words "If a person, representing himself to be a particular elector named on the register, applies for a ballot paper after another person has voted as such elector," there shall be substituted the following words—

"If a person, representing himself to be—

(a) a particular elector named on the register and not named in the absent voters list; or

(b) a particular person named in the list of proxies as proxy for an elector and not named in the list of persons entitled to vote by post as proxy;

applies for a ballot paper after another person has voted in person either as the elector or as his proxy";

- (f) in sub-paragraph (4) of paragraph 41 of the said Part III, the word "elector" shall remain, and the word "vote" shall refer only to voting as an elector but shall include voting otherwise than in person;

- (g) in paragraph 54 of the said Part III, the word "elector" shall remain in the first place where it is there used and the words "or proxy for an elector" shall be inserted after it in that place.

(3) In the said Part IV in the form of declaration of secrecy for the words "read by me" there shall be substituted the words "read to me", and when the provisions referred to in that form are read to a person making a declaration of secrecy they shall be read as amended by this paragraph.

4.—(1) In paragraph 16 of the said Part III, at the end of the second of the questions which may be asked of a person applying for a ballot paper, there shall in the case of a person applying as an elector be added the words "otherwise than as proxy for some other person".

(2) In the case of a person applying for a ballot paper as proxy there shall be substituted for the questions set out in the said paragraph 16 the following questions, that is to say—

(a) are you the person whose name appears as A.B. in the list of proxies for this election as entitled to vote as proxy on behalf of C.D.?

(b) have you already voted here or elsewhere at the present election as proxy on behalf of C.D.?

and any reference to the questions set out in that paragraph shall be construed accordingly.

Infringement of secrecy.

5. Every person attending the proceedings in connection with the issue or the receipt of ballot papers for persons voting by post at local

government elections shall maintain and aid in maintaining the secrecy of the voting and shall not—

4TH SCH.
—cont.

- (a) except for some purpose authorised by law communicate, before the poll is closed, to any person any information obtained at those proceedings as to the official mark; nor
- (b) except for some purpose authorised by law, communicate to any person at any time any information obtained at those proceedings as to the number on the back of the ballot paper sent to any person; nor
- (c) except for some purpose authorised by law, attempt to ascertain at the proceedings in connection with the receipt of the ballot papers the number on the back of any ballot paper; nor
- (d) attempt to ascertain at the proceedings in connection with the receipt of the ballot papers the candidate for whom any vote is given in any particular ballot paper or communicate any information with respect thereto obtained at those proceedings;

and any person who acts in contravention of this paragraph shall be liable on summary conviction to imprisonment for a term not exceeding six months.

Supplementary

6. Where the expression "returning officer or mayor," is used in this Schedule, the reference to the mayor shall apply, and shall only apply, in the case of an election of borough councillors under the Local Government Act, 1933, and in the case of any such election paragraph 10 of Part I of the Second Schedule to that Act (which provides for the case where there is no mayor or the mayor is unable to act) shall apply for the purpose of this Schedule as it applies for the purpose of that Schedule.

PART II.

AMENDMENTS TO SECURE CONFORMITY WITH RULES AS TO
PARLIAMENTARY ELECTIONS.

Nomination and matters connected therewith.

1.—(1) In the list of a candidate's names in a nomination paper, his surname shall be placed first.

(2) The description of a candidate in his nomination paper shall not refer to his political activities, and need not refer to his rank, profession or calling so long as, with the other particulars of the candidate, it is sufficient to identify him.

(3) If the description is unduly long, the returning officer or mayor after consultation (if possible) with the candidate or his election agent, proposer or seconder, may shorten it or substitute another.

(4) Where a nomination paper bears the signatures of more than the required number of persons as proposing, seconding or assenting to the nomination of a candidate, the signature or signatures (up to the required number) appearing first on the paper in each category shall be taken into account to the exclusion of any others in that category.

4TH SCH.
—cont.

(5) In determining whether a person's signature on a nomination paper is inoperative on the ground that he has signed more papers than is allowed, a paper previously signed by him shall be disregarded if the candidate thereby nominated has died or withdrawn before delivery of the first mentioned paper.

(6) The returning officer or mayor shall not in England or Wales be entitled to hold a nomination paper invalid except on one of the following grounds, that is to say—

(a) that the particulars of the candidate or the persons subscribing the paper are not as required by law; and

(b) that the paper is not subscribed as so required;

or, where a nomination paper and the candidate's consent is delivered in accordance with paragraphs 3 and 4 of Part I of the local elections rules, be entitled to hold the nomination invalid except on the ground of the invalidity of the nomination paper.

(7) The statement of persons nominated shall show all persons who have been nominated, including those who have withdrawn or died, and in the case of those not remaining nominated shall give the reason why they do not remain nominated.

(8) The said statement shall show the persons standing nominated arranged alphabetically in the order of their surnames, and if there are two or more of them with the same surname, of their other names, and shall take the particulars of all persons nominated from their nomination papers or, in the case of a person nominated by more than one nomination paper, from such one of the papers as the candidate or the returning officer or mayor in default of the candidate may select.

(9) In the case of a candidate nominated by more than one nomination paper, the paper selected under the last foregoing sub-paragraph shall be deemed to be his nomination paper for the purpose of any reference in Part III of the local elections rules.

Withdrawal of Candidates.

2. In the case of a candidate who is outside the United Kingdom, a notice of withdrawal signed by his proposer and accompanied by a written declaration also so signed of the candidate's absence from the United Kingdom shall be of the same effect for the purpose of paragraph 7 of Part I of the local elections rules as a notice of withdrawal signed by the candidate:

Provided that where the candidate stands nominated by more than one nomination paper a notice of withdrawal under this paragraph shall be effective if, but only if,—

(a) it and the accompanying declaration are signed by all the proposers except any who is, and is stated in the said declaration to be, outside the United Kingdom; or

(b) it is accompanied, in addition to the said declaration, by a written statement signed by the candidate that the proposer giving the notice is authorised to do so on the candidate's behalf during his absence from the United Kingdom.

Notice of poll.

4TH SCH.
—cont.

3.—(1) The order of the names of the candidates, and the particulars of the candidates, in the notice of poll shall be the same as in the statement as to the persons nominated.

(2) The notice of poll shall give the names of all persons signing a candidate's nomination paper, and not only those of the proposer and seconder, and in the case of a candidate nominated by more than one nomination paper, the candidate may require the returning officer or mayor to include in the notice the names of the persons signing a second and third nomination paper.

Death of candidate.

4. If before the commencement of the poll proof is given to the satisfaction of the returning officer that a candidate shown in the statement as to the persons nominated as remaining nominated had in fact died before the latest time for delivery of nomination papers, the returning officer shall countermand the poll and the local elections Act shall apply as if the candidate had died after the latest time for delivery of nomination papers.

Form of directions for the guidance of voters.

5. The directions for the guidance of voters which are to be exhibited outside every polling station and in the compartments of polling stations shall include a direction in the following terms—

“ The voter should see that the ballot paper, before it is handed to him, is stamped with the official mark.”

Form of ballot paper.

6. So far as practicable, the same arrangements shall be observed in the printing of the ballot papers as in the case of a parliamentary election.

Proceedings at polling station.

7.—(1) In paragraph 16 of Part III of the local elections rules for England and Wales (which enables two electors to require the questions there set out to be put to an applicant for a ballot paper) the reference to two electors shall cease to have effect.

(2) So much of paragraph 17 of Part III of the local elections rules as requires the words “ protested against for personation ” to be placed in the register where an elector is challenged by a polling agent shall cease to have effect, and any reference in the said paragraph 17 to a polling agent shall include a reference to a candidate or his election agent.

(3) So much of paragraph 20 of Part III of the local elections rules as requires a person who is unable to read to make a declaration of his inability before a ballot paper can be marked in the manner directed by him shall cease to have effect, and in that paragraph for the words “ makes a declaration ” there shall be substituted the words “ declares orally ”.

(4) No person shall be admitted to vote in person elsewhere than at his own polling station under the provisions of this Act relating to constables and persons employed by the returning officer or mayor,

4TH SCH.
—*cont.*

except on production and surrender of a certificate as to his employment, which shall be in the prescribed form and signed by the prescribed officer of police or by the returning officer or mayor, as the case may be; and any certificate surrendered under this paragraph shall forthwith be cancelled and thereafter dealt with in the same way as the counterfoils to ballot papers are directed by law to be dealt with.

(5) Notwithstanding anything in the local elections rules, the marked copies of the register of electors and the counterfoils of the used ballot papers shall be sealed up in separate packets after the close of the poll, and not in the same packet.

The count.

8.—(1) In paragraph 33 of Part III of the local elections rules for England and Wales (which excludes from the time during which the counting of the votes is to proceed the hours between eight o'clock in the evening and nine o'clock on the succeeding morning, except so far as the returning officer with the concurrence of the counting agents, if any, otherwise determines), the word "except" and the word "otherwise:" where it first occurs shall be omitted; and accordingly, so far as practicable, the counting of the votes under those rules shall (unless otherwise determined) proceed continuously by night as by day, allowing only time for refreshment.

(2) For the purposes of the said paragraph 33, the concurrence of a candidate or his election agent shall be as effective as that of his counting agents:

Provided that where at an election in a metropolitan borough counting agents have been appointed to attend on behalf of more than one candidate jointly, the concurrence of those agents shall be required unless each of those candidates or his election agent concurs.

(3) A candidate or his election agent may, if present when the counting or any re-count of the votes is completed, require the returning officer to have the votes re-counted or again re-counted, but the returning officer may refuse to do so if in his opinion the request is unreasonable.

(4) No steps shall be taken on the completion of the counting or any re-count of the votes until the candidates and election agents present at the completion thereof have been given a reasonable opportunity to exercise the right conferred by the last foregoing subparagraph.

(5) The provisions of section two hundred and ninety-five of the local elections Act and, in England and Wales, paragraph 12 of Part I of the local elections rules (which provide for excluding Sundays and other days therein mentioned) shall not apply in relation to the counting of the votes and the other proceedings of the returning officer after the close of the poll or to things done by other persons in the course of those proceedings, but the returning officer shall not be obliged to proceed with the counting on any day to which those provisions apply.

Rejection of ballot papers.

4TH SCH.
—cont.

9. A ballot paper on which a vote is marked—
(a) elsewhere than in the proper place; or
(b) otherwise than by means of a cross; or
(c) by more than one mark;

shall not by reason thereof be rejected (either wholly or as respects that vote), if an intention that the vote shall be for one or other of the candidates clearly appears, and the way the paper is marked does not of itself identify the voter and it is not shown that he can be identified thereby.

Right to attend at polling station and counting of votes.

10.—(1) A candidate's election agent shall have the same right to attend at a polling station or at the counting of the votes as the candidate, and a candidate's wife or husband shall also have the right to attend at the counting of the votes.

(2) Any candidate attending at a polling station or the counting of the votes, and any person so attending by virtue of this paragraph, and any person permitted by the returning officer to attend at the counting of the votes though not entitled to do so, shall be subject to paragraph 54 of Part III of the local elections rules in the same way as a candidate's polling agent or counting agent, but a declaration of secrecy required to be made by a candidate attending the counting or, by virtue of this paragraph, by any other person so attending need not be made before the opening of the poll, but shall be made before the person in question is permitted to attend the counting.

(3) Where the relevant sub-paragraphs of the said paragraph 54 are read to a person making a declaration of secrecy by virtue of this paragraph they shall be read with such modifications as are necessary to show how they apply to that person.

(4) An election agent attending at a polling station shall have the same right as the candidate to require the presiding officer to put the questions permitted by law to a person applying for a ballot paper.

11.—(1) The counting agents to attend on behalf of a candidate at the counting of the votes may be appointed, and notice of the appointment given to the returning officer, by the candidate's election agent, instead of by the candidate.

(2) Notwithstanding anything in the local elections rules, the returning officer may (except at an election in a metropolitan borough) limit the number of counting agents who may attend on behalf of the candidates, so, however, that the number of those who may attend shall be the same in the case of each candidate and the number allowed to a candidate shall not (except in special circumstances) be less than the number obtained by dividing by the number of candidates the number of persons appointed to assist the returning officer.

(3) In the case of an election for a metropolitan borough, sub-paragraph (1) of this paragraph shall apply to joint, as well as to

4TH SCH.
—cont.

separate, appointments and sub-paragraph (4) of paragraph 28 of Part II of the Second Schedule to the London Government Act, 1939, shall be construed accordingly.

(4) The counting agents attending on behalf of the candidates shall be given by the returning officer all such reasonable facilities for overseeing the proceedings, and all such information with respect thereto, as he can give them consistently with the orderly conduct of the proceedings and the discharge of his duties in connection therewith.

(5) In particular, where the votes are counted by sorting the ballot papers according to the candidate for whom the vote is given and then counting the number of ballot papers for each candidate, the counting agents shall be entitled to satisfy themselves that the ballot papers are sorted rightly.

Application to Scotland.

12. This Part of this Schedule shall, in its application to Scotland, have effect as if—

- (a) in sub-paragraph (3) of paragraph 1 and sub-paragraph (2) of paragraph 3, for the expression “mayor” there were substituted the expression “town clerk”;
- (b) for references to the proposer and to the seconder of a candidate there were respectively substituted references to the proposer whose name appears first and to the proposer whose name appears second on a nomination paper in respect of the candidate; and
- (c) sub-paragraphs (7), (8) and (9) of paragraph 1, sub-paragraph (1) of paragraph 3 and paragraph 4 were omitted.

Section 35.

FIFTH SCHEDULE.

SUPPLEMENTAL PROVISIONS AS TO USE FOR ELECTION MEETINGS OF ROOMS IN SCHOOL PREMISES AND OF MEETING ROOMS.

1.—(1) Any arrangements for the use of a room in school premises shall be made with the local education authority maintaining the school.

(2) Any question as to the rooms in school premises which a candidate in any constituency is entitled to use, or as to the times at which he is entitled to use them, or as to the notice which is reasonable, shall be determined by the Minister of Education.

2.—(1) Every local education authority shall prepare for their area lists of the rooms in school premises which candidates in any constituency are entitled to use.

(2) The list shall include the rooms in premises outside, as well as those in premises in, the constituency.

(3) The list shall be revised from time to time as occasion may require.

3.—(1) With the exception of the London County Council, every county, county borough and metropolitan borough council shall prepare for their area lists of the meeting rooms which candidates in any constituency are entitled to use.

(2) The list shall indicate the person to whom applications for the use of the room are to be made in each case.

(3) The list shall be revised from time to time as occasion may require.

(4) The list shall not include any room if the person maintaining it disputes the right of candidates in the constituency to use it.

4. The lists of rooms in school premises and of meeting rooms prepared for each constituency shall be kept by the registration officer, and those lists and particulars of any change made on a revision thereof shall (where necessary) be forwarded to him accordingly.

5. In the event of a dissolution, or of a vacancy occurring in the seat for the constituency, any person stating himself to be, or to be authorised by, a candidate or his election agent shall be entitled at all reasonable hours to inspect the said lists or a copy thereof.

6. In the application of this Schedule to Scotland—

(a) for the reference in paragraph 1 to the Minister of Education there shall be substituted a reference to the Secretary of State, and for any reference to a local education authority there shall be substituted a reference to an education authority;

(b) sub-paragraph (1) of paragraph 2, sub-paragraph (1) of paragraph 3 and paragraph 4 shall not apply and it shall be the duty of the town clerk of each burgh being a county of a city and of the county clerk of each county (after consultation with the clerks of the town and district councils of the burghs and districts in the county) to prepare and keep for each constituency wholly situated in the burgh or county and for each part so situated of any other constituency—

(a) a list of rooms in school premises; and

(b) a list of meeting rooms;

which candidates in the constituency are entitled to use.

SIXTH SCHEDULE.

EFFECT OF CHANGE OF DATE OF LOCAL GOVERNMENT ELECTIONS IN ENGLAND AND WALES.

County Councils.

1.—(1) In the year nineteen hundred and forty-nine and every subsequent year of election—

- (a) the ordinary day of retirement of county councillors shall be the fourth day after the day of election, and the newly elected councillors shall come into office on the said fourth day; and
- (b) the date of the annual meeting shall be the eighth day after the day of retirement, or such other day within twenty-one days after the day of retirement as the county council may fix.

(2) So much of paragraph 1 of Part I of the Third Schedule to the Local Government Act, 1933, as directs the three meetings required to be held in addition to the annual meeting by a county council (other than the London County Council) to be held before the eighth day of March next following shall cease to have effect.

Borough Councils.

2.—(1) The ordinary elections of borough councillors, and retirement of borough councillors, due (apart from this Act) to take place in November in the year nineteen hundred and forty-eight and subsequent years shall in each case be postponed so as to take place on the day provided by this Act in the following year:

Provided that in the case of metropolitan boroughs the postponement shall, except in the first instance, be to the next following year which is not a year of election of county councillors, and the ordinary election and retirement of metropolitan borough councillors shall accordingly take place in the year nineteen hundred and forty-nine, the year nineteen hundred and fifty-three and every third year after the year nineteen hundred and fifty-three.

(2) In the year nineteen hundred and forty-nine and subsequent years—

- (a) the ordinary retirement of borough councillors shall take place on the fourth day after the day of election, and the newly elected councillors shall come into office on the said fourth day; and
- (b) the date of the annual meeting shall be the eleventh day after the day of election of borough councillors, or such other day within the following seven days as the borough council may fix.

For the purpose of determining the date for the annual meeting of a metropolitan borough council in a year which is not a year of election, the reference in this sub-paragraph to the day of election shall be taken as a reference to the day of election in that year in boroughs other than metropolitan boroughs.

(3) The ordinary election of a mayor due to take place at the annual meeting in the year nineteen hundred and forty-eight, and the ordinary election and retirement of aldermen of a borough due to take place at that meeting, shall be postponed till the annual meeting in the following year and the first mentioned meeting shall be treated as not being an annual meeting for the purpose of determining the date of retirement of any deputy mayor of a metropolitan borough.

(4) So much of paragraph 1 of Part II of the Third Schedule to the Local Government Act, 1933, as directs the three meetings required to be held in addition to the annual meeting by a borough council (other than a metropolitan borough council) to be held before the first day of November next following shall cease to have effect; and for the purposes of that requirement the period between the annual meetings mentioned in the last foregoing sub-paragraph shall be treated as a year but so that only one meeting shall be required during that period instead of three.

(5) In a borough having a sheriff, the appointment of a sheriff due to take place at the annual meeting in the year nineteen hundred and forty-eight shall be postponed till the annual meeting in the following year and subsequent appointments shall, notwithstanding anything in section one hundred and seventy of the Municipal Corporations Act, 1882, be made at the annual meeting; and in relation to sheriffs going out of office at the annual meeting in that or any subsequent year the interval between two consecutive annual meetings shall be deemed to be a year for the purposes of section five of the Sheriffs Act, 1887 (which provides that the same person shall not be appointed twice in three years if he has served a full year).

District and Parish Councils.

3. As respects the year nineteen hundred and forty-nine and subsequent years, the twentieth day of May shall be substituted for the fifteenth day of April in sections thirty-five and fifty of, and Parts III and IV of the Third Schedule to, the Local Government Act, 1933 (which relate among other things to the day of retirement of district and parish councillors and the date of the annual meeting of district and parish councils).

Casual vacancies.

4.—(1) In subsection (3) of section sixty-seven of the local elections Act (which provides that a casual vacancy in the office of councillor is not to be filled by an election under that section if it occurs within six months before the ordinary day of retirement) for the reference to the ordinary day of retirement there shall be substituted a reference to the ninth day of May or, in the case of a county councillor, April in the year in which the councillor whose office is vacant would regularly have retired.

(2) If at the passing of this Act there is a vacancy in the office of a borough councillor who would (apart from this Act) regularly have retired in November, nineteen hundred and forty-eight, it shall be filled under the said section of the local elections Act as if it had occurred on the date of the passing of this Act.

6TH SCH.
—cont.*General.*

5. The provisions of this Schedule shall have effect notwithstanding any provision of the local elections Act fixing or referring to the term of office of a member of a local authority as one year, three years or six years, or to the retirement of any such members in the third year or at the end of three years, and where inconsistencies arise in the local elections Act by virtue of this Schedule between any such reference and words referring to the day or year of election or retirement of councillors or the date of the annual meeting or any other matter affected by the operation of this Schedule, those words shall prevail.

6.—(1) Where it appears to the Secretary of State that by reason of special circumstances affecting any local authority the provisions of this Schedule are, in relation to that authority or some part of the members thereof, inapplicable or inadequate without some addition or modification, he may by order make such provision as appears to him to accord with the principles of this Schedule and to be necessary or expedient in consequence of the change effected by this Act in the date of the ordinary election of councillors.

(2) Any order under this paragraph shall have effect notwithstanding anything in any enactment (including this Act) or anything in any instrument made by virtue of any such enactment.

Section 65.

SEVENTH SCHEDULE.

CONSEQUENTIAL AND MINOR AMENDMENTS AS TO LOCAL GOVERNMENT
IN SCOTLAND.

The Licensing (Scotland) Act, 1903.

(3 Edw. 7. c. 25.)

*Section.**Amendment.*

Section 5 (as amended by the Local Government (Scotland) Act, 1947, s. 365).

In subsection (1) for the words "the Local Government (Scotland) Act, 1947," there shall be substituted the words "Part V of the Representation of the People Act, 1948," ; for the word "forty-eight" wherever occurring there shall be substituted the word "forty-nine" and after paragraph (e) there shall be inserted the following paragraph :—

"(f) The foregoing provisions of this section shall apply to the court of appeal for a burgh being a county of a city with the substitution respectively for references to meetings of the county council and to elections of county councillors of references to meetings of the town council and to elections of town councillors."

<i>Section.</i>	<i>Amendment.</i>
Section 6 ...	For the word "April" in both places where it occurs there shall be substituted the word "March".
Section 17 ...	For the word "April" there shall be substituted the word "March".
Section 40 ...	For the word "April" there shall be substituted the word "March".

7TH SCH.
—cont.

The Temperance (Scotland) Act, 1913.
(3 & 4 Geo. 5. c. 33.)

Section 3 ...	For the word "April" in both places where it occurs there shall be substituted the word "March".
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The Licensing Act, 1921.
(11 & 12 Geo. 5. c. 42.)

Section 21 ...	In subsection (1), in paragraph (a) for the word "April" there shall be substituted the word "March".
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The Licensing (Permitted Hours) Act, 1934.
(24 & 25 Geo. 5. c. 26.)

Section 2 ...	In subsection (1) for the word "April" there shall be substituted the word "March".
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The Local Government (Scotland) Act, 1947.
(10 & 11 Geo. 6. c. 43.)

Section 4 ...	In subsection (1) for the word "November" there shall be substituted the word "May"; in subsection (2) paragraph (a) shall be omitted.
Section 5 ...	For the word "November" in both places where it occurs there shall be substituted the word "May"; and for the word "forty-eight" there shall be substituted the word "forty-nine".
Section 12 ...	The words "Subject to the provisions of this Act relating to fishing burghs" shall be omitted; and for the word "November" there shall be substituted the word "May".
Section 14 ...	In subsection (2) for the word "November" there shall be substituted the word "May".
Section 17 ...	In subsection (2) for the word "November" there shall be substituted the word "May".
Section 18 ...	For the word "November" there shall be substituted the word "May".
Section 28 ...	In subsection (2) for the word "November" there shall be substituted the word "May".
Section 30 ...	In subsection (2) for the word "November" there shall be substituted the word "May".
Section 31 ...	In subsection (2) for the word "November" there shall be substituted the word "May".
Section 40 ...	In subsection (2) for the word "November" where first occurring there shall be substituted the word "May" and paragraph (i) of the proviso shall be omitted.

7TH SCH.
—*cont.*

<i>Section.</i>	<i>Amendment.</i>
Section 41 ...	For the word "November" in both places where it occurs there shall be substituted the word "May"; and for the word "forty-eight" there shall be substituted the word "forty-nine".
Section 47 ...	In subsection (2) for the word "November" there shall be substituted the word "May".
Schedule 2 ...	For the words "October" and "November" wherever they occur there shall be respectively substituted the words "April" and "May".
Schedule 3 ...	For the words "November" and "December" wherever they occur there shall be respectively substituted the words "May" and "June".

Section 67.

EIGHTH SCHEDULE.

PROVISIONS WHICH MAY BE CONTAINED IN REGULATIONS AS TO
REGISTRATION, ETC.

1. Provisions authorising a registration officer (other than a registration officer in Scotland) to require the clerk of the authority of any county borough, metropolitan borough or county district wholly or partly within the area for which he acts (or an officer designated for the purpose by the council of any such borough or district) to perform on his behalf all or any of his registration duties, so far as they relate to the preparation and publication of the electors lists, and to give information required for the purpose of his registration duties.

2. Provisions authorising a registration officer to require any householder or person owning or occupying any land or premises within the area for which he acts, or the agent or factor of any such person, to give information required for the purpose of his registration duties.

3. Provisions laying down a timetable for the preparation of the register and other matters, and providing that notices and other documents received by the registration officer out of time may be or shall be disregarded either altogether or for the purposes of a particular register or election.

4. Provisions as to the manner in which service declarations, and applications and notices from service voters, are to be transmitted to the registration officer.

5.—(1) Provisions as to the evidence which shall or may be required, or be deemed sufficient or conclusive evidence, of a person's service declaration having ceased to be in force.

(2) Provisions as to the evidence of age or nationality which may be required in connection with a person's registration otherwise than as a service voter or with his appointment as a proxy, and provisions—

(a) enabling any person to obtain for the purpose of the regulations a birth certificate on payment of a fee not exceeding sixpence;

(b) exempting statutory declarations made for that purpose from stamp duty, and requiring any fee payable in connection with the making of any such declaration to be paid by the registration officer.

(3) Provisions as to the evidence which shall or may be required, or be deemed sufficient or conclusive evidence, in connection with a person's application to be treated as an absent voter, of his being subject to any physical incapacity and as to its probable duration or of the fact that he is acting as returning officer at any election or of his employment as a constable or by a returning officer, mayor or person acting as mayor and the circumstances of that employment.

6. Provisions as to the cases in which a claim or objection may be determined by the registration officer without a hearing, and as to a person's right in any such cases to make written representations to him.

7. Provisions authorising a registration officer to require any person's evidence at a hearing before him to be given on oath and to administer oaths for the purpose.

8. Provisions as to marking the register so as to distinguish those registered as service voters and others having special rights as to the place or manner of voting at any election.

9. Provisions requiring copies of the electors lists, register and other documents or prescribed parts thereof to be available for inspection by the public at such places as may be prescribed.

10. Provisions authorising or requiring the registration officer to supply to such persons as may be prescribed copies of the electors lists, register and other documents or prescribed parts thereof, whether free of charge or on payment of a prescribed fee.

11. Provisions as to the proceedings in connection with the issue and receipt of ballot papers for voting by post (including provisions as to the persons who are to be entitled or may be allowed to attend and the rights and obligations of persons attending), and provisions as to the steps to be taken to ensure the secrecy of the voting and the safe custody (before and after the count) of the ballot papers returned and other documents.

12.—(1) Provisions imposing pecuniary penalties (not exceeding one hundred pounds for any offence) on persons summarily convicted—

(a) of having failed to comply with, or given false information in pursuance of, any such requisition of the registration officer as is mentioned in paragraph 2 of this Schedule;

(b) of having, without lawful authority, destroyed, mutilated, defaced or removed any notice published by the registration officer in connection with his registration duties, or any copies of a document which have been made available for inspection in pursuance of those duties.

(2) Any other provisions incidental or supplementary to those mentioned in the foregoing paragraphs of this Schedule.

Section 74.

NINTH SCHEDULE.

FORMS.

PART I.

Form of Writ for Parliamentary Elections.

*The name of the sovereign may be altered when necessary.

*George the Sixth, by the Grace of God, of Great Britain, Ireland and the British Dominions beyond the Seas King, Defender of the Faith, to the Returning Officer for the Constituency, Greeting:

†This preamble to be omitted except in case of a general election.

‡Except in a general election insert here in the place of A.B., deceased or otherwise, stating the cause of vacancy.

†Whereas by the advice of Our Council We have ordered a Parliament to be holden at Westminster on the day of next, We command you that, due notice being first given, you do cause election to be made according to law of a Member to serve in Parliament for the said Constituency [†in the place of] and that you do cause the name of such Member when so elected, whether he be present or absent, to be certified to Us, in Our Chancery, without delay:

Witness Ourselves at Westminster, the day of
in the Year of Our Reign, and in the Year of Our Lord
19

Label or direction of writ.

To the Returning Officer for the Constituency.
A Writ of a new Election of a Member for the said Constituency.

Endorsement.

Received the within Writ on the day of , 19
(Signed)
Returning Officer [or as the case may be,]

Certificate endorsed on writ.

I hereby certify, that the Member elected for the Constituency in pursuance of the within written Writ is
of , in the County of

(Signed)

Returning Officer [or as the case may be,]

PART II.

Form of declarations as to expenses.

Election in the.....constituency.
Date of publication of notice of election.....
Name of candidate.....

I solemnly and sincerely declare as follows:—

9TH SCH.
—*cont.*

1. I am the person named above as a candidate at this election [and was my own election agent] *or* was at this election the election agent of the person named above as a candidate.

2. I have examined the return of election expenses [about to be] transmitted by my election agent [by me] to the returning officer, of which a copy is now shown to me and marked , and to the best of my knowledge and belief it is a complete and correct return as required by law.

3. To the best of my knowledge and belief, all expenses shown in the return as paid were paid by my election agent [by me], except as otherwise stated in relation to my [the candidate's] personal expenses.

4. I understand that the law does not allow any election expenses not mentioned in this return to be defrayed except in pursuance of a court order.

Signature of declarant.....

Signed and declared by the above named declarant on the
day of , before me,

(Signed)

Justice of the Peace for.....

(NOTE.—Where there has been a change of election agent, suitable variations may be introduced into the declaration as to expenses.)

TENTH SCHEDULE.

Section 74.

ADAPTATION AND INTERPRETATION OF ENACTMENTS, ETC.

PART I.

GENERAL PROVISIONS FOR ADAPTATION AND INTERPRETATION OF LAW.

Matters arising out of redistribution.

1.—(1) The constituencies for the time being established by this Act and any Order in Council under the House of Commons (Redistribution of Seats) Act, 1944, shall take the place of parliamentary counties and boroughs, and writs for parliamentary elections shall, notwithstanding anything in this Act, continue to be sealed and issued in accordance with the rules applying at the passing of this Act in the case of elections in parliamentary counties and boroughs.

(2) Subject to the following sub-paragraph—

(a) any reference in any Act passed before this Act to parliamentary counties and boroughs shall be construed as a reference to constituencies;

10TH SCH.
—cont.

- (b) references in any Act passed before this Act to a parliamentary county shall be construed as references to a county constituency, and those to a parliamentary borough as references to a borough constituency, and references to a county election or a borough election shall be construed accordingly;
 - (c) for the purposes of this paragraph and of any Act passed after this Act, the expression "constituency" shall mean an area having separate representation in the House of Commons;
 - (d) references in any Act passed before this Act to a district of boroughs or to a district borough shall cease to have effect except in relation to Scotland and shall, in relation to Scotland, (subject to any such Order in Council as aforesaid) be taken as referring to the following constituencies, namely, Dunfermline burghs, Kirkcaldy burghs and Stirling and Falkirk burghs.
- (3) Any reference in any Act passed before this Act to the authority having power to divide a county or a borough into polling districts or to appoint polling places for a county or a borough for the purposes of parliamentary elections shall, where the context is such as to show that the last foregoing sub-paragraph ought not to apply, be taken as a reference to the county council or the borough council, as the case may be.

Register, electors, etc.

2. Any reference in any Act (whenever passed) to the register of parliamentary and local government electors, or to the register of parliamentary electors, or to the register of local government electors, or to the electors lists for any such register, shall be taken as a reference to the register kept under this Act, or to that register so far as it relates to parliamentary electors, or to that register so far as it relates to local government electors, or to the electors lists therefor, as the case may be, and references in any Act to a parliamentary or local government elector shall be construed accordingly; and local government electors registered under this Act shall for all purposes, whether statutory or not, be in the same position as local government electors registered under the Representation of the People Act, 1918.

3. Except in any reference to the register, references in any Act passed before this Act, so far as it relates to elections at which voting by proxy is provided for by this Act, to an elector or voter, or to voting, shall be taken as including an elector's proxy under this Act and to voting by or as proxy, and references to the exercise of an elector's franchise shall be construed accordingly:

Provided that—

- (a) any provision of the local elections Act regulating the number of votes which a person may give at an election shall be taken as referring to the number he may give as an elector or as proxy for any one elector; and

- (b) this paragraph shall not have effect so as to qualify a proxy to hold any office, or to subscribe a nomination paper, or to present an election petition or a petition for the appointment of election commissioners.

10TH SCH.
—cont.

Registration and Returning Officers, and Registration Expenses.

4.—(1) Any reference in any Act (whenever passed) to the registration officer for the registration of parliamentary or local government electors, or to the returning officer for a parliamentary election or constituency, shall be taken as a reference to the registration officer or returning officer appointed under this Act.

(2) Any reference in any Act passed before this Act to a person temporarily appointed under the Representation of the People Act, 1918, to act in place of a registration officer in case of incapacity or a vacancy shall be taken as a reference to the person authorised under this Act so to act.

5.—(1) Any reference in any Act (whenever passed) to registration expenses in connection with the registration of parliamentary or local government electors shall (subject to the following sub-paragraph) be taken as a reference to registration expenses under this Act, and where, by an Act passed before this Act, any expenses are directed to be paid in the same way as such registration expenses, the authority paying them shall be entitled to the like contribution (if any) from any other local authority, and any such contribution shall be paid in the like manner, as if they were registration expenses.

(2) Where by any Act passed before this Act any expenses are directed to be paid in the same way as registration expenses, there shall be substituted in relation to Northern Ireland a direction that they shall be paid by the council of any county or county borough in which the constituency in question is wholly or partly situated and, where more than one council is concerned, shall be paid by them in such proportion as the Secretary of State may direct; and any expenses payable by virtue of this sub-paragraph—

- (a) by a county council shall be paid out of the poor rate as a county at large charge;
- (b) by the council of a county borough shall be paid out of the rate or fund out of which the general expenses of the council are paid.

Forms.

6. Any form laid down by any Act passed before this Act for any document shall be adapted in such manner as is necessary to give effect to the provisions of this Act.

Day and place of election.

7. Any reference in any Act passed before this Act to the day of election or to the place of election at a parliamentary election shall be taken as referring to the last day, or to the place, for the delivery of nomination papers, as the case may be.

10TH SCH.
—cont.

Supplementary.

8.—(1) The foregoing provisions of this Schedule shall apply to a reference to any of the matters mentioned therein, whatever the terms used in that reference, and to a reference to any other matter which was to be construed as a reference to any of the said matters by virtue of an enactment repealed by this Act; but those provisions—

- (a) shall have effect subject to any specific provision contained in this Act and in particular to Part II of this Schedule; and
- (b) so far as they relate to Acts passed after this Act, shall not apply where the context otherwise requires; and
- (c) so far as they relate to Acts not so passed, may be excluded, in whole or in part, by an order of the Secretary of State in any particular case where they appear to him to be inappropriate.

(2) Nothing in the foregoing provisions of this Schedule or in any other provision of this Act shall affect the qualification of any person for any office held by that person immediately before the coming into force of the first register prepared under this Act, so as to vacate or to require that person to vacate the office.

PART II.

SPECIFIC ADAPTATIONS.

Elections.

1.—(1) In the following provisions of the Ballot Act, 1872, that is to say, sections eight, ten and eleven, and Rules 39, 42, 46, 47 and 50 of the First Schedule, any reference to that Act, and in Rule 59 of the said First Schedule any reference to that Schedule, shall be construed as including a reference to this Act so far as it relates to parliamentary elections.

(2) In subsection (2) of section twenty-five of the parliamentary corrupt practices Act, and in section twenty-three and subsection (2) of section thirty-four of the corrupt practices Act, any reference to that Act shall include a reference to Part III of this Act.

(3) In England and Wales, in section two hundred and ninety-five of the local elections Act (which relates to the computation of time for the purposes of that Act) any reference to that Act shall be construed as including a reference to Part IV of this Act.

2.—(1) In subsection (2) of section twenty-six of the corrupt practices Act, for the reference to any court having jurisdiction in the county or borough in which the election agent's office is situate, there shall be substituted a reference to any court having jurisdiction at the place where that office is situate.

(2) In section twenty-eight of the Parliamentary Elections Act, 1868 (which relates to the reception of the judge trying an election petition and is applied by subsection (4) of section thirty-eight of the parliamentary corrupt practices Act) for the words from "by the mayor" to the words "in which the borough is situate" there shall be substituted the words—

"(a) if the registration officer is town clerk of a borough, by the mayor of that borough; and

(b) if not, by the sheriff of the county which is or includes the area of the authority whose clerk is registration officer ”.

10TH SCH.
—cont.

(3) In subsection (6) of section twenty-seven of the Parliament (Elections and Meeting) Act, 1943 (which relates to the conveyance of writs for parliamentary elections) for the words “ City of London ” where they first occur there shall be substituted the words “ a constituency where the sheriffs of the City of London or either of them are or is returning officer ”.

(4) A notice given (whether before or after the passing of this Act) for the purposes of the proviso to subsection (1) of the said section twenty-seven (which enables a sheriff, mayor or other officer who is returning officer to require the writ to be conveyed to the acting returning officer) shall have effect in relation to all constituencies of which the person giving it is or was returning officer at the time of giving it or of which he or a successor in office becomes returning officer by virtue of that office.

3. So much of section five of the local Act of the twelfth and thirteenth years of Queen Victoria, chapter ninety-four, as requires registration as a parliamentary elector as part of the qualification under that section for election to the common council of the City of London shall cease to have effect.

4. In the Sheriffs Act, 1887, the expression “ writ ” shall be taken as not including a writ for a parliamentary election.

50 & 51 Vict.
c. 55.

5. Any advance made by the Treasury under section two of the Corrupt Practices Commission Expenses Act, 1869, and any other advance which is recoverable in the same way as an advance under that section, may be recovered by deduction from any sums payable under this Act to the authority liable for the expenses in respect of which the advance was made, or in any other manner, and sections three to six of the said Act and the Election Commissioners Expenses Act, 1871, shall cease to have effect.

32 & 33 Vict.
c. 21.

34 & 35 Vict.
c. 61.

6. Where the registration officer is the clerk of a county council and his salary was determined before the passing of this Act, any sums payable to him for his personal remuneration as registration officer in connection with the registration of electors under this Act shall be dealt with under subsection (2) of section ninety-nine of the Local Government Act, 1933 (which provides among other things that the clerk of a county council shall account to the county fund for all fees and costs payable to him except fees and costs excluded when his salary is determined), in the same way as, in his case, any sums payable for his personal remuneration in connection with the registration of electors under the Act of 1918 would be dealt with under the said subsection (2).

Juries.

7.—(1) No jurors book shall be prepared under the Elections and Jurors Act, 1945, for the year following that in which the first register of electors is prepared under this Act, or for any subsequent year.

10TH SCH.
—cont.

(2) In relation to jurors books for the year following that in which the first register is prepared under this Act, and any subsequent year, the Juries Act, 1922, shall have effect with the following modifications—

- (a) the amendments made by any Order in Council under the Representation of the People (Economy Provisions) Act, 1926 (which provided for the modification of the said Act of 1922 in connection with the abolition of the spring register) shall not apply;
- (b) any reference to a registration area shall be deemed to include a constituency not forming part of a registration area, and any reference to registration units shall be taken as a reference to constituencies or parts of constituencies;
- (c) for any reference to the notice to be published by the registration officer under paragraph 6 of the First Schedule to the Representation of the People Act, 1918, there shall be substituted a reference to any notice required by regulations under this Act of the time and manner for making claims and objections in relation to the electors lists under this Act.

ELEVENTH SCHEDULE.

OBSOLETE ENACTMENTS.

Section 74.

Session and Chapter.	Title or Short Title.	Provision ceasing to have effect.
7 & 8 Will. 3. c. 7.	An Act to prevent false and double returns of members to serve in Parliament.	The provisions as to procuring returns in sections three and four.
32 Geo. 3. c. 63.	The Scottish Episcopalians Relief Act, 1792.	The provisions as to incapacity to vote at elections in sections seven and thirteen.
60 Geo. 3 & 1 Geo. 4. c. 11.	The Parliamentary Elections (Ireland) Act, 1820.	The provisions as to the attendance of constables at the poll and the expenses of the election in sections twenty-two and twenty-six.
1 & 2 Geo. 4. c. 58.	The Parliamentary Elections (Ireland) Act, 1821.	Section three (which relates to payments to the returning officer and other officers).
4 Geo. 4. c. 55.	The Parliamentary Elections (Ireland) Act, 1823.	The provisions as to the attendance of constables at the poll in sections sixty-three and sixty-six and the provisions as to procuring returns in section seventy-three.
16 & 17 Vict. c. 28.	The County Elections (Scotland) Act, 1853.	Section four (which relates to the provision of polling stations).

Session and Chapter.	Title or Short Title.	Provision ceasing to have effect.
16 & 17 Vict. c. 68.	The Parliamentary Elections Act, 1853.	Section six (which relates to the provision of polling stations).
17 & 18 Vict. c. 102.	The Corrupt Practices Prevention Act, 1854.	Section eight (which relates to the employment of special constables on polling day).
30 & 31 Vict. c. 102.	The Representation of the People Act, 1867.	Section thirty-seven (which relates to the provision of polling stations) and section forty-nine (which relates to the corrupt payment of rates by way of bribery).
31 & 32 Vict. c. 46.	The Boundary Act, 1868.	Sections eleven and twelve (which deal with the limits of coastal constituencies and the marking of boundaries).
31 & 32 Vict. c. 49.	The Representation of the People (Ireland) Act, 1868.	Section eight (which disqualifies for voting electors employed by a candidate) and section ten (which relates to the provision of polling stations).
35 & 36 Vict. c. 33.	The Ballot Act, 1872	Section fourteen (which relates to the use of municipal ballot boxes, &c., for parliamentary elections).
41 & 42 Vict. c. 26.	The Parliamentary and Municipal Registration Act, 1878.	Sections eleven and thirteen (which contain provisions as to furnishing and obtaining information).
48 & 49 Vict. c. 15.	The Registration Act, 1885.	Section sixteen (which contains provisions as to furnishing and obtaining information).
48 & 49 Vict. c. 17.	The Parliamentary Registration (Ireland) Act, 1885.	Section sixteen (which provides for information of deaths to be furnished to the registration officer).
54 & 55 Vict. c. 49.	The Returning Officers (Scotland) Act, 1891.	The provisions in section five as to the use at parliamentary elections of ballot boxes, fittings and compartments provided for other elections.

Act of the Irish Parliament.

35 Geo. 3. c. 29.	An Act for regulating the election of members to serve in Parliament, and for repealing the several Acts therein mentioned.	The provisions as to procuring returns in section fourteen, and those of sections nineteen and twenty-three (which relate to treating and other matters dealt with by the parliamentary corrupt practices Act).
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TWELFTH SCHEDULE.

Section 75.

REFERENCES IN CORRUPT PRACTICES ACT AND LOCAL ELECTIONS ACT.

PART I.

THE CORRUPT AND ILLEGAL PRACTICES ACTS, 1883 TO 1895, AND THE
CORRESPONDING ACTS.

A : The parliamentary corrupt practices Act (the Corrupt and Illegal Practices Prevention Act, 1883).	A : The local corrupt practices Act.	
	(In England and Wales). The Municipal Elections (Corrupt and Illegal Practices) Act, 1884.	(In Scotland). The Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890.
Section 4	Section 3 (1)	Section 4 (1)
Section 6, and any subsection thereof.	The parliamentary pro- vision as applied by section 2.	The parliamentary pro- vision as applied by section 3.
Section 7	Section 4	Section 8
—	Section 5, and subs. (4)	Section 9, and subs. (3)
Section 9 (3)	Section 6 (3)	Section 10 (3)
Section 10	Section 7	Section 11
Section 16	Section 12	Section 16
Section 17 and subs. (1)	Section 13 and subs. (1)	Section 17 and subs. (1)
Section 18	Section 14	Section 18
—	Section 16	Section 20
Section 21 (2)	Section 17 (2)	Section 21 (2)
Section 22, and paras. (a) and (b)	Section 19, and paras. (a) and (b)	Section 23, and paras. (a) and (b)
Section 23	Section 20	Section 24
	<i>Elections other than parish elections.</i>	
Section 24	The parlia- mentary pro- vision as ap- plied by this Act.	The parliamentary pro- vision as applied by this Act.
Section 26	ditto	ditto
Section 29 (2) and (4)	ditto	ditto
	Section 21 (1)	
Section 29 (9)	ditto	ditto
Section 34	ditto	ditto
	Section 21 (7)	
subs. (2)	ditto	ditto
Section 35 (2)	ditto	ditto
Section 38 (5)		Section 28 (2)
	The parliamentary pro- vision as applied by section 23	
Section 39 and subs. (1)	Section 24 and subs. (1)	Section 29 and subs. (1)
Section 40	Section 25	Section 32
—	Subs. (1) and (2)	Subs. (1) (b) and (c)
Section 41 (1)	Section 26 (1)	Section 38 (4)
Section 43 (6)	Section 28 (6)	—
Section 45	The parliamentary pro- vision as applied by section 30.	The parliamentary pro- vision as applied by section 49.

B: The Corrupt and Illegal Practices Prevention Act, 1895.	B: The Municipal Elections (Corrupt and Illegal Practices) Act, 1911.	—
Section 3	Section 1 (3)	—
Section 4	Section 1 (4)	—

12TH SCH.
—cont.

PART II.

THE LOCAL GOVERNMENT ACT, 1933, AND THE CORRESPONDING ACTS.

The Local Govern- ment Act, 1933.	The London Govern- ment Act, 1939.	The Local Govern- ment (Scotland) Act, 1947.
Section 67 (3)	Section 42 (3)	—
Section 70 (2)	Section 45 (2)	Section 61 (2)
Section 79	Section 53	Section 67 (1)
Section 81	Section 55	Section 68
Section 82	Section 56	Section 69
Section 115	Section 82	—
Section 116	Section 83	—
Section 295	Section 197	Section 366
Schedule II	Schedule II	Schedule II
Part I	(<i>The local elections rules.</i>) Part I	Part I
para. 3	para. 3	—
para. 4	para. 4	—
para. 7	para. 7	para. 3
para. 12	para. 12	—
Part III	Part II	Part III
The references to paragraphs in these Parts are identical except :—		
para. 54	para. 54	para. 53
Part IV	Part III	Part V (beginning with Form F)

THIRTEENTH SCHEDULE.

REPEALS.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
5 Ric. 2. Stat. 2. c. 4.	Everyone shall obey his summons to Parliament. Penalty on sheriffs omitting returns of writs to Parliament.	The words from "and if any sheriff" to the end of the chapter.
34 & 35 Hen. 8. c. 13.	An Acte for Knightes and Burgesses to have places in the Parliament for the Countie Palantyne and Citie of Chestre.	The whole Act.
7 & 8 Will. 3. c. 7.	An Act to prevent false and double returns of members to serve in Parliament.	The whole Act except section five, and in section five the words "and for the more easy and better proof of any such false or double return" and the words from "and that the party" to the end of the section.
7 & 8 Will. 3. c. 25.	An Act for the further regulating elections of members to serve in parliament, and for the preventing irregular proceedings of sheriffs, and other officers, in the electing and returning such members.	The whole Act except section seven, and in section seven the words from the beginning of the section to "any future parliament" where those words first occur.
7 Geo. 2. c. 16.	An Act for the better regulating the election of members to serve in the House of Commons for that Part of Great Britain called Scotland; and for incapacitating the Judges of the Court of Session, Court of Justiciary and Barons of the Court of Exchequer in Scotland to be elected or to sit or vote as Members of the House of Commons.	Section eight.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
32 Geo. 3. c. 63.	The Scottish Episcopalians Relief Act, 1792.	Section seven, and section thirteen so far as relating to incapacity to vote.
60 Geo. 3 and 1 Geo. 4. c. 11.	The Parliamentary Elections (Ireland) Act, 1820.	The whole Act.
1 & 2 Geo. 4. c. 58.	The Parliamentary Elections (Ireland) Act, 1821.	The whole Act.
4 Geo. 4. c. 55.	The Parliamentary Elections (Ireland) Act, 1823.	The whole Act, except section seventy-four.
10 Geo. 4. c. 44.	The Metropolitan Police Act, 1829.	In section eighteen, the words from "and no justice" to the end of the section.
2 & 3 Will. 4. c. 45.	The Reform Act, 1832.	The whole Act.
2 & 3 Will. 4. c. 65.	The Representation of the People (Scotland) Act, 1832.	Section thirty-one; in section thirty-six the words "to vote or" where those words first occur, and section thirty-eight.
5 & 6 Will. 4. c. 36.	The Parliamentary Elections Act, 1835.	The whole Act.
5 & 6 Will. 4. c. 78.	The Representation of the People (Scotland) Act, 1835.	The whole Act.
6 & 7 Will. 4. c. 13.	The Constabulary (Ireland) Act, 1836.	In section eighteen, the words from "and no inspector-general" to the end of the section.
2 & 3 Vict. c. 93.	The County Police Act, 1839.	Section nine.
2 & 3 Vict. c. xciv.	An Act for regulating the Police in the City of London.	Section eight.
6 & 7 Vict. c. 18.	The Parliamentary Voters' Registration Act, 1843.	The whole Act except sections eighty-five and ninety-three, and in section ninety-three the words "or members".
12 & 13 Vict. c. xciv.	An Act to amend an Act passed in the eleventh year of the reign of King George the First for regulating elections within the City of London and for preserving the peace, good order and government of the said City.	In section five the words from "and who" to the words "in respect to such premises".
13 & 14 Vict. c. 68.	The Parliamentary Electors (Ireland) Act, 1850.	The whole Act.
13 & 14 Vict. c. 69.	The Representation of the People (Ireland) Act, 1850.	The whole Act, except section ninety-two.

13TH SCH.
—cont.

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—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
15 & 16 Vict. c. 57.	The Election Commissioners Act, 1852.	In section one, the words " or members " in the second place where they occur.
16 & 17 Vict. c. 15.	The Parliamentary Elections (Polling) Act, 1853.	The whole Act.
16 & 17 Vict. c. 28.	The County Elections (Scotland) Act, 1853.	The whole Act.
16 & 17 Vict. c. 68.	The Parliamentary Elections Act, 1853.	The whole Act.
17 & 18 Vict. c. 102.	The Corrupt Practices Prevention Act, 1854.	Sections seven, eight and thirty-five, and in section thirty-eight the definitions of " county ", " city or borough ", " returning officer " and " revising barrister " and in the definitions of " election " and " voter " the words " or members ".
19 & 20 Vict. c. 2.	The Metropolitan Police Act, 1856.	In section nine, the words " or indirectly interfering therein ".
19 & 20 Vict. c. 69.	The County and Borough Police Act, 1856.	Section nine.
20 & 21 Vict. c. 72.	The Police (Scotland) Act, 1857.	Section seventeen.
23 & 24 Vict. c. 135.	The Metropolitan Police Act, 1860.	Section five.
25 & 26 Vict. c. 62.	The County Elections (Ireland) Act, 1862.	The whole Act.
30 & 31 Vict. c. 102.	The Representation of the People Act, 1867.	In section two, the words from " nor in anywise " to the end of the section, section thirty-seven, section forty-nine, section fifty-seven, and in section sixty-one, the definitions of " member ", " county " and " borough " and in the definition of " election " the words " or members ".
31 & 32 Vict. c. 46.	The Boundary Act, 1868.	The whole Act.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
31 & 32 Vict. c. 48.	The Representation of the People (Scotland) Act, 1868.	The whole Act, except sections one, two, twenty-three, twenty-eight, twenty-nine and thirty-one to thirty-five and Schedules E. and F.
31 & 32 Vict. c. 49.	The Representation of the People (Ireland) Act, 1868.	The whole Act except section thirteen.
31 & 32 Vict. c. 58.	The Parliamentary Electors Registration Act, 1868.	The whole Act.
31 & 32 Vict. c. 125.	The Parliamentary Elections Act, 1868.	In sections three and fifty-eight, the definitions of "county" and "borough", and in the definition in section three of "election" the words "or members"; and sections forty-four, forty-eight and forty-nine.
32 & 33 Vict. c. 21.	The Corrupt Practices Commission Expenses Act, 1869.	In section two the words "in manner hereinafter mentioned" and sections three to six.
34 & 35 Vict. c. 61.	The Election Commissioners Expenses Act, 1871.	The whole Act.
35 & 36 Vict. c. 33.	The Ballot Act, 1872.	Section one; in section two the words "candidates or" and the words from "Where an equality of votes" to the end of the section; section seven; in section ten the words "and administering the oath" and the words "and administered to"; in section eleven the words from the beginning to "one hundred pounds"; section thirteen; section fourteen; section twenty-four; section twenty-six; in section twenty-seven the words from "and shall apply" to the end of the section; section twenty-nine; section thirty-one; in the First Schedule, rules 1 to 14; rule 18; in rule 22 the words from "contain" to "it shall"; in rule 24 the words "either stamped or perforated"; in rule 26 the words from "the said declaration" where those words first occur to the end of the rule, in rule 27 the words "and taking the oath" and the words "of and to be

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—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
35 & 36 Vict. c. 33— <i>cont.</i>	The Ballot Act, 1872 — <i>cont.</i>	administered to voters", in rule 29 the words "and the declarations of inability to read", in rule 38 the words "declarations of inability to read"; rule 56; in rule 57 the definitions of "district borough" and of "polling place"; rules 60 and 61; in the Second Schedule the forms of writ (including the note) and declaration of inability to read, and in the directions as to printing the ballot paper the words from "The surname" to the last "and"; and the Third Schedule.
38 & 39 Vict. c. 84.	The Parliamentary Elections (Returning Officers) Act, 1875.	The whole Act.
41 & 42 Vict. c. 26.	The Parliamentary and Municipal Registration Act, 1878.	Sections eleven to thirteen.
41 & 42 Vict. c. 41.	The Parliamentary Elections Returning Officers' Expenses (Scotland) Act, 1878.	Sections four and five.
43 Vict. c. 18.	The Parliamentary Elections and Corrupt Practices Act, 1880.	The whole Act.
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1882.	In section seven, the definition of "parliamentary borough", section eighty-one, section eighty-five, and in section one hundred and seventy the words "on the ninth of November" in subsection (1) and the words "at the quarterly meeting of the council" in subsection (2).
46 & 47 Vict. c. 51.	The Corrupt and Illegal Practices Prevention Act, 1883.	In subsection (1) of section seven, paragraph (c); subsection (1) of section nine; in section sixteen the words "cockades, ribbons, or other marks of distinction"; in subsection (2) of section seventeen the words from "if he knew" to the end of the subsection; in section thirty-three, in subsection (5) the words "to any person who sues for the same"; subsections (2) to (8) of section thirty-nine; subsection (5) of section forty;

Session and Chapter.	Title or Short Title.	Extent of Repeal.
46 & 47 Vict. c. 51—cont.	The Corrupt and Illegal Practices Prevention Act, 1883.—cont.	in subsection (3) of section fifty-three the words "or action"; in subsection (1) of section fifty-eight the words from "and the Election Commissioners Expenses Acts" to the end of the subsection; section sixty-one; subsection (2) of section sixty-three except the words "Provided that where a person has been declared to be a candidate by others without his consent, nothing in this Act shall be construed to impose any liability on such person unless he has afterwards given his assent to such declaration or has been nominated"; in section sixty-four, in the definition of "election" the words "or members"; in section sixty-eight the definition of "revising barrister" and paragraph (16); paragraphs (3) and (4) of section sixty-nine; the First Schedule except paragraph (2) of Part I; the Second Schedule except the form of return in Part I; and in the Third Schedule Part III except so far as relates to sections two and three of the Corrupt Practices Prevention Act, 1854.
47 & 48 Vict. c. 70.	The Municipal Elections (Corrupt and Illegal Practices) Act, 1884.	Paragraph (c) of subsection (1) of section four; subsection (1) of section six, so far as relates to elections of councillors; in section twelve the words "cockades, ribbons, or other marks of distinction"; in subsection (2) of section thirteen, the words from "if he knew" to the end of the subsection; in subsection (1) of section sixteen the word "either" and the words "or for holding a meeting"; section eighteen; in subsection (4) of section twenty-one the words "to any person who sues for the same"; in section twenty-four, the words

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—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
47 & 48 Vict. c. 70—cont.	The Municipal Elections (Corrupt and Illegal Practices) Act, 1884— <i>cont.</i>	"in July" in subsection (1) and subsections (2) to (9); in paragraph (a) of section thirty the words "other than a corrupt practice"; the second paragraph of section thirty-four, except as respects the City of London; section thirty-seven; Part I of the Third Schedule so far as it repeats the Representation of the People Act, 1867, s. 49 and the Ballot Act, 1872, s. 24; the Fourth Schedule.
48 & 49 Vict. c. 10.	The Election (Hours of Poll) Act, 1885.	The whole Act.
48 & 49 Vict. c. 15.	The Registration Act, 1885.	The whole Act.
48 & 49 Vict. c. 17.	The Parliamentary Registration (Ireland) Act, 1885.	The whole Act.
48 & 49 Vict. c. 23.	The Redistribution of Seats Act, 1885.	The whole Act.
50 & 51 Vict. c. 9.	The Police Disabilities Removal Act, 1887.	The whole Act.
50 & 51 Vict. c. 55.	The Sheriffs Act, 1887.	In section thirty-one the words "and of the law relating to the election of members to serve in Parliament."
52 & 53 Vict. c. 63.	The Interpretation Act, 1889.	Paragraph (3) of section fifteen, and in paragraph (4) thereof the words from "and" onwards; and in paragraph (1) of section seventeen the words "or members" and paragraphs (2) and (3) of that section.
53 & 54 Vict. c. 55.	The Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890.	Section five; section six; paragraph (c) of subsection (1) of section eight; in section sixteen the words "cockades, ribbons, or other marks of distinction"; in subsection (2) of section seventeen the words from "if he knew" to the end of the subsection; in subsection (1) of section twenty the word "either" and the words "or for holding a meeting"; section twenty-two; section twenty-five; subsections (2) to (6) of section twenty-nine; section fifty-one; the First Schedule except so far as relates to

Session and Chapter.	Title or Short Title.	Extent of Repeal.
53 & 54 Vict. c. 55— <i>cont.</i>	The Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890— <i>cont.</i>	sections two and three of the Corrupt Practices Prevention Act, 1854, and sections one and two of the Corrupt and Illegal Practices Prevention Act, 1883.
54 & 55 Vict. c. 49.	The Returning Officers (Scotland) Act, 1891.	Section two from the words "but shall not" to the end of the section, and in section five the words from "of ballot boxes," to "elections and".
56 & 57 Vict. c. 6.	The Police Disabilities Removal Act, 1893.	The whole Act.
62 & 63 Vict. c. 14.	The London Government Act, 1899.	In subsection (1) of section eleven the words "list of voters and of".
7 Edw. 7. c. 51.	The Sheriff Courts (Scotland) Act, 1907.	In section twenty-one the words from "nor shall he be entitled" to "within his sheriffdom".
3 & 4 Geo. 5. c. 6.	The Extension of Polling Hours Act, 1913.	The whole Act.
7 & 8 Geo. 5. c. 64.	The Representation of the People Act, 1918.	The whole Act, except sections nineteen and forty-three in so far as they re-enact regulation 16 of section two of the Universities Elections Amendment (Scotland) Act, 1881, and subsection (3) of section twenty-one, and section forty-two and the Sixth Schedule so far as they relate to the Registration Amendment (Scotland) Act, 1885, or to subsection (1) of section twenty-nine of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890.
7 & 8 Geo. 5. c. 65.	The Redistribution of Seats (Ireland) Act, 1918.	The whole Act.
8 & 9 Geo. 5. c. 50.	The Representation of the People (Amendment) Act, 1918.	The whole Act.
9 & 10 Geo. 5. c. 8.	The Representation of the People (Returning Officers' Expenses) Act, 1919.	The whole Act.
10 & 11 Geo. 5. c. 26.	The Sheriffs (Ireland) Act, 1920.	In subsection (1) of section two the words "(including his powers and duties as returning officer)".
10 & 11 Geo. 5. c. 35.	The Representation of the People (No. 2) Act, 1920.	The whole Act.

13TH SCH.
—*cont.*

13TH SCH.
—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 67.	The Government of Ireland Act, 1920.	Paragraph (a) of section nineteen; section seventy-one; Part II of the Fifth Schedule.
11 & 12 Geo. 5. c. 34.	The Representation of the People Act, 1921.	The whole Act.
12 & 13 Geo. 5. c. 12.	The Representation of the People Act, 1922.	The whole Act.
12 & 13 Geo. 5. c. 31.	The Universities (Scotland) Act, 1922.	In section two, the proviso.
12 & 13 Geo. 5. c. 41.	The Representation of the People (No. 2) Act, 1922.	The whole Act.
16 & 17 Geo. 5. c. 9.	The Economy (Miscellaneous Provisions) Act, 1926.	Part III and the Third Schedule.
18 & 19 Geo. 5. c. 12.	The Representation of the People (Equal Franchise) Act, 1928.	The whole Act.
18 & 19 Geo. 5. c. 25.	The Representation of the People (Reading University) Act, 1928.	The whole Act.
23 & 24 Geo. 5. c. 51.	The Local Government Act, 1933.	Section nine; subsection (3) of section twenty-three; in section forty in paragraph (b) of subsection (1) the words "the day of the poll and" and the words from "so" onwards; and in subsection (2) of that section the words "(other than the provisions referred to in section thirty-seven of that Act)"; section fifty-one; in section fifty-four in paragraph (b) of subsection (1) the words "the day of election and the day of the poll and" and the words from "so" onwards, and in subsection (2) of that section the words "(other than the provisions referred to in section thirty-seven of that Act)"; subsection (1) of section seventy; section seventy-nine; sections eighty-two and one hundred and fifty-four; in the Second Schedule, in Part II, columns one and two except the words "Proceeding" and "Time" in the headings and the first and last entries, and the whole of column three; in Part III, sub-paragraph (2)

Session and Chapter.	Title or Short Title.	Extent of Repeal.
23 & 24 Geo. 5. c. 51.— <i>cont.</i>	The Local Government Act, 1933— <i>cont.</i>	of paragraph 2; sub-paragraphs (1) and (3) of paragraph 14; in sub-paragraph (1) of paragraph 16 the words "by two local government electors or"; in sub-paragraph (2) of paragraph 17 the words from "but the presiding officer" to the end of the sub-paragraph; in paragraph (c) of sub-paragraph (1) of paragraph 20 the words from "in this" onwards; in sub-paragraph (1) of paragraph 22 the words "The declaration of inability to read and" and the words "applies for a ballot paper or" and "as the case may be"; in sub-paragraph (e) of paragraph 26 the words "and the declarations of inability to read"; in paragraph 33, the word "except" and the word "otherwise" where it first occurs; paragraph 37; in paragraph 40 the words "declarations of inability to read"; and in Part IV of the Second Schedule, Form D and in the directions as to printing the ballot paper the words from "The surname" to the last "and"; in the Third Schedule, in Part I, paragraph (a) of sub-paragraph (2) of paragraph 1 and in sub-paragraph (3) of that paragraph the words "before the eighth day of March next following"; in Part II, the words "on each ninth day of November" and the words "before the first day of November next following" in sub-paragraph (2) of paragraph 1; in Part VI, in paragraph 3 the words "and is not a candidate for election thereat" in sub-paragraph (1) and the words "or unable to take the chair at" in sub-paragraph (3), and sub-paragraph (2) of paragraph 4.

13TH SCH.
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13TH SCH.
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Session and Chapter.	Title or Short Title.	Extent of Repeal.
2 & 3 Geo. 6. c. 40.	The London Government Act, 1939.	Section ten; subsections (2) and (3) of section eleven; section twenty-four; subsection (1) of section forty-five; proviso (a) to subsection (1) of section forty-six; subsection (2) of section fifty; section fifty-three; section fifty-six; in the Second Schedule, in Part I, in paragraph 4 the words from "not later" in subparagraph (1) to the end of the paragraph; in subparagraph (5) of paragraph 5 the words from "Not" to "election"; in paragraph 7 the words from "not later" onwards; in Part II, subparagraph (2) of paragraph 3; subparagraphs (1) and (3) of paragraph 14; in subparagraph (1) of paragraph 16 the words "by two electors or"; in subparagraph (2) of paragraph 17 the words from "but the presiding officer" to the end of the subparagraph, in paragraph (c) of subparagraph (1) of paragraph 20, the words from "in this" onwards; in subparagraph (1) of paragraph 22 the words "The declaration of inability to read and", the word "respectively", the words "Form D and", and the words "applies for a ballot paper or" and "as the case may be"; in subparagraph (e) of paragraph 26 the words "and the declarations of inability to read"; in paragraph 33 the word "except", and the word "otherwise" where it first occurs; paragraph 37; in paragraph 40 the words "declarations of inability to read"; and in Part III of the Second Schedule, Form D and in the directions as to printing the ballot paper the words from "The surname" to the last

Session and Chapter.	Title or Short Title.	Extent of Repeal.	13TH SCH. —cont.
2 & 3 Geo. 6. c. 40.— <i>cont.</i>	The London Govern- ment Act, 1939— <i>cont.</i>	"and"; in the Third Sched- ule, in Part I, paragraph (a) of sub-paragraph (2) of para- graph 1; in Part II, the words "on the ninth of Nov- ember" in sub-paragraph (2) of paragraph 1.	
6 & 7 Geo. 6. c. 48.	Parliament (Elections and Meeting) Act, 1943.	Part I; in section twenty- seven, subsection (7) and in subsection (8) the words from "and the expressions" to the end of the subsection; section twenty-eight; in section thirty, in subsection (2) the words "except in relation to university elections"; in subsection (5) of section thirty-one the words from "in section thirteen," to "1922," the words "or an assistant returning officer," and the words from "and nothing," onwards; sub- section (1) of section thirty- three; the First, Second, Fourth and Sixth Schedules. The whole Act.	
7 & 8 Geo. 6. c. 24.	Parliamentary Electors (War-time Registra- tion) Act, 1944.		
7 & 8 Geo. 6. c. 41.	The House of Commons (Redistribution of Seats) Act, 1944.	In section four, in subsection (1), the words "after the submission of their report under the last foregoing sec- tion" and in subsections (1) and (3) the words "and the number of members which they recommend should be returned by each of them", section six, and in the Third Schedule, in rule 2 paragraph (1) and in paragraph (2) the word "other", rule 3, in rule 5, sub-paragraph (b) (i) of paragraph (1), and in para- graph (2), in the definition of the expression "county" the words "in sub-paragraph (a)" and the words from "and in sub-paragraph (b)" onwards, rule 7 and in rule 8 in sub-paragraph (a) of para- graph (1) the words from "or in applying these rules", to the end of paragraph (i) of the sub-paragraph, and para- graph (2).	

13TH SCH.
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Session and Chapter.	Title or Short Title.	Extent of Repeal.
8 & 9 Geo. 6. c. 5.	The Representation of the People Act, 1945.	Parts I, III, and IV ; in section thirty-three in subsection (3) the words "or any part thereof" and the words from "or that part thereof" to "and"; sections thirty-five to thirty-seven, in section thirty-eight the words from "constituency" to "the same meaning as in that Act", section thirty-nine; the First, Second and Fourth Schedules.
9 & 10 Geo. 6. c. 21.	The Elections and Jurors Act, 1945.	The whole Act.
10 & 11 Geo. 6. c. 10.	The House of Commons (Redistribution of Seats) Act, 1947.	Section one from the words "(2) For the purposes" in subsection (2) onwards, and the Schedule.
10 & 11 Geo. 6. c. 43.	The Local Government (Scotland) Act, 1947.	In paragraph (b) of the proviso to subsection (2) of section twenty-two, the words from "no person" to "ward, and"; in subsection (2) of section forty-four the words from "and (b) a person" to the end of the subsection; in section fifty-nine, subsection (7); in section sixty-one, in sub-section (1) paragraph (a); subsection (1) of section sixty-seven; section sixty-nine; section seventy; in section one hundred and forty-five, paragraph (a); in Part II of the Second Schedule, column 3; in Part III of the Second Schedule, paragraph 3 and sub-paragraphs (1) and (3) of paragraph 14; in sub-paragraph (2) of paragraph 17 the words from "but the presiding officer" to the end of the sub-paragraph, in paragraph (c) of sub-paragraph (1) of paragraph 20, the words from "in this Schedule" onwards; in sub-paragraph (1) of paragraph 22 the words "the declarations of inability to read and"; in sub-paragraph (e) of paragraph 26 the words "and the declarations of inability to read"; paragraph 37; in paragraph 40 the words "declarations

Session and Chapter.	Title or Short Title.	Extent of Repeal.
10 & 11 Geo. 6. c. 43.—cont.	The Local Government (Scotland) Act, 1947— cont.	of inability to read " and in Part V of the Second Schedule Form I, and in the directions as to printing the ballot paper the words from " The surname " to the last " and ".
<i>Act of the Irish Parliament.</i>		
35 Geo. 3. c. 29.	An Act for regulating the election of members to serve in Parliament, and for repealing the several Acts therein mentioned.	The whole Act.
<i>Order in Council.</i>		
S.R. & O., 1922, No. 1352.	The Government of Ireland (Election Laws Adaptation) (Northern Ireland) Order, 1922.	In Article 3, sub-paragraphs (a), (b) and (c) of paragraph (1) and paragraph (2).